

[Session Name]

Test-p3-02

[Case Name]

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01 08:42:58 Test test 202602160001 Test test Test test 202602160001 Test test.

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04 08:57:32 number 2, testing mic number 3, testing mic number 4,

05 08:57:40 testing mic number 5.

06 08:57:43 Testing mic number 6 witness.

07 08:57:48 Testing mic number 7, testing mic number 8.

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11 08:59:48 Testing mic test,

12 09:01:42 Testing 1, 2, 3, 4, test mic,

13 09:27:45

14 09:27:45

15 09:27:46

16 09:27:47

17 09:27:50 (9.42 am)

18 09:42:46 PRESIDENT: Good morning, ladies and gentlemen.

19 09:42:52 Welcome to day 2 of this hearing in the arbitration

20 09:42:57 between the JV and GAM.

21 09:43:01 Before we hear the second witness, it is about

22 09:43:08 employee dearly issue.

23 09:43:11 Yesterday we had a copy of the ismed D Mr ^^ and

24 09:43:19 after the verification of the copy, it was ^^ this is

25 09:43:27 only for the record.

01 09:43:54 The copy was added to the file of the ID.

02 09:44:05 Mr Khirfan we are going to hear the second

03 09:44:12 claimant's witness. He is gram advertise Dimitrios.

04 09:44:19 Can you call him, please.

05 09:44:23 MR H KHIRFAN: Yes, but just for the record, we have with us

06 09:44:27 today Ms Rania any accurate sue, which is the legal

07 09:44:31 director of Helector ^^ and her name was communicated in

08 09:44:34 the email that we said that who will be the attendees

09 09:44:39 from our side.

10 09:44:40 PRESIDENT: Mr Najdawi, do you have any objection?

11 09:44:46 MR A NAJDAWI: No, sir.

12 09:44:47 PRESIDENT: Thank you, Mr Najdawi.

13 09:45:31

14 09:45:34 Mr Dimitrios Grammatas

15 09:45:38 PRESIDENT: Hello. Please in the middle.

16 09:45:47 Good morns.

17 09:45:48 Good morning.

18 09:45:49 PRESIDENT: Thank you for making yourself available here

19 09:45:52 today.

20 09:45:54 Can you please provide us with your ID?

21 09:45:58 WITNESS: Yes, sir. (Handed).

22 09:46:28 PRESIDENT: Okay. For the record, after the verification of

23 09:46:32 Mr Grammatas ID, it was added to the file -- a copy of

24 09:46:40 the ID was added to the file.

25 09:46:43 Mr Grammatas, in front of you there's a holy book.

01 09:46:51 Can you please put your right hand on the book and read
02 09:46:55 the oath in front of you.
03 09:46:59 WITNESS: I swear by almighty God to tell the truth, the
04 09:47:04 whole truth and nothing but the truth.
05 09:47:07 PRESIDENT: Okay.
06 09:47:08 Can you raise your voice a little bit?
07 09:47:11 WITNESS: Yes, of course.
08 09:47:13 PRESIDENT: Okay. Mr Chief, you can proceed.
09 09:47:19
10 09:47:19 Examination-in-chief by Mr Khirfan
11 09:47:21 MR H KHIRFAN: Good morning, Mr Grammatas. Thank you for
12 09:47:23 making yourself available for this testimony.
13 09:47:25 Just for the record, could you please state your
14 09:47:28 fill name and position?
15 09:47:31 A. Dim trois Grammatas.
16 09:47:34 Q. Can you ^^?
17 09:47:35 A. No, the mic does not maximum 2?
18 09:47:37 Tim trois Grammatas. Son of or gig rows. Profession,
19 09:47:45 civil engineer.
20 09:47:46 Q. Your current position is?
21 09:47:46 A. My current position I'm a technical director of
22 09:47:51 a technical construction group.
23 09:47:56 MR A NAJDAWI: Mr Chairman, we can't really hear very well.
24 09:47:59 PRESIDENT: Again, I'm so sorry, but you have to raise your
25 09:48:04 voice?

01 09:48:04 A. Possibly I approach this.

02 09:48:06 PRESIDENT: No, no.

03 09:48:09 A. Okay, I will try to be louder.

04 09:48:12 I'm civil engineer, I am currently technical

05 09:48:16 director in construction group.

06 09:48:20 MR H KHIRFAN: Okay. With respect to the tax exemption,

07 09:48:27 during the discussion preceding the 2015 agreement.

08 09:48:33 MR A NAJDAWI: I object, this is the same objection of

09 09:48:35 yesterday. During the opening statement --

10 09:48:39 MR H KHIRFAN: Could I kindly ask that we are not

11 09:48:42 interrupted until at least the question is finished it's

12 09:48:48 a basis right for me to have --

13 09:48:51 MR A NAJDAWI: Okay, sure, go ahead.

14 09:48:53 PRESIDENT: Okay, but Mr Dimitrios, please don't answer

15 09:48:55 unless you are instructed to answer. Don't answer the

16 09:49:00 question unless you are instructed. Because there might

17 09:49:04 be some objections to the questions.

18 09:49:07 Okay.

19 09:49:08 MR H KHIRFAN: Just for the record as well, because Mr Ahmad

20 09:49:13 started with this objection very quickly, the question

21 09:49:15 that he objected to and the tribunal did not permit and

22 09:49:19 I didn't agree. However, I was happy to oblige, is not

23 09:49:23 the same question. I did not put it on the record for

24 09:49:26 respecting the time of the tribunal and my colleagues.

25 09:49:30 PRESIDENT: Okay.

01 09:49:31 MR H KHIRFAN: So during the discussions preceding the 2015
02 09:49:35 agreement, were there discussion about tax exemptions?
03 09:49:42 A. Should I?
04 09:49:45 MR T NAJDAWI: He was never asked if he attended, first, or
05 09:49:47 if he was involved in those discussions or he was
06 09:49:52 informed later on. If you can put an intro question, it
07 09:49:56 will be in the context.
08 09:49:57 MR H KHIRFAN: It was the same question of yesterday.
09 09:49:59 MR T NAJDAWI: Dim introduce we know that he was there.
10 09:50:02 MR H KHIRFAN: Okay, and were there discussion about tax
11 09:50:04 exemptions? It's factual.
12 09:50:07 MR T NAJDAWI: Was he there or he was informed?
13 09:50:09 PRESIDENT: Okay.
14 09:50:21 Mr Najdawi, the question is about the discussion
15 09:50:27 preceding the assignment of the agreement, whether he
16 09:50:34 was there, attended, or informed. The question is
17 09:50:41 purely about was there a discussion or not?
18 09:50:45 H KHIRFAN: Yes.
19 09:50:46 MR T NAJDAWI: This is the difference between being
20 09:50:47 a witness or hearsay. He might be.
21 09:50:50 PRESIDENT: He will clarify this. He will clarify this. He
22 09:50:54 will clarify this. Okay. You may answer the question,
23 09:50:58 please.
24 09:51:00 A. Okay. For me, is it procedure which I'm not very usual
25 09:51:06 to show I understand that possibly sometimes I have to

01 09:51:12 repeat the question to understand if I catch well.

02 09:51:17 Okay?

03 09:51:18 PRESIDENT: Yes.

04 09:51:19 A. So the question by taking into account what the other

05 09:51:22 party said is if I have been present --

06 09:51:27 MR H KHIRFAN: No.

07 09:51:27 PRESIDENT: No, no. The question, was there any discussion

08 09:51:32 preceding the 2015 agreement about the tax exemption?

09 09:51:40 A. Yes, there have been discussions and I have been present

10 09:51:44 to some meetings about that issue.

11 09:51:51 MR H KHIRFAN: Thank you. What did GAM represent regarding

12 09:51:54 its role in obtaining tax exemptions during those

13 09:51:56 discussions?

14 09:51:59 A. GAM said and wrote to us that they will undertake the

15 09:52:08 tax exemption ^^ excuse me, the tax and the duties

16 09:52:14 charges and they will undertake all the tax exemption

17 09:52:19 procedure.

18 09:52:23 Did you say all exemptions?

19 09:52:24 A. Yes, this is what I remember, yes.

20 09:52:26 Q. Thank you.

21 09:52:29 MR A NAJDAWI: The tax exemption procedures, not -- pray

22 09:52:31 procedures, not for tax exerng?

23 09:52:34 A. I said to undertake the employee dues and to undertake

24 09:52:37 the sales and doties charges. This is what I said.

25 09:52:43 MR H KHIRFAN: Just for the record and for the order of the

01 09:52:46 hearing, please, I'm asking question. In my colleague
02 09:52:52 ask anything, it should be through the tribunal and you
03 09:52:54 may ask the tribunal if you can answer. You cannot
04 09:52:57 interrupt the direct.
05 09:52:59 A. Okay. I'm here for you the whole morning.
06 09:53:02 Q. Thank you.
07 09:53:04 Did GAM obtain all exemptions provided under the
08 09:53:09 2015 bylaw to the maximum allowable extent?
09 09:53:15 MR T NAJDAWI: This is -- do you like me to object?
10 09:53:17 MR H KHIRFAN: I like -- no, definitely no, but we can hear
11 09:53:21 you.
12 09:53:22 MR T NAJDAWI: This is judgmental. The question is
13 09:53:23 extremely judgmental.
14 09:53:26 MR H KHIRFAN: It's not. It's factual.
15 09:53:28 MR T NAJDAWI: No, no.
16 09:53:29 MR H KHIRFAN: Did GAM obtain?
17 09:53:30 MR T NAJDAWI: You asked not to interrupt you.
18 09:53:32 H KHIRFAN: Yes.
19 09:53:33 MR T NAJDAWI: I'm asking you not to interrupt my objection.
20 09:53:36 MR H KHIRFAN: Okay.
21 09:53:38 MR T NAJDAWI: This is absolutely ^^ specifically on certain
22 09:53:39 exemptions, you can ask him one by one. Did it provide
23 09:53:43 everything and all? This is judgmental.
24 09:53:46 MR H KHIRFAN: Okay, with all due respect, I kindly ask the
25 09:53:51 tribunal to dismiss this objection, because it's not

01 09:53:54 judgmental at all and it's very factual question. It's
02 09:53:59 about obtaining the tax exemptions, which is
03 09:54:02 a contractual thing and the discussions included this.
04 09:54:05 PRESIDENT: Okay. The objection is dismissed. You may --
05 09:54:08 we will allow the question and you may answer.
06 09:54:12 MR H KHIRFAN: Thank you.
07 09:54:13 A. Please repeat.
08 09:54:14 Q. The question again. Did GAM obtain all exemptions
09 09:54:17 provided under the 2015 bylaw to the maximum allowable
10 09:54:22 extent?
11 09:54:22 A. This was our understanding, that they have to.
12 09:54:25 Q. No, did they provide this? Did they obtain all
13 09:54:30 exemptions?
14 09:54:33 A. They obtained for all the materials and the goods were
15 09:54:40 in the lists but then we learned that for the services,
16 09:54:44 this didn't happen.
17 09:54:46 Q. Okay.
18 09:54:47 ¶202602160008A. This is my answer.
19 09:54:48 Q. Okay. Did GAM ever inform you that only exemptions to
20 09:54:53 material and goods will be applied for?
21 09:54:56 A. No.
22 09:54:59 Q. Were you aware that the approvals issued by MEMR were
23 09:55:04 only limited to materials and goods?
24 09:55:07 A. No. We learn that --
25 09:55:10 Q. Later?

01 09:55:11 A. -- much, much later.

02 09:55:13 Q. When did it become apparent that GAM did not fully

03 09:55:17 fulfil its tax exemption obligations?

04 09:55:23 A. Apparent to us became when we received that information

05 09:55:28 from our tax adviser here in Jordan, about the amount

06 09:55:36 imposed to us for the year 2016. This was in 2021.

07 09:55:48 PRESIDENT: Again, sorry for interrupting. Please raise

08 09:55:53 your voice, because --

09 09:55:56 A. Yes, okay, I will try.

10 09:55:58 PRESIDENT: Very well.

11 09:55:59 A. Thank you, yes.

12 09:55:59 MR H KHIRFAN: You said amount -- you said amount enforced?

13 09:56:05 This is what you said?

14 09:56:06 A. Imposed, imposed.

15 09:56:09 Q. Imposed, okay. Imposed by what, by who?

16 09:56:11 A. By the tax authority.

17 09:56:13 Q. Tax authority. Okay. What did you do when you learned

18 09:56:16 this and this amount was --

19 09:56:18 A. We were surprised and we sent letters asking to GAM,

20 09:56:22 asking to rectify the case by sending letters to the

21 09:56:26 authorities and take the exemption for that amount as

22 09:56:35 well. And we repeatedly send letters for that case

23 09:56:43 without answers the beginning, et cetera, et cetera and

24 09:56:45 then I remember somewhere in the middle of April about

25 09:56:50 the last days or the deadline of the date we had to pay

01 09:57:00 the amount, the authority replied, the ministry, replied
02 09:57:07 to GAM, negatively, and of course we consider that this
03 09:57:11 was due to their late activation for this reason. And
04 09:57:19 exactly in order to avoid -- you want me to continue?
05 09:57:24 Because I think I answered to your first question.
06 09:57:28 Q. Yes, yes. My next question maybe it's relevant to what
07 09:57:31 you were going. I don't know. But did GAM react on
08 09:57:36 your letters?
09 09:57:38 A. No, no. Until the last moment and we learned that when
10 09:57:43 they send us the rejection, that they made too late the
11 09:57:48 action and they finally informed us about the rejection.
12 09:57:56 The real activation was on the deadline. If I remember
13 09:58:00 well, mid of April. After repeatedly many letters from
14 09:58:08 our side about same issue.
15 09:58:14 Q. A meeting took place on 1 April 2021 regarding tax
16 09:58:18 exemptions. Were you present or do you remember this
17 09:58:23 meeting and whether you were present?
18 09:58:26 I have to be very honest, I remember the meeting. First
19 09:58:29 of all, I have to say that I was present to every and
20 09:58:33 all meetings we did, so when it was our way of doing
21 09:58:41 things, everything we did jointly. So to every meeting
22 09:58:48 that Dimitrios cons appeared, he was present, I was
23 09:58:52 present as well (Dimitrios Constantinidis ^). We had
24 09:58:54 that kind of doing things together and jointly, so
25 09:59:01 I don't remember any meeting that one of us was alone,

01 09:59:06 at least a significant meeting, important meeting.

02 09:59:13 DR TARAWNEH: So that meeting you were attending.

03 09:59:17 MR H KHIRFAN: 1 April 2021 meeting?

04 09:59:19 A. Definitely I attend the meeting.

05 09:59:22 Q. Okay. Thank you. Do you remember who attended from GA

06 09:59:26 GAM?

07 09:59:26 A. I don't remember who attended from GAM, but I remember

08 09:59:28 that all our meetings we tried to -- we asked the

09 09:59:34 highest participation from GAM. Sometimes possibly we

10 09:59:40 were asking even the mayor to attend, which sometimes

11 09:59:44 was not possible, but definitely to every meeting of

12 09:59:48 such importance, not only that, we were asking the city

13 09:59:52 manager to be present, other officials to be present.

14 09:59:57 I remember names to be very honest I remember the faces

15 10:00:02 of the people, but not very clearly now.

16 10:00:05 Q. Okay. What was discussed during this meeting

17 10:00:08 specifically, April 1, 2021 about tax exemptions?

18 10:00:14 Definitely the purpose of the meeting was to clarify

19 10:00:17 that important matter in view of the short expiration of

20 10:00:22 the deadline.

21 10:00:25 Q. Which deadline?

22 10:00:26 A. I remember it was a meeting which came after many

23 10:00:32 requests for a meeting and came late.

24 10:00:38 Q. What did GAM say about the urgency of the tax matter?

25 10:00:43 A. I'm not pretty sure now about exact the words, to be

01 10:00:48 very honest, but I remember that they showed
02 10:00:52 understanding and they said that they will do whatever
03 10:00:55 possible from their side.
04 10:00:58 Q. Did they give assurances for resolving this?
05 10:01:02 A. I remember that we left the meeting calm that we will
06 10:01:07 have 202602160001 Test test test.
07 10:04:02 Test test test,.
08 10:04:35 MR H KHIRFAN: So after the tax department finalised its
09 10:04:41 claim and sales tax along with the penalties were
10 10:04:44 imposed, what mitigation steps did the operator take?
11 10:04:50 A. Other than --
12 10:04:51 PRESIDENT: Excuse me, Mr Khirfan. His answer is not on the
13 10:04:58 script.
14 10:04:59 MR H KHIRFAN: The previous one.
15 10:05:00 PRESIDENT: The previous one, yes.
16 10:05:02 SECRETARY: She said it was recorded, she will --
17 10:05:05 PRESIDENT: It is recorded. Okay.
18 10:05:07 MR H KHIRFAN: It is recorded.
19 10:05:10 MR H KHIRFAN: Do you want me to repeat the question or
20 10:05:12 you --
21 10:05:12 A. Please, please.
22 10:05:14 Q. We said after the tax department finalised its claim and
23 10:05:17 sales tax along with the penalties were imposed, what
24 10:05:20 mitigation steps did the operator take?
25 10:05:24 A. So we have been informed from our tax adviser here in

01 10:05:29 Amman, there has been --

02 10:05:32 Q. Can you raise your voice?

03 10:05:33 A. Yes, yes. We have been informed, because we at the

04 10:05:36 beginning it was very hard for us to learn the total

05 10:05:41 amount which was for us to pay, initial amount,

06 10:05:49 penalties, all this amounted to nearly double of the

07 10:05:54 initial amount.

08 10:05:56 At that time, I'm not sure about if it was something

09 10:06:02 new or for how long, but definitely for a short period,

10 10:06:05 it was announced an amnesty case for those that

11 10:06:11 voluntarily they will declare such kind of not paid

12 10:06:21 sales tax, and for this reason we took advantage of the

13 10:06:26 amnesty and we paid all the amounts -- not only for

14 10:06:32 2016, but for all the years later.

15 10:06:36 This was a very important amount which we paid and

16 10:06:42 we informed. It was a very important mitigation

17 10:06:45 measure, not only for the joint venture, but primarily

18 10:06:49 for the owner, because to our mind, was that we will

19 10:06:54 reimburse this total amount to the owner. So I think

20 10:06:59 that we did everything possible, as we could do for our

21 10:07:10 company.

22 10:07:15 Q. Okay. Few questions, if I may, on defence law costs ^

23 10:07:23 incurred by the JV.

24 10:07:27 When Covid-19 restrictions were imposed, where were

25 10:07:32 key project personnel located?

01 10:07:39 MR A NAJDAWI: One second, please.

02 10:07:44 Okay.

03 10:07:46 MR H KHIRFAN: Thank you.

04 10:07:48 A. So Covid, March -- February, actually, end

05 10:07:56 of February 2020, at that time, three persons from our

06 10:08:02 side, key personnel actually, ^^ Hadjidimoulas mu less,

07 10:08:07 davs no and colet sis, were absent, where abroad. So

08 10:08:18 this is the answer. These three key persons were

09 10:08:22 abroad, in Greece.

10 10:08:24 Q. Okay. And did you have other key personnel in Jordan?

11 10:08:28 A. Yes, we had other key personnel as well. We had, for

12 10:08:32 example, MrCy sis pap stays was the deputy of Chris to

13 10:08:39 mull my last and also responsible for other ^^ works in

14 10:08:44 the project. Mr Pet cay disforeman for piping works and

15 10:08:51 of course all the Jordanian people they were here on

16 10:08:59 site.

17 10:09:00 Q. Okay.

18 10:09:01 A. Ready for work.

19 10:09:02 Q. Okay. What efforts were made to return personnel to

20 10:09:09 Jordan, the personnel you mentioned, that they are

21 10:09:12 outside Jordan?

22 10:09:14 A. From the very beginning, first of all, measures were

23 10:09:23 imposeds, this defence law ^, and the all the flights

24 10:09:33 from Greece and from other countries to Jordan were

25 10:09:37 forbidden. So we were first of all we informed the

01 10:09:42 owner about that. We were following regularly and
02 10:09:47 continuous I will all these measures in order to see if
03 10:09:51 there is any window that we can use for them to travel.
04 10:09:58 I remember several letters explaining and then when
05 10:10:03 we followed the possibility, because I remember they
06 10:10:10 made some possibilities of -- they were announced the
07 10:10:17 stop of that ban for flights, always we were following
08 10:10:24 that and we were trying to issue tickets for them to
09 10:10:30 travel to Jordan.
10 10:10:32 Unfortunately, because of the situation worldwide,
11 10:10:37 repeatedly the restriction was off and the restriction
12 10:10:42 was applied again. This was happening every second
13 10:10:47 week, the same, the same.
14 10:10:51 The most important of our efforts was made in
15 10:11:00 summer, where on one hand side, the measures, they
16 10:11:06 seemed that they will be lifted soon. Because this was
17 10:11:11 happening of course abroad. On the other hand side, we
18 10:11:17 had been information about repatriation, special
19 10:11:21 repatriation flights, and we were asking GAM to assist
20 10:11:29 us, our personnel to travel with these repatriation
21 10:11:32 flights. Was not possible finally this to happen until
22 10:11:38 only July for crystal ruse I will tell you about that ^.
23 10:11:43 And then -- you want me to continue first of all.
24 10:11:46 Q. Please, because those measures, this was the question ^
25 10:11:52 ^^?

01 10:11:52 A. Then we followed also one possibility through green
02 10:11:58 countries, green countries at that time were some, not
03 10:12:02 Greece included, Cyprus actually was a green country,
04 10:12:07 because of the low level of infection and so on.
05 10:12:13 So I remember that following correspondence with the
06 10:12:18 authority, with the owner, two of these people, colet
07 10:12:28 sus and davs no, the operator, they were -- they made
08 10:12:32 a trip from Greece to Cyprus, in order to stay there for
09 10:12:38 14 days, this was the period for ^^ time and then to
10 10:12:47 travel from Cyprus to Jordan.
11 10:12:50 Unfortunately, I remember that at the moment that
12 10:12:54 they were about to -- the 14 days to pass, so ready to
13 10:13:00 travel, this possibility through green countries was
14 10:13:05 again licted and again the personnel, these two people,
15 10:13:09 they came back to Greece.
16 10:13:11 Finally, I have to say that with all these efforts,
17 10:13:17 with all this correspondence, continuous correspondence,
18 10:13:19 I remember very detaletted letters, if not every second
19 10:13:25 day, every week, explaining the situation, where we are,
20 10:13:30 what we are planning to do, what the reservations we
21 10:13:35 made.
22 10:13:35 Finally, Chris tolls do, he succeed to come in
23 10:13:42 Jordan, what is da mulus, mid of July if I remember
24 10:13:47 well, and not from Greece, from Frankfurt. So with some
25 10:13:52 repatriation flights, and of course with owner's

01 10:13:57 assistance, and this was important. And then the two
02 10:14:01 others, they succeed to come here in Amman a month later
03 10:14:09 and they entered to quarantine for 14 days and finally,
04 10:14:14 they were not able to go around until the end of August.
05 10:14:25 So imagine all this period.
06 10:14:26 Yeah. Okay, thank you.
07 10:14:29 For those personnel that were outside, were those
08 10:14:33 personnel still being compensated?
09 10:14:37 A. Those that were in Greece?
10 10:14:38 Q. Yeah.
11 10:14:39 A. Yes, of course.
12 10:14:40 Q. Okay. From the JV?
13 10:14:43 A. From the JV, yes. These people, they were very critical
14 10:14:48 personnel, critical for the companies, critical for the
15 10:14:51 work of the JV. So we could not think of anything else.
16 10:15:00 Actually, have to tell you, very honestly, that the part
17 10:15:03 of their salaries related to the expatiation, let's call
18 10:15:10 it like this, we finally request from us, they accepted
19 10:15:17 that we didn't pay for this period. But all the other
20 10:15:21 salaries, for the normal salaries were paid
21 10:15:28 continuously.
22 10:15:29 Q. Did you do anything to mitigate the financial burden of
23 10:15:33 this.
24 10:15:39 Sorry?
25 10:15:40 A. Shall I?

01 10:15:40 Q. Yeah.

02 10:15:41 A. One example is what I just said. About the personnel,

03 10:15:44 the other personnel on site. Unfortunately, we were

04 10:15:50 obliged to follow the defence law. So I remember that

05 10:15:56 not only we were paying the salaries, but we were paying

06 10:16:04 also in addition for those that they were working

07 10:16:09 150 per cent I remember, 50 per cent more.

08 10:16:11 Q. Okay. Mr Grammatas, you mentioned that the issues with

09 10:16:16 the flight restrictions were also happening abroad.

10 10:16:21 Just to clarify, did this affect your ability to bring

11 10:16:25 back the key personnel to Jordan? Were the measures

12 10:16:30 applied abroad affecting you or just the measures in

13 10:16:33 Jordan?

14 10:16:35 A. For us was something unusual, the measures applied in

15 10:16:40 Jordan. Was very strict. I mentioned what was

16 10:16:47 happening abroad as a fact that we all know that in this

17 10:16:52 period, everyone was worried. I remember that I was

18 10:16:56 taking flights, for example, we had at the time projects

19 10:17:00 abroad. I was travelling to Germany, of course with

20 10:17:05 measures, he was not forbidden.

21 10:18:15 MR T NAJDAWI: Mr Chairman, the witness is not answering the

22 10:18:27 questions in a direct way. The question 202602160001 Test test test.

23 10:21:47 MR H KHIRFAN: Engine 2 issue. When the issue of engine 2's

24 10:21:51 short block occurred in 2020, what difficulties did you

25 10:21:55 face in trying to correct this issue?

01 10:22:03 A. First of all, this happened within all this mess, with
02 10:22:10 Covid, and genset 2.
03 10:22:18 We tried, stopped, so we tried to communicate with
04 10:22:26 the manufacturer of the genset in Germany MWM. We tried
05 10:22:33 to communicate, we did communication with the authorised
06 10:22:40 service provider Iltekno, MWM in Turkey. It was
07 10:22:48 difficult even and I remember that because I was trying
08 10:22:51 to make that communication with MWM in Germany, they
09 10:22:57 were practically not in operation, because of the Covid
10 10:23:05 situation, and finally we succeed to conduct conference
11 10:23:12 calls with participation of all those, so Germany,
12 10:23:17 Turkey, from our side as well, and we -- I think that
13 10:23:30 I went further from your question.
14 10:23:32 Q. Can read from the screen, if you want?
15 10:23:35 A. Yes, yes.
16 10:23:39 So the question? So to avoid that I go further,
17 10:23:43 what was the question? What was the problem? The
18 10:23:47 problem --
19 10:23:48 Q. What difficulties did you face in trying to correct this
20 10:23:50 issue? Your difficulty --
21 10:23:52 A. The difficulties were first that the people as we
22 10:23:56 normally did from Turkey, so the services were not
23 10:23:59 possible, able to travel, one. Secondly, the
24 10:24:03 manufacturer from where the spare and consumables they
25 10:24:11 would be ordered, they were closed and they could not

01 10:24:17 provide this to us.

02 10:24:18 And most important is this in order to maintain ^

03 10:24:23 which was a very primarily aim to maintain the

04 10:24:28 guarantee, that we were not able to make any work, any

05 10:24:38 major work to the genset. So it was onlytry in this

06 10:24:44 were the instructions, that the service providers from

07 10:24:49 Iltekno, they would travel, make all the works, check,

08 10:24:55 investigate the problem and then order the spare parts.

09 10:24:59 All this was not possible to take place.

10 10:25:03 Q. Why you didn't fix this yourself?

11 10:25:07 A. It was not the correct way of doing. We tried, we

12 10:25:12 tried, actually, through video conference to make some

13 10:25:16 efforts to for the people in Turkey to see. This was

14 10:25:20 not possible to see. I mean, inside. This was not

15 10:25:24 possible to be successful and finally, other measures

16 10:25:31 took place about the fixing.

17 10:25:38 Q. As far as you're aware, until the date you were still

18 10:25:40 involved with the JV, were there any unpaid invoices for

19 10:25:45 services rendered by the JV?

20 10:25:49 A. Until the moment I was involved, yes, of course there

21 10:25:54 were unpaid invoices and this was till beginning of 2022 -- excuse me, 2022,

22 10:26:05 yes, because then I was not involved any more.

23 10:26:06 Q. Did you perform the services?

24 10:26:08 A. Of course, of course -- (overspeaking) -- ^^ we have

25 10:26:11 taken the final certificate and without objection,

01 10:26:17 actually.

02 10:26:17 Q. What were the services corresponding to this invoices?

03 10:26:21 A. The services were corresponding to the operation and to

04 10:26:26 the construction, construction of phase 4 and operation

05 10:26:31 of phase 3.

06 10:26:57 Q. ^^ can you just --

07 10:27:01 PRESIDENT: The answer is very clear.

08 10:27:04 MR H KHIRFAN: Okay.

09 10:27:04 PRESIDENT: He said the construction of phase 4 and the

10 10:27:06 operation of phase 3.

11 10:27:09 MR H KHIRFAN: On the confidentiality, do you know anyone by

12 10:27:12 the name of Zayeder has ban.

13 10:27:17 A. No ^name).

14 10:27:22 Q. Does Zayeder has ban have any relation to the operator

15 10:27:25 or the JV or --

16 10:27:27 A. I never heard the name.

17 10:27:30 Q. Okay. On the handover context, when did GAM inform you

18 10:27:35 that they will be handling over operations of the site

19 10:27:39 to the Jordan Biogas Company?

20 10:27:44 A. Somewhere in February, March 2021. February actually

21 10:27:50 because this was the correspondence we had and we were

22 10:27:54 asking them to send the personnel for training. So

23 10:27:58 information came earlier, but until that moment nothing

24 10:28:02 happened. So we were asking them continuously to send

25 10:28:05 the personnel from the Biogas company to receive the

01 10:28:10 training.

02 10:28:13 PRESIDENT: Excuse me. Did you say that the information

03 10:28:17 came earlier than February?

04 10:28:19 A. The information came earlier, that the Biogas company

05 10:28:22 will undertake the --

06 10:28:25 PRESIDENT: Okay, but earlier -- before February do you m

07 10:28:30 mean?

08 10:28:30 A. In beginning of 2021.

09 10:28:35 MR H KHIRFAN: When was this confirmed that Biogas will be?

10 10:28:39 A. I remember as a fact for us that the Biogas company

11 10:28:43 would undertake. That is why I remember our letters

12 10:28:47 asking for owner to send the personnel as soon as

13 10:28:51 possible.

14 10:28:54 Q. What about the proposals they requested from you, GAM?

15 10:29:01 MR T NAJDAWI: Objection, Mr Chairman. This is not within

16 10:29:04 the purposes ^ Mr Ahmad Najdawi ^. Of this witness.

17 10:29:10 (Mr A ^.

18 10:29:15 PRESIDENT: Okay. ^^.

19 10:29:19 MR H KHIRFAN: Fairness. (Arabic spoken).

20 10:29:21 PRESIDENT: Okay.

21 10:29:23 MR H KHIRFAN: On H2S, when the issue of high H2S was

22 10:29:29 discovered in December 2020, did you request additional

23 10:29:32 payment from GAM for the remaining duration of the

24 10:29:36 contract.

25 10:29:37 MR A NAJDAWI: Objection, additional ^^ within the

01 10:29:39 testimonial purpose.

02 10:29:40 MR H KHIRFAN: No, H2S issue is and it was main thing.

03 10:29:45 PRESIDENT: It is related to the H2S. I will allow the

04 10:29:47 question. Please answer.

05 10:29:51 A. Again.

06 10:29:51 MR H KHIRFAN: When the issue of high H2S was discovered

07 10:29:55 in December 2020, did you request additional payment

08 10:29:58 from GAM for the remaining duration of the contract?

09 10:30:02 A. In connection to, no.

10 10:30:10 Q. Nothing further from my side.

11 10:30:12 PRESIDENT: Okay.

12 10:30:15 SECRETARY: Excuse me, on page 14 the witness ^^ ^ on

13 10:30:34 page 14, the witness mentioned some names that I would

14 10:30:38 like him to write down, so the transcript can have it.

15 10:30:41 PRESIDENT: Okay.

16 10:30:45 MR H KHIRFAN: Just for the record, is this request from the

17 10:30:49 secretary of the tribunal on this or.

18 10:30:53 PRESIDENT: It is from the Lloyd Michaux. They didn't

19 10:31:00 follow the exact names of the key personnel who were

20 10:31:03 absent, they were in Greece, or the key personnel who

21 10:31:09 were in Jordan.

22 10:31:11 MR H KHIRFAN: I didn't understand the question.

23 10:31:13 SECRETARY: If you like, I can show both counsels the names

24 10:31:15 once he.

25 10:31:16 (Discussion off the record) ^.

01 10:31:33 PRESIDENT: It is time for the break.

02 10:31:58 MR A NAJDAWI: Mr Chairman, can you please direct him not to

03 10:31:59 speak to anyone.

04 10:32:01 PRESIDENT: Okay. I will.

05 10:33:24 (Discussion off the record)

06 10:33:32 PRESIDENT: Mr Grammatas, we'll take a short coffee break.

07 10:33:35 You are not allowed to discuss your testimony with any

08 10:33:41 of the other witnesses or the members of the counsel's

09 10:33:47 team or anybody else.

10 10:33:49 WITNESS: Of course.

11 10:33:50 PRESIDENT: Okay?

12 10:33:52 MR A NAJDAWI: How long is the break, Mr Chairman?

13 10:33:58 PRESIDENT: 30 minutes.

14 10:34:04 (10.34 am)

15 10:34:06 (Short break)

16 10:34:08 (11-point

17 10:55:54 Test test test test

18 10:59:32 (11.00 am)

19 11:00:42 PRESIDENT: We'll reconvene.

20 11:00:48 Mr Najdawi, it is your turn now.

21 11:01:03

22 11:01:03 Cross-examination by Mr A Najdawi

23 11:01:06 PRESIDENT: Mr Grammatas, now Mr Najdawi to cross-examine

24 11:01:14 you.

25 11:01:16 MR A NAJDAWI: Hello, Mr Grammatas?

01 11:01:17 A. Hello.

02 11:01:18 Q. Would you like me to continue addressing you as

03 11:01:20 Mr Grammatas? Is that fine for you?

04 11:01:23 A. Dimitrios.

05 11:01:24 Q. Dimitrios.

06 11:01:26 A. What is more convenient for you.

07 11:01:33 Q. Dimitrios, my first question is related to the what took

08 11:01:40 place in yesterday's hearing. I just wanted to

09 11:01:42 double-check with you. Were you informed whether

10 11:01:46 directly or indirectly, or were you -- did you come --

11 11:01:52 were you brought to awareness in relation to what took

12 11:01:58 place in yesterday's hearing, in any way, shape or form?

13 11:02:04 A. About what happened yesterday?

14 11:02:06 Q. Mm-hmm?

15 11:02:07 A. No, I was not. I arrived late in any case. I ate here

16 11:02:11 to the restaurant and I went to my room.

17 11:02:14 Q. So you were not told anything, whether directly or

18 11:02:17 indirectly --

19 11:02:18 MR H KHIRFAN: He answered the question.

20 11:02:20 MR A NAJDAWI: So you were not told anything, whether

21 11:02:21 directly or indirectly, about yesterday's --

22 11:02:25 Yes, I confirm.

23 11:02:26 MR H KHIRFAN: Objection. Foo please don't interrupt me.

24 11:02:28 PRESIDENT: Without objections, okay.

25 11:02:31 MR H KHIRFAN: Because he asked the same question twice.

01 11:02:33 MR A NAJDAWI: Mr Chairman, this is my cross-examination.

02 11:02:35 PRESIDENT: Okay.

03 11:02:36 MR A NAJDAWI: It's a right for us to request the question

04 11:02:39 three and four times.

05 11:02:46 Dimitrios, you have mentioned meetings taking place

06 11:02:52 prior to the signature of the 2015 agreement regarding

07 11:02:57 exemptions, tax exemptions?

08 11:03:02 A. Before the second phase you mean?

09 11:03:04 Q. Yes.

10 11:03:05 A. Yes.

11 11:03:07 Q. Were you present in all of those meetings?

12 11:03:11 A. All the meetings that happened, yes, I was present, yes.

13 11:03:16 Q. When you say that GAM told you --

14 11:03:18 A. To all these kind of meetings, to technical meetings,

15 11:03:22 possibly not, but all such kind of meetings, yes.

16 11:03:28 Q. So who was present from GAM's side in those meetings?

17 11:03:34 Especially the meeting that related to a discussion over

18 11:03:37 tax exemptions, where you have stated that GAM said they

19 11:03:42 would handle all the tax procedures, so that's a meeting

20 11:03:46 that took place prior to phase 2?

21 11:03:49 A. Yes.

22 11:03:50 Who was present from GAM's side at that meeting?

23 11:03:53 MR H KHIRFAN: May I?

24 11:03:55 PRESIDENT: No. Please don't. Please don't. He answered

25 11:03:59 the question.

01 11:04:01 MR H KHIRFAN: Yeah, but --

02 11:04:02 PRESIDENT: In due course.

03 11:04:04 MR H KHIRFAN: Just to understand, because there is minutes

04 11:04:06 of meeting and there is --

05 11:04:09 MR A NAJDAWI: They're unsigned Mr Chir. We're not going to

06 11:04:11 go through this. This is my right to cross-examine the

07 11:04:14 witness. He's your witness. And I don't want to be

08 11:04:17 interrupted Mr Chairman.

09 11:04:18 PRESIDENT: Okay. You have the right.

10 11:04:20 MR H KHIRFAN: It's fine. I understand, but just for the

11 11:04:22 record, just the smoothness of this cross, I know and

12 11:04:26 I'm aware about the role of the cross and you cannot be

13 11:04:29 interrupted, but this does not mean that counsel of

14 11:04:33 claimant can object on something related to the

15 11:04:37 formality.

16 11:04:37 MR A NAJDAWI: You didn't object.

17 11:04:39 PRESIDENT: You have the right to object, but.

18 11:04:41 MR H KHIRFAN: Exactly, I said may I to object?

19 11:04:43 PRESIDENT: But the question is very simple and --

20 11:04:47 MR H KHIRFAN: For this one it's fine, but just for the ...

21 11:04:49 PRESIDENT: Okay.

22 11:04:51 MR A NAJDAWI: Mr Dimitrios?

23 11:04:52 A. Again the questions please.

24 11:04:53 Q. Let me repeat the question. In the meeting which you

25 11:04:55 have answered earlier, GAM told you that they will

01 11:05:00 handle all the tax procedures, the tax exemption

02 11:05:03 procedures. That was a meeting as you have stated that

03 11:05:06 took place prior to phase 2. My question was who was

04 11:05:10 present from GAM in that meeting?

05 11:05:14 A. My proper reply is the following. To every such kind of

06 11:05:17 meeting, I was present as well, together with Mr Chris,

07 11:05:24 about -- allow me to finish my dear. ^^ in the specific

08 11:05:27 meeting you mentioned, I think that better is to see the

09 11:05:31 minutes of the meeting. I'm certain that --

10 11:05:35 PRESIDENT: Excuse me. No.

11 11:05:37 A. But I cannot recall --

12 11:05:40 PRESIDENT: You can answer that I don't recall. But don't

13 11:05:45 direct the counsel what to read and whatnot to read.

14 11:05:50 A. Okay. So I will rephrase. We tried to -- we were

15 11:05:55 asking to every such important meeting the city manager

16 11:06:00 or even the mayor sometimes --

17 11:06:03 MR A NAJDAWI: This was not my question, Mr Chairman. Who

18 11:06:04 was present -- you said that GAM told you during the

19 11:06:07 meeting that they will handle all the tax --

20 11:06:10 A. I don't remember.

21 11:06:11 Q. So you remember what was said but you don't remember who

22 11:06:12 said it?

23 11:06:14 A. Of course.

24 11:06:14 Q. Was it the mayor of Amman?

25 11:06:16 A. I don't remember.

01 11:06:17 Q. Was the city manager?

02 11:06:19 A. A high official.

03 11:06:20 Q. A high official?

04 11:06:21 A. Yes. If not the mayor, the city manager definitely.

05 11:06:26 Q. But you don't remember --

06 11:06:27 A. No, I don't remember.

07 11:06:29 PRESIDENT: He already stated that previously, that he

08 11:06:33 remembers the phases and doesn't remember the names.

09 11:06:39 (faces ^.

10 11:06:39 MR A NAJDAWI: The positions, Mr Chairman. The positions --

11 11:06:43 PRESIDENT: He already answered this.

12 11:06:52 MR A NAJDAWI: Anyway, Dimitrios, what was the reason behind

13 11:06:58 having these discussions in the first place, discussions

14 11:07:01 about tax exemption? What prompted this discussion?

15 11:07:08 A. In 2015 you mean now? The amount of sales in tax and

16 11:07:21 duty and the other charges, but we put in our

17 11:07:23 calculation, in our offer, we sent to the owner.

18 11:07:29 Q. Can we please pull up exhibit R-27. This is the same

19 11:07:42 exhibit that we presented to --

20 11:07:46 PRESIDENT: Mr Constantinidis --

21 11:07:48 A. I will check here?

22 11:07:51 A NAJDAWI: Is it shown on your screen? You can just

23 11:07:53 have a look, Dimitrios, mind you.

24 11:07:56 So this is a letter, this is a cover letter, it

25 11:07:59 appears. If we go down, Jude, please. It is dated

01 11:08:05 25 February?

02 11:08:05 A. Mm-hmm.

03 11:08:06 Q. This says it's a technical and economical proposal for

04 11:08:08 the restoration of the contract and the continuation of

05 11:08:10 the project on cell number 1 and cell number 3." ^doc.

06 11:08:14 And you are saying below this subject line, that

07 11:08:20 you're hereby submitting such proposal for new phase 2,

08 11:08:22 the offer ^doc). Is this the offer that you just

09 11:08:25 mentioned?

10 11:08:27 A. I have to see the whole text.

11 11:08:28 Q. Go ahead. Please. This is your signature, correct?

12 11:08:33 A. Yes, of course.

13 11:08:43 Yes, okay. If you can just --

14 11:08:47 PRESIDENT: Scroll down, please, to the tables.

15 11:09:13 A. Okay. What is the question?

16 11:09:18 MR A NAJDAWI: I was just trying to be a bit helpful. You

17 11:09:23 mentioned that your offer was the one that prompted the

18 11:09:25 discussion. Is this the offer that you're just

19 11:09:27 mentioned, the offer for phase 2?

20 11:09:30 A. There is an offer saying with -- a chapter saying how

21 11:09:35 much are the costs for the taxes.

22 11:09:38 Is this the offer that you were just looking at, the

23 11:09:41 entire thing, the entire document?

24 11:09:47 A. 605, yes.

25 11:09:49 Q. Dimitrios, could you please tell us why did you bring up

01 11:10:08 an issue with taxes at that point in time, in the offer?

02 11:10:15 A. What do you mean why? It's part of our cost.

03 11:10:19 Q. Okay.

04 11:10:22 A. It says there. It says what exactly is part of our cost

05 11:10:26 implication and detail, taxes, levies and other charges.

06 11:10:30 It's clear why.

07 11:10:31 Q. Let go of the exhibit. I just wanted to ask you,

08 11:10:33 Dimitrios. Was this because you had thought earlier in

09 11:10:41 2010 that there was a tax exemption for the project, but

10 11:10:44 at the time you progressed for cell 1, you --

11 11:10:49 A. Suffering from that, yes.

12 11:10:52 Q. So you understood after you signed the initial contract

13 11:10:54 agreement in 2012, or possibly even before, that there

14 11:10:58 was no tax exemption for this project; correct?

15 11:11:02 A. When we gave the offer in 2010, we have the impression

16 11:11:07 that the project would not be charged with such kind of

17 11:11:12 expenses.

18 11:11:15 Q. When did you realise --

19 11:11:16 A. It was a project of World Bank and all our experience

20 11:11:19 from previous cases ^^.

21 11:11:21 Q. When did you realise that the project was not subject to

22 11:11:24 tax exemption? Shortly afterwards or --

23 11:11:30 A. During the discussions we had after our offer till the

24 11:11:34 signing of the contract and then of course when we had

25 11:11:40 all these costs during the implementation of phase 1.

01 11:11:45 Q. You're talking about the period between 2011 up until
02 11:11:50 2014?
03 11:11:50 A. 2014, yes, when the project was finished, yes, the phas
04 11:12:03 phase.
05 11:12:03 Q. Dimitrios, did you inform GAM during the bidding stage,
06 11:12:15 the initial bidding stage, did you ask them whether
07 11:12:19 there's a tax exemption for the project?
08 11:12:23 A. In 2010 you mean?
09 11:12:25 Q. In the bidding phase, yeah.
10 11:12:27 A. No.
11 11:12:28 Q. Didn't ask them?
12 11:12:32 A. It was for us by reading the understand that we obtained
13 11:12:35 that the sales and the charges will not part of our cost
14 11:12:42 ^. We didn't ask.
15 11:12:48 Q. Could you please pull up exhibit C-1. This is the
16 11:13:09 evidence of the claimant, Mr Chairman.
17 11:13:14 In this letter, you see it's dated 29 December 2010.
18 11:13:19 Okay?
19 11:13:20 A. After the submission of our bid.
20 11:13:21 Q. After submission of the bid.
21 11:13:24 So after the submission of the bid, this letter came
22 11:13:27 and as it mentions, Dimitrios, if you could please have
23 11:13:32 a look, it talks about whether there's a tax exemption
24 11:13:36 on imported items; correct?
25 11:13:40 A. One second. Let me read. (Pause).

01 11:13:50 Okay, go on, but leave it there, please.

02 11:13:52 Q. What was GAM's response to this, in we can go to the

03 11:13:56 letter below it, let me rephrase the question.

04 11:13:59 Do you remember receiving this response from GAM?

05 11:14:04 If I may please just go up to the screen,

06 11:14:07 Mr Chairman.

07 11:14:08 PRESIDENT: Okay.

08 11:14:17 MR A NAJDAWI: I just want to -- it's okay.

09 11:14:21 Do you remember this response being received from

10 11:14:24 GAM?

11 11:14:24 A. No, no, not now at least, I don't remember this.

12 11:14:29 Q. Okay. In the paragraph which starts with on the issue

13 11:14:38 of taxes ...", okay, in the second sentence, which

14 11:14:44 starts:

15 11:14:44 "And further ITB, this is the 3.11(2) states

16 11:14:52 clearly ..." ^doc.

17 11:14:53 Can you please read this out?

18 11:14:55 A. "For the purpose of submitting bids bedders should note

19 11:14:59 that the bid price shall include all taxes, duties,

20 11:15:02 levies, charges of the owner's country in accordance

21 11:15:06 with the contract. The bid price shall not take into

22 11:15:10 account any tax exemptions ..." ^doc.

23 11:15:12 Okay.

24 11:15:14 Q. Then the last sentence is:

25 11:15:15 "The bid price ^doc) this is part of the same

01 11:15:18 quotation.

02 11:15:21 A. The last -- the bid price.

03 11:15:22 Q. Yes.

04 11:15:23 A. Do you want me to read.

05 11:15:24 Q. Yes, please.

06 11:15:25 A. The bid ill ^reading...) into account any tax

07 11:15:28 exemptions, reductions or privileges that may be

08 11:15:31 available to the bidder in the owner's country." ^doc.

09 11:15:36 Okay.

10 11:15:38 Q. Okay. Did you ever tell GAM prior to 2021, that you

11 11:15:49 wanted an exemption on imported services?

12 11:15:55 A. Why we should?

13 11:15:56 Q. My question was very clear?

14 11:15:58 A. No.

15 11:16:00 Q. No?

16 11:16:06 Did GAM tell you that it only applied for sales tax

17 11:16:10 on goods?

18 11:16:11 A. Never.

19 11:16:13 Q. Were you privy as in did you receive in 2015, GAM's

20 11:16:24 applications to the Ministry of Energy regarding the tax

21 11:16:30 exemption?

22 11:16:31 You mean the whole procedure correspondence between GAM

23 11:16:34 and ministry?

24 11:16:35 Q. I asked a very --

25 11:16:37 A. Just ^^ the question, excuse me.

01 11:16:39 Q. My question was did you receive in 2015, on or about
02 11:16:43 that time, a copy of GAM's application to the Ministry
03 11:16:48 of Energy with regards to the exemptions?
04 11:16:54 A. I don't remember.
05 11:16:56 Q. Were you asked to provide lists of what you had to -- of
06 11:17:03 what you wanted to exempt from taxes?
07 11:17:07 A. We were asked to provide lists of materials and
08 11:17:12 equipment.
09 11:17:12 Q. Did you agree that whatever is to be tax exempted under
10 11:17:19 the 2015 regulations, had to be procured by GAM,
11 11:17:23 imported in GAM's name?
12 11:17:28 A. One seconds.
13 11:17:30 Because the question is not very clear for me.
14 11:17:34 The agreement was that all would be undertaken by
15 11:17:39 GAM? They were asking us, GAM, one after the other, and
16 11:17:45 the DBE were asking us give us lists of the materials
17 11:17:48 and equipment, you will import ^. This was our
18 11:17:53 correspondence. And we gave information in relation to
19 11:17:57 that exact question. Not only one.
20 11:18:00 Q. My question wasn't this. My was did you agree with GAM
21 11:18:04 in 2015 that whatever the Ministry of Energy allows
22 11:18:11 a tax exemption for will have to be imported by GAM
23 11:18:15 under the name of GAM?
24 11:18:21 A. The agreement was that GAM will make all the
25 11:18:29 actions -- (overspeaking) -- ^^.

01 11:18:29 Q. This is not the question?

02 11:18:30 A. Ing this my answer.

03 11:18:31 Q. No, you'll either tell me no, yes or you don't recall.

04 11:18:35 A. Again the question and I will answer like that.

05 11:18:39 Q. My question was did you agree with GAM that whatever the

06 11:18:46 Ministry of Energy approves an exemption for will have

07 11:18:52 to be imported by GAM and under the name of GAM?

08 11:18:58 A. My answer to that question is no.

09 11:19:01 Q. Did you know, did you agree with GAM that if any goods

10 11:19:09 have a tax exemption from the Ministry of Energy, these

11 11:19:13 will have to be imported by GAM and under the name of

12 11:19:18 GAM?

13 11:19:20 A. No.

14 11:19:20 Q. You're saying no?

15 11:19:21 A. I said that to my understanding at least -- excuse me,

16 11:19:27 my understanding is and was and still even if I'm away

17 11:19:31 for four years, that GAM undertook all responsibility to

18 11:19:38 make the actions and in order to take the exemption.

19 11:19:46 And I remember charge touristically that GAM in the

20 11:19:49 correspondence is saying to many instances, either they

21 11:19:54 do their selfs and they pay and they make tax exemption,

22 11:19:58 or they do their selfs and they pay the amount for the

23 11:20:04 sales tax -- (overspeaking) -- ^^.

24 11:20:06 Q. Mr Dimitrios, I didn't ask you ^^?

25 11:20:08 PRESIDENT: Excuse me, Mr Dimitrios -- (overspeaking) -- ^^?

01 11:20:10 A. I don't understand the question sometimes.

02 11:20:11 PRESIDENT: The question is very clear and simple.

03 11:20:13 MR A NAJDAWI: The question is very clear. Sorry, sir ^^.

04 11:20:15 PRESIDENT: You didn't answer the question. The question

05 11:20:18 was very simple. Were you informed that the imported

06 11:20:25 goods shall be imported under the name of the GAM?

07 11:20:30 A. That's why we gave lists, yes.

08 11:20:34 PRESIDENT: You were informed?

09 11:20:35 A. Yes.

10 11:20:36 PRESIDENT: Okay.

11 11:20:38 A. I suppose that was the reason that they were asking us

12 11:20:40 the lists.

13 11:20:42 MR A NAJDAWI: Can we please pull up exhibit R-54.

14 11:21:05 So Dimitrios, if I may please ask first, does this

15 11:21:08 carry your signature, this letter?

16 11:21:10 A. I have to see beneath.

17 11:21:12 Q. If we can go down?

18 11:21:15 PRESIDENT: Scroll down.

19 11:21:16 A. Yes.

20 11:21:20 MR A NAJDAWI: R-54, the second page, can we go to the

21 11:21:24 second page, please.

22 11:21:26 And this is your signature here as well?

23 11:21:28 A. Yes.

24 11:21:30 Q. So in the opening paragraph you're saying --

25 11:21:33 A. Allow me to read it. You have a very fresh. For me it

01 11:21:37 is not fresh.

02 11:21:38 Q. Go ahead. (Pause).

03 11:21:58 A. Okay.

04 11:22:06 Q. So you've agreed to this condition; correct?

05 11:22:08 A. Yeah, that's why we were asking the lists, yes.

06 11:22:11 Q. What's that condition that you've agreed to?

07 11:22:15 A. This one.

08 11:22:16 Q. Which is?

09 11:22:17 A. Under the name of GAM.

10 11:22:19 Q. That all materials will enter Jordan under the name of

11 11:22:23 GAM?

12 11:22:23 A. Yes, yes.

13 11:22:24 Q. In order to benefit from the tax exemption correct?

14 11:22:26 A. But this is what we applied. I said before that we were

15 11:22:29 asking lists and we gave lists and revised lists,

16 11:22:35 et cetera ^.

17 11:22:40 Q. I'm not sure if I should wait for you, sha what ^.

18 11:22:43 Please.

19 11:22:48 I want to ask you a question, Mr Dimitrios. What is

20 11:22:54 your understanding of the word "materials"?

21 11:22:58 A. One second, excuses me. Here it says as a question I'm

22 11:23:02 not sure if I should wait for you.

23 11:23:06 (Discussion off the record) ^^ . Delete ^

24 11:23:11 Q. My question was what is your understanding of the word

25 11:23:14 "materials"?

01 11:23:18 A. Materials are equipment for the construction, for the
02 11:23:27 installation --
03 11:23:30 Q. Can it include, as per your understanding, does
04 11:23:32 materials include service deliverables?
05 11:23:38 A. No, of course not.
06 11:23:39 Q. Of course not. What about goods?
07 11:23:44 A. Practically the same.
08 11:23:46 Q. Same, so it doesn't include services?
09 11:23:49 A. Goods is more general, actually is everything that can
10 11:23:56 be used for the project, for the contract.
11 11:24:00 Q. So it includes services --
12 11:24:02 A. From terminology point of view, yes.
13 11:24:04 Q. Terminology. So from a terminology point of view, it
14 11:24:07 includes services?
15 11:24:09 A. You are referring now to the question from owner DE
16 11:24:17 China about to deliver lives?
17 11:24:20 Q. No, no, ^^?
18 11:24:22 MR H KHIRFAN: May I just one thing. Just objection,
19 11:24:24 please.
20 11:24:25 MR A NAJDAWI: Go ahead.
21 11:24:26 MR H KHIRFAN: I think my esteemed counsel is asking for
22 11:24:33 terminologies in English language for a witness that his
23 11:24:37 first language is not English and he's asking about
24 11:24:40 interpretations, what his opinion, what his perspective.
25 11:24:44 So I think --

01 11:24:46 MR A NAJDAWI: If I may, Mr Chairman.

02 11:24:49 PRESIDENT: No, the objection is not allowed. He is asking

03 11:24:53 about his understanding of the word, his understanding.

04 11:24:58 MR H KHIRFAN: Yeah, but from both --

05 11:25:00 PRESIDENT: Even it is not his language.

06 11:25:03 MR H KHIRFAN: But just for the record, for both parties,

07 11:25:06 that their English is not their first language -- ^^.

08 11:25:10 MR A NAJDAWI: Mr Chairman, they stated earlier that they do

09 11:25:13 not understand Arabic and that the language of the

10 11:25:15 contract is English and now asked about English they

11 11:25:17 don't know English anymore. This cannot --

12 11:25:20 MR H KHIRFAN: Didn't say we didn't know English.

13 11:25:23 PRESIDENT: They didn't say that.

14 11:25:24 MR H KHIRFAN: Exactly. -- (overspeaking) -- ^^ they said

15 11:25:26 that this witness and us English is not our first

16 11:25:29 language.

17 11:25:30 A. They replied. I replied.

18 11:25:32 PRESIDENT: It is not his first language, but he has been

19 11:25:34 asked about his understanding of the words, the terms.

20 11:25:41 And I think, Mr Ahmad, he answered your question.

21 11:25:45 About goods and materials.

22 11:25:47 A NAJDAWI: Okay.

23 11:25:48 Does goods include services or no.

24 11:25:50 MR H KHIRFAN: This is the question again?

25 11:25:53 A. Maybe.

01 11:25:54 MR A NAJDAWI: Maybe?

02 11:25:55 A. In some cases you're asking about that case because in

03 11:25:57 that case this is the wording. What exactly. In my

04 11:25:59 experience, about generally the contracts I faced in my

05 11:26:03 life.

06 11:26:03 Q. No, no, when we say a tax exemption on imported goods,

07 11:26:08 does that include a tax exemption on imported services?

08 11:26:13 A. For this specific project you mean or general bring.

09 11:26:17 Q. Yeah, for this specific project ^?

10 11:26:20 A. Maybe, I'm not sure. Excuse me --

11 11:26:23 Q. Mr Chairman, it's a very clear question?

12 11:26:25 A. Excuse me.

13 11:26:26 PRESIDENT: I think it was not answered ^?

14 11:26:28 A. I have not seen the question. -- (overspeaking) -- ^^ --

15 11:26:30 -- (overspeaking) -- ^^

16 11:26:31 PRESIDENT: Previously it was answered by the witness.

17 11:26:34 MR A NAJDAWI: Can we please go to this exhibit C102. This

18 11:26:39 is one of the exhibits of the claimant. Please read to

19 11:26:45 us the first paragraph, first of all does this carry

20 11:26:49 your signature?

21 11:26:50 A. Can I see?

22 11:26:52 Yes.

23 11:26:53 Q. Can we look at the first paragraph?

24 11:26:57 A. You want me to read?:

25 11:27:01 "Your Excellency, yes, we would like to bring to

01 11:27:03 your attention the following Au aster agreement wean the
02 11:27:08 owner and our joint venture, the project of Ghabawi
03 11:27:11 landfill is tag ex ^reading...) goods products and
04 11:27:14 services related to the implementation of the project."
05 11:27:18 ^doc.
06 11:27:18 Q. So are you defining goods as products and services in
07 11:27:21 this letter?
08 11:27:24 A. Yes.
09 11:27:42 Q. Did you read Dimitrios the 2015 -- okay, let me rephrase
10 11:27:47 based on yesterday's rephrasing of this question.
11 11:27:54 When you were told of the existence of the 2015
12 11:27:59 regulations, were these regulations reviewed by your
13 11:28:04 company and yourself?
14 11:28:07 A. By my company, yes, by both companies, also my company,
15 11:28:11 yes.
16 11:28:14 Q. Were you informed of any mechanism or process within
17 11:28:21 this relation for the purposes of procuring a tax
18 11:28:27 exemption?
19 11:28:28 A. Not any that I remember, but I remember the our tax
20 11:28:32 advisers they very carefully read the -- read that law
21 11:28:39 and we came to result that is applicable for our case.
22 11:28:44 This is what I remember.
23 11:28:47 Q. Your tax advisers are your local tax advisers and your
24 11:28:51 international or foreign tab advisers?
25 11:28:53 A. Both, both ^.

01 11:28:54 Q. Were you made aware that these regulations require
02 11:29:03 a presentation of what you're going to import to the
03 11:29:09 Ministry of Energy for the purposes of obtaining a tax
04 11:29:12 exemption on that import?
05 11:29:15 A. I don't remember that. I don't remember that we have
06 11:29:17 been -- I have been asking that matter. What
07 11:29:21 I remember, what I remember, allow me to finish, please.
08 11:29:24 What I remember is that it was clear for us that it
09 11:29:28 was of general application. So everything for the
10 11:29:33 implementation of the project was included to that law.
11 11:29:49 Q. You didn't know why you were providing the lists of
12 11:29:54 goods to GAM. Is that what you're saying?
13 11:29:58 A. What do you mean? When you were requested to provide
14 11:30:01 lists of materials ^ goods, whatever it may be, you did
15 11:30:05 not know why you were providing those lists?
16 11:30:08 A. Of course, because this was the urgent matter, so the
17 11:30:10 engineer was asking us what was about to come, yes.
18 11:30:15 Q. What was the purpose of that list if when you prepared
19 11:30:18 it, what was the purpose of of preparing that list? Was
20 11:30:22 it to submit it to the Ministry of Energy?
21 11:30:24 A. Not at the time. Was to inform what would be the list
22 11:30:31 of materials to be taken into account for the next
23 11:30:39 request to the ministry.
24 11:30:46 Q. Were you made aware whether this regulation requires
25 11:30:51 filing of documentation on anything that you procure

01 11:31:00 a tax exemption on under this regulation?

02 11:31:04 A. Can you repeat?

03 11:31:05 Q. Were you made aware that this regulation requires you to

04 11:31:10 file, whether with the customs department, the tax

05 11:31:13 department or any other authority, what you are actually

06 11:31:16 importing, insofar as whatever you are importing is

07 11:31:20 subject to an exemption?

08 11:31:23 A. No, I don't remember clearly that, because this was part

09 11:31:26 of the job of our tax advisers and our people doing

10 11:31:31 that. Excuse me, I cannot say that I remember.

11 11:31:33 Q. Thank you.

12 11:31:35 A. I told clearly before my understanding about the case.

13 11:31:40 Q. One question. Under this regulation, what exactly, in

14 11:31:49 terms of sales tax, what exactly did it provide? What's

15 11:31:53 the benefit that it provided?

16 11:31:57 A. I will read the question.

17 11:31:59 Q. No, the regulations --

18 11:32:00 A. No, to read your question. (Pause).

19 11:32:09 I read the question. Could you rephrase, please.

20 11:32:13 PRESIDENT: Do you have any objection.

21 11:32:14 MR H KHIRFAN: Yes, the question is ^^.

22 11:32:17 A NAJDAWI: I'll rephrase.

23 11:32:22 MR H KHIRFAN: I noted that he will rephrase, but just to

24 11:32:24 make it clear, if he's given to a Prof With law degree

25 11:32:30 in tax and financial, he might not be able to answer.

01 11:32:34 His question is really very addressed to, like, with
02 11:32:38 a legal context. He's a --
03 11:32:41 MR A NAJDAWI: I was asking whether he was made aware, but
04 11:32:42 for this last question, I will rephrase.
05 11:32:44 PRESIDENT: Okay.
06 11:32:45 MR A NAJDAWI: The question is and please if you want to
07 11:32:46 object, go ahead.
08 11:32:48 PRESIDENT: Okay.
09 11:32:49 MR A NAJDAWI: The question is, under this regulation, were
10 11:32:52 you informed whether this regulation provides for
11 11:32:58 a total exemption or a zero-rated sales tax?
12 11:33:06 A. I can again say my understanding from that period. That
13 11:33:10 it is general and to my understanding, was that
14 11:33:15 regardless if it was zero or exemption, for us would be
15 11:33:21 the same, because would not be charged for that.
16 11:33:24 Q. And that understanding is from your tax advisers;
17 11:33:27 correct, at the time?
18 11:33:28 A. Yes, this is what I had some as understanding, yes.
19 11:33:36 Q. So in your invoices for those imported services, which
20 11:33:41 are being all ledgered and which we do not dismiss to,
21 11:33:45 ^ did you include a 0 per cent sales tax in that invoic
22 11:33:56 invoice?
23 11:33:56 A. I don't remember, but I think that we include sales tax,
24 11:34:00 yes.
25 11:34:00 Q. 0 per cent?

01 11:34:03 A. No, not 0 per cent. The normal, say the normal tax.
02 11:34:07 But this is not again my job to say. All those invoices
03 11:34:12 were issued properly from our tax correspondence between
04 11:34:19 ^punct) the tax or the financial department in Greece,
05 11:34:23 in ^^ our company, from our side was Helector, and the
06 11:34:26 tax advisers here in Jordan.
07 11:34:29 Q. These were not filed with the sales tax department at
08 11:34:33 the time these invoices were issued; correct?
09 11:34:36 A. I don't remember. I don't remember. You're asking
10 11:34:39 me -- excuse me, you are asking me mechanism, which they
11 11:34:43 should not come to my attention.
12 11:34:47 Q. Just tell me I don't know?
13 11:34:48 A. No, no,ing what the proper answer to what I don't know
14 11:34:51 is no.
15 11:34:51 Q. You can say I don't know?
16 11:34:54 A. I don't know.
17 11:34:56 Q. Mr Chairman, one last question on the issue of tax and
18 11:35:11 I have other question on this matter, on this as expects
19 11:35:14 which I will have to confer with my colleagues to see
20 11:35:16 whether we're going to ask them or not. But the last
21 11:35:19 question on the issue of tax is at the time you
22 11:35:27 discussed towards, I think it was April 2021, the
23 11:35:30 discussions on the need to get a tax exemption with GAM
24 11:35:34 on the services, did you provide GAM with the contracts
25 11:35:42 and the invoices and the financial documentation

01 11:35:47 pertaining to those alleged imported services during the
02 11:35:50 discussions?
03 11:35:52 A. You mean after receiving the information about the
04 11:35:57 amount?
05 11:35:58 Q. Dimitrios, yes.
06 11:36:00 A. Yes.
07 11:36:00 Q. Did you submit the contracts and the invoices and the
08 11:36:05 financial documentation related to the imported services
09 11:36:09 to GAM?
10 11:36:10 A. No, because we were never asked for.
11 11:36:32 Q. Dimitrios, regarding the alleged changes in law that you
12 11:36:38 were asked about, which we see as something else?
13 11:36:44 A. You mean the Covid periods?
14 11:36:45 Q. The personnel and the key personnel?
15 11:36:48 A. During the Covid, yes.
16 11:36:52 Q. You said that tree of your key personnel ^ left Jordan
17 11:36:58 prior to the travel ban; correct?
18 11:37:01 A. They were absent, I said.
19 11:37:03 Q. They were absent?
20 11:37:04 A. Yes. One actually Mr Christodouloss no ^ were before in
21 11:37:09 normal leave and the others they left just days before
22 11:37:15 the airport closed. Three were absent.
23 11:37:23 Q. So when you said in your earlier statement above that
24 11:37:27 the key personnel left in end of February, you're just
25 11:37:35 explained that this was only Mr Christodoulos or Haji

01 11:37:39 I think the nickname is ^. As for the two other
02 11:37:44 personnel, they left days before the travel ban, so that
03 11:37:48 would be in March?
04 11:37:50 A. If you go --
05 11:37:52 MR H KHIRFAN: ^^ record -- (overspeaking) -- ^^.
06 11:37:53 A. One second, one seconds. My answer before --
07 11:37:56 PRESIDENT: Yes, please.
08 11:37:57 A. My answer before was that the measures started
09 11:38:02 in February. When Christodoulos loss made his trip for
10 11:38:06 his normal leave to Greece, and when the others left,
11 11:38:10 excuse me, but I never said that this was at the end
12 11:38:12 of February. Possibly was the first day of March.
13 11:38:14 I never said it. I cannot remember. This was my answer
14 11:38:17 and still the same.
15 11:38:19 MR A NAJDAWI: Okay. You stated that Christodoulos left on
16 11:38:26 ordinary an kule leave?
17 11:38:27 A. Yes, yes, he has two, three during the year and one was
18 11:38:31 this, yes.
19 11:38:32 Q. And there was a deputy?
20 11:38:33 A. MrCy vis Papistas ^^.
21 11:38:36 Q. And that Mr Zisis Papistas do he have filled in
22 11:38:43 Mr Christodoulos role?
23 11:38:43 A. Yes, of course.
24 11:38:49 Q. What stage were the construction works in, Dimitrios, at
25 11:38:54 that very point in time? Do you recall?

01 11:38:57 A. What stage the construction?

02 11:38:58 Q. Yes. Was it in the midst of construction? Was it

03 11:39:01 towards the end of construction works? Was it at the

04 11:39:04 beginning? Roughly speaking?

05 11:39:06 A. You mean phase 4 now?

06 11:39:07 Q. Yes.

07 11:39:08 A. Yes. They were on going and we had a lot of Biogas

08 11:39:18 wells to implement. That's why the absence of the ^ ^

09 11:39:25 operator and the foreman ^^ Davanos che advertise these

10 11:39:29 two positions was critical.

11 11:39:37 Q. Is it normal in your company to have a project manager

12 11:39:44 such as Mr Christodoulos leaf on annual leave at that

13 11:39:50 stage of the construction?

14 11:39:55 A. Absolutely. That's why he has a deputy.

15 11:39:58 Q. That's why he has a deputy?

16 11:39:59 A. In any case, when Mr Christodoulos left, because

17 11:40:04 Mr Christodoulos were here continue aces I will living

18 11:40:07 in Amman from beginning of phase 1?

19 11:40:10 A. Mr Christodoulos you will meet him tomorrow, he's

20 11:40:17 a person who is very a part of competent, he's

21 11:40:23 performing his duty very well, so he has in his mind in

22 11:40:28 is possible to leave or not, so when he has taken in

23 11:40:32 accordance with our acceptance, the decision to make his

24 11:40:37 short, when we say leave normally this is a week or

25 11:40:41 possibly including week ends in both sides of the week.

01 11:40:46 This is the leave. So we don't consider that the leave
02 11:40:49 would be for a no.
03 11:40:54 Q. Dimitrios, so you approved this leave because he had
04 11:41:02 a deputy, you said?
05 11:41:02 A. Yes, yes.
06 11:41:03 Q. Did the drilling operators have a deputy?
07 11:41:07 A. No.
08 11:41:10 Q. Why did you allow them to leave, then?
09 11:41:13 A. How is possible for someone under these conditions
10 11:41:19 learning their family in Greece being in Jordan working
11 11:41:25 hardly in landfill environment and hearing, learning
12 11:41:30 about the Covid and all this mess? Anyone really could
13 11:41:36 deny them to take, I suppose was the last or one before
14 11:41:41 the last flights for going back home. Excuse us, but
15 11:41:47 I do not regret that together with my partner, we
16 11:41:53 accepted that. And I can tell you that honestly I would
17 11:41:58 do the same in their position. I would request to leav
18 11:42:00 leave.
19 11:42:00 Q. Did you request at the time they left before they left,
20 11:42:10 did you request GAM's approval of their departure from
21 11:42:17 Jordan?
22 11:42:17 Why?
23 11:42:18 Q. We never --
24 11:42:19 Q. I'm asking a question?
25 11:42:20 A. No, no.

01 11:42:33 Q. Mr Chairman, if you could please direct them not to
02 11:42:35 speak. Please.
03 11:42:39 PRESIDENT: Direct who?
04 11:42:41 MR A NAJDAWI: I'm hearing chatter.
05 11:42:42 PRESIDENT: Okay. Please.
06 11:43:09 (off the record discussion in Arabic)
07 11:43:40 MR A NAJDAWI: A quick question just on the defence laws,
08 11:43:43 Mr Chairman, if I may.
09 11:43:46 Were you informed about the content of defence law
10 11:43:52 in Jordan and the defence ordinances in general?
11 11:43:58 A. Yes, at the time we have been informed properly, yes,
12 11:44:00 about restrictions to work, about restrictions to move,
13 11:44:03 about restrictions for construction works, about all
14 11:44:06 these restrictions, yes, of course.
15 11:44:08 Q. Were you informed whether this law --
16 11:44:12 A. Whether?
17 11:44:13 Q. Whether this law imposes a suspension on contracts for
18 11:44:22 as long as it prevents the performance of such contract?
19 11:44:30 A. Can you rephrase.
20 11:44:32 MR H KHIRFAN: Objection.
21 11:44:32 PRESIDENT: You want to object.
22 11:44:34 MR A NAJDAWI: I won't ask it, Mr Chairman. I won't
23 11:44:36 continue this.
24 11:44:36 PRESIDENT: Okay. Khalas?
25 11:44:38 A. But I didn't understand the question.

01 11:44:40 PRESIDENT: No, don't answer the question.

02 11:44:43 MR H KHIRFAN: It's okay.

03 11:44:44 MR A NAJDAWI: It's on the record. It's on the record.

04 11:44:49 For engine 2 Dimitrios, you've mentioned earlier

05 11:44:57 that you were unable to fix the issues with the engine

06 11:45:04 yourself be having I think it was MWM virtually?

07 11:45:10 A. Not unable.

08 11:45:11 PRESIDENT: ^^ I think.

09 11:45:14 MR A NAJDAWI: Iltekno?

10 11:45:15 A. I never said unable. We were not allowed to do all

11 11:45:21 these reparation alone.

12 11:45:24 Q. What was wrong with engine 2?

13 11:45:26 A. From technical point of view, I'm not sure. The engine

14 11:45:29 2 stopped.

15 11:45:31 Q. Do you recall whether the engine block of engine 2 was

16 11:45:37 fractured or was cracked, broken?

17 11:45:44 A. No, I don't remember.

18 11:45:45 Q. You don't recall?

19 11:45:46 A. I don't remember the exact reason, because I want to be

20 11:45:48 precise, and I think you deserve me to be precise to

21 11:45:52 what I tell you.

22 11:45:53 Q. Yes. Is a fracture --

23 11:45:58 ¶202602160035A. A big issue.

24 11:46:00 Q. Big issue?

25 11:46:01 A. Big issue.

01 11:46:01 Q. A fracture or a crack in the engine block of an engine
02 11:46:07 such as engine 2 a big issue?
03 11:46:10 A. Yes, of course.
04 11:46:19 Q. Could this have been caused by normal wear and tear?
05 11:46:24 A. During normal -- yes, of course.
06 11:46:27 Q. So normal wear and tear causes fractures in the engine
07 11:46:31 block?
08 11:46:31 A. Again, the question?
09 11:46:34 Q. Normal wear and tear in the engine?
10 11:46:38 A. No.
11 11:46:38 Q. No?
12 11:46:39 A. No. That's why we have taken all measures in order
13 11:46:46 everything to happen under the instructions of
14 11:46:51 manufacturer and the service provider. Exactly because
15 11:46:55 it was not something normal point.
16 11:47:06 Q. Were you in other instances able to fix or conduct
17 11:47:13 maintenance on engines virtually with Iltekno being
18 11:47:20 abroad?
19 11:47:21 A. No, I don't remember that we did any. Always Iltekno
20 11:47:25 was called to come, to travel, to make -- so actually
21 11:47:31 what I can reply is that we were allowed, and this was
22 11:47:35 the practice, in order to maintain the guarantee without
23 11:47:39 disputes, that we do only service changes. All this
24 11:47:45 daily and simple works.
25 11:47:49 Q. But you were able, were you able ^ to fix issues in

01 11:47:54 engines, as long as they're not big issues, without
02 11:47:58 having Iltekno on the ground doing that for you?
03 11:48:02 A. The personnel to do that was not available on site.
04 11:48:10 Q. Please answer my question?
05 11:48:13 A. No.
06 11:48:14 Q. So what was the issue with engines 1 and 3 in that time?
07 11:48:20 A. Other than the 2? They had some critical alarms.
08 11:48:25 Q. Critical?
09 11:48:27 A. This is a technicality about alarm from the system that
10 11:48:34 supervie vices the operation.
11 11:48:35 Q. Those were critical alarms?
12 11:48:38 A. Critical means that we should not take them for nothing.
13 11:48:44 Q. So it wasn't just normal fault alarms.
14 11:48:49 A. I remember it was called critical alarms. Critical by
15 11:48:52 the meaning that warning us that we should stop the
16 11:48:58 engine.
17 11:49:15 Q. These critical false alarms in engines 1 and 3 coincided
18 11:49:22 with, in terms of timing, in terms of the time, it
19 11:49:26 coincided with the issue, the big issue in engine 2?
20 11:49:31 A. No. Were 20 days later, a month later. Actually
21 11:49:36 I remember for the 2, 2, 1, 3, something like that. But
22 11:49:40 in between, there were 20 days for each.
23 11:49:46 Normal wear and tear, does it cause critical alarms in
24 11:49:49 the engines?
25 11:49:53 A. I cannot understand your question. If I am a civil

01 11:49:57 engineer, I cannot understand ^^ the question.

02 11:49:59 Q. It's okay. I won't --

03 11:50:01 A. Excuse me, excuse me, sir. Because you said before and

04 11:50:04 I catch that that it is recorded. So the answer is that

05 11:50:07 the question is there. My answer is that maintenance is

06 11:50:15 due normal maintenance in order with the presence of

07 11:50:21 lltckno, this was for us the maintenance due at the

08 11:50:24 time, in order to avoid the kind. This is my

09 11:50:28 question -- my answer.

10 11:50:34 DR AL BASHIR: Mr ^^ the word was false or fault, with T.

11 11:50:38 MR A NAJDAWI: Yes.

12 11:50:43 DR AL BASHIR: I'll change it ^. Fault alarm, not false ^.

13 11:50:49 Change and fix. ^.

14 11:50:51 PRESIDENT: No, I think you asked whether it was a false

15 11:50:54 alarm or not.

16 11:50:57 MR A NAJDAWI: Fault alarm.

17 11:50:58 PRESIDENT: Fault alarm, okay.

18 11:51:00 MR A NAJDAWI: I have to be honest. I can leave it as

19 11:51:02 false, its might be better, but I have to be honest.

20 11:51:05 PRESIDENT: Okay.

21 11:51:12 MR A NAJDAWI: Mr Chairman, if you allow us just five

22 11:51:14 minute, me and my colleagues to just discuss two

23 11:51:17 questions which we might wish.

24 11:51:19 PRESIDENT: Okay, you are allowed. Go ahead.

25 11:51:24 (11.51 am)

01 11:51:26 (Short break)

02 11:52:57 (11.56 am)

03 11:56:28 MR A NAJDAWI: Mr Chairman, we are ready. We wanted ^^

04 11:56:30 decided not to ask those two questions. We came up with

05 11:56:33 three questions.

06 11:56:33 PRESIDENT: Okay. You may proceed.

07 11:56:41 MR A NAJDAWI: I just wanted to ask you, Dimitrios, my first

08 11:56:44 question is what are your academic qualifications and

09 11:56:48 what is your role in the project?

10 11:56:51 A. In the contract?

11 11:56:52 Q. In the project.

12 11:56:54 A. So academic qualification, I'm civil engineer graduated

13 11:56:58 from --

14 11:56:59 PRESIDENT: Can you raise your voice, sir?

15 11:57:01 A. Civil engineer great waded from national university of

16 11:57:04 Athens Dr Whatshire ^.

17 11:57:09 MR A NAJDAWI: And your role in the project?

18 11:57:10 A. I had the role of representative having the role of --

19 11:57:15 Q. Not the contract, your role in the project.

20 11:57:20 A. Representative, one of the two representatives.

21 11:57:28 PRESIDENT: You answered the question, but he's not asking

22 11:57:31 about your role in the contract. In the project, on the

23 11:57:36 site he means, on the project or on other activities of

24 11:57:41 the project, like procurement, like technical, admin?

25 11:57:49 A. Everything related to the implementation of the contract

01 11:57:54 had our approval as representatives of the JV and
02 11:57:58 responsible for the implementation. So I mean we have
03 11:58:02 been following the time, the cost, the contract
04 11:58:07 management, all those that everyone in our position is
05 11:58:13 doing. I was not present on site, if you're asking that
06 11:58:15 I was not present on site. I have been I visited the
07 11:58:20 site three, four times. I had view from early, before
08 11:58:26 starting of phase 1, how the project looks like. So
09 11:58:30 I was able when receiving information, to understand
10 11:58:34 what is all about.

11 11:58:55 MR A NAJDAWI: Dimitrios, do you recall telling GAM by
12 11:59:02 virtue of a letter or on a call -- on a call, on a phone
13 11:59:06 call? On a phone call, telling GAM, that you will
14 11:59:11 withdraw from the project or some similar expression,
15 11:59:14 that you will not continue the project, if they do not
16 11:59:18 sign the 2015 agreement?

17 11:59:21 A. No.

18 11:59:21 Q. You don't recall that?

19 11:59:23 A. No.

20 11:59:26 Q. Could we please, Jude, pull up R-29.

21 11:59:59 A. Okay, yes.

22 12:00:00 Q. Do you recall this phone call?

23 12:00:02 I remember the phone call, yes. What I've said indeed
24 12:00:06 I've said that, but why this is not normal?

25 12:00:09 Q. Why? Okay. Go ahead?

01 12:00:11 MR T NAJDAWI: We are not talking about normal or not norma
02 12:00:16 normal.
03 12:00:16 MR A NAJDAWI: Two ahead?
04 12:00:17 A. Why is not nam Al we had already a phase implemented and
05 12:00:21 we were there discussing ends discussing. Okay.
06 12:00:24 Q. You mean it's normal for you to tell him on the phone
07 12:00:27 that if there is no progress, then we will withdraw?
08 12:00:31 A. I don't remember me saying that on the phone. If
09 12:00:34 I said, if Mr Save down is saying that, possibly I said
10 12:00:38 that, ZAIDOUN, but is normal that we want to know if we
11 12:00:43 continue or not. We had personnel involved, we had cost
12 12:00:46 running.
13 12:00:47 Q. Wasn't phase 2 part of your the original contract?
14 12:00:54 A. Yes, of course, but not that phase 2. A lot changed
15 12:00:58 technically.
16 12:01:00 Q. And my last question, Dimitrios, is did you always do
17 12:01:08 maintenance for the engines at the right time, at the
18 12:01:14 due time for such maintenance, in accordance with the
19 12:01:18 manufacturer's --
20 12:01:19 A. We always did you mean for that specific project.
21 12:01:22 Q. Yes.
22 12:01:22 A. Yes, of course.
23 12:01:24 Every time?
24 12:01:26 A. This is our guidelines to the personnel. This is what
25 12:01:29 we expect.

01 12:01:29 Q. You never deferred maintenance for a month or two month
02 12:01:36 months?
03 12:01:36 A. I'm pretty sure that we never did that.
04 12:01:40 Q. Can deferring maintenance for a month or two months lead
05 12:01:44 to severe damage in the engines?
06 12:01:51 A. Absolutely.
07 12:01:55 Q. Thank you, Mr Chairman.
08 12:01:56 PRESIDENT: Okay. The cross-examination is finished.
09 12:02:02 Now your turn, Mr Khirfan to the re-direct
10 12:02:07 examination.
11 12:02:08 ARBITRATOR: Can I ask for 20 minutes coffee break, please
12 12:02:11 ^.
13 12:02:12 PRESIDENT: Okay.
14 12:02:13 MR H KHIRFAN: Thank you.
15 12:02:17 MR A NAJDAWI: I had a break listed in the schedule.
16 12:02:20 PRESIDENT: Okay, but he's asking for a break. We'll allow.
17 12:02:24 MR A NAJDAWI: The next witness.
18 12:02:27 (Discussion off the record)
19 12:02:59 (12.01 pm)
20 12:03:01 (Short break)
21 12:03:06 (12.24 pm)
22 12:24:56 MR H KHIRFAN: I really apologise for everyone's time, for
23 12:24:58 this five minutes late. Please accept my apology.
24 12:25:03 A NAJDAWI: Just for Mr Hazem's awareness, I'm not trying
25 12:25:09 to be too picky with this. It's just that you're aware

01 12:25:12 that there will be extra charges from Lloyd's if
02 12:25:15 sequencing is pushed and we also have our own
03 12:25:18 arrangements that we need to meet.
04 12:25:24 PRESIDENT: Okay. Apology is accepted. Please proceed,
05 12:25:29 Mr Khirfan.
06 12:25:36
07 12:25:36 Re-examination by Mr H Khirfan
08 12:25:41 MR H KHIRFAN: Mr Grammatas, just to confirm ^^ testimony,
09 12:25:44 you're no longer working with hell core or any member of
10 12:25:46 the joint venture; correct?
11 12:25:47 A. No, I'm not.
12 12:25:48 Q. You're not?
13 12:25:49 A. I'm not.
14 12:25:50 Q. Okay. Since what date?
15 12:25:54 A. Beginning of January 2022.
16 12:25:58 Q. From January 2022 you're not with Helector or any of the
17 12:26:03 JV members. Okay.
18 12:26:05 In relation to my colleague's Ahmad question on
19 12:26:08 whether you ever told GAM before 2021 that you wanted an
20 12:26:15 exemption on design and consultancy services, to which
21 12:26:18 you answered no, this is the record. Can you confirm
22 12:26:24 did you tell GAM that you do not want an exemption on
23 12:26:29 design and consultancy services?
24 12:26:34 A. If we declare that we don't want ^^.
25 12:26:37 Yes, did you tell game that --

01 12:26:38 A. No.

02 12:26:39 Q. -- that you do not want --

03 12:26:40 A. No.

04 12:26:40 Q. An exemption on design and -- no. Did GAM ever ask you

05 12:26:45 whether you wanted an exemption on design --

06 12:26:47 MR A NAJDAWI: This was suspend -- (overspeaking) --

07 12:26:48 ^^ -- (overspeaking) -- ^^ this was conditioned in the

08 12:26:49 direct. This is already answered in the direct.

09 12:26:51 MR H KHIRFAN: No. But it's coming out of the cross.

10 12:26:54 PRESIDENT: I cannot recall, but I will allow the question.

11 12:26:59 MR H KHIRFAN: Did GAM ever ask you whether you wanted an

12 12:27:01 exemption on design and consult sir services?

13 12:27:05 A. No.

14 12:27:06 Q. Did GAM ever tell you that it would not be submitting an

15 12:27:11 exemption on design and consultancy services?

16 12:27:15 MR A NAJDAWI: In the direct. ^^.

17 12:27:17 MR H KHIRFAN: Or that ...

18 12:27:20 PRESIDENT: Let's not repeat the same questions because it

19 12:27:22 was answered.

20 12:27:32 A. We never had such discussion.

21 12:27:33 MR H KHIRFAN: The tribunal said not to answer. Don't

22 12:27:35 answer.

23 12:27:36 A. Okay.

24 12:27:37 Q. Did GAM ever tell you that the list of materials that

25 12:27:42 you were providing to GAM and the DBE would be the only

01 12:27:46 thing that GAM would submit an application on?

02 12:27:49 A. Of course not.

03 12:27:53 Q. We understand that you are an engineer. And you like to

04 12:27:58 be very specific. So to be clear, when you were

05 12:28:01 providing lists of materials, goods, equipment, were you

06 12:28:06 including and specifying services within this list?

07 12:28:12 A. No, was not the purpose of the question. The question

08 12:28:17 was provide us list of materials.

09 12:28:21 Q. Just to be more clear. Did you consider and know when

10 12:28:27 you preparing these list, that you also needed to

11 12:28:31 specify services, but did not include services within

12 12:28:33 that list because you didn't want this exemption on

13 12:28:37 services?

14 12:28:37 MR A NAJDAWI: This is leading, he's leading the question.

15 12:28:39 MR H KHIRFAN: It's redirect.

16 12:28:41 MR A NAJDAWI: It's not cross.

17 12:28:43 PRESIDENT: Excuse me, Mr Najdawi, I will allow the

18 12:28:47 question. Okay.

19 12:28:49 MR H KHIRFAN: Do you want me to repeat it?

20 12:28:51 A. Yes.

21 12:28:55 Q. Did you consider and know when you preparing these list,

22 12:28:59 that you also needed to specify services, but did not

23 12:29:02 include services within that list because you didn't

24 12:29:05 want this exemption on services?

25 12:29:08 T NAJDAWI: Sorry, are you asking about intentions?

01 12:29:12 MR H KHIRFAN: No, understanding.

02 12:29:13 MR A NAJDAWI: It's a leading question.

03 12:29:15 MR H KHIRFAN: It's coming out of the cross and I didn't put

04 12:29:16 it in my direct because -- (overspeaking) -- ^^

05 12:29:19 understanding. It's coming out of the cross.

06 12:29:21 PRESIDENT: Okay. Please answer the question.

07 12:29:29 A. Allow me to read the question.

08 12:29:32 MR H KHIRFAN: Please.

09 12:29:33 A. No, it was not meant that it is excluded the services or

10 12:29:39 whatever, so we didn't exhaust the list of what we

11 12:29:44 wanted, we reply to the question, give us materials. So

12 12:29:48 we gave materials.

13 12:29:57 Q. When GAM order DBE requested lists of materials, goods

14 12:30:02 and equipment, did you understand this at the time when

15 12:30:07 you were providing the lists, that this included

16 12:30:13 services?

17 12:30:13 PRESIDENT: Please I will not allow this question.

18 12:30:18 MR H KHIRFAN: (Arabic spoken).

19 12:30:20 PRESIDENT: It is within your written evidence. It is

20 12:30:24 stated within your written evidence that GAM requested

21 12:30:31 a list of -- and the DBE requested a list of materials

22 12:30:36 and they only filled that list of materials and this

23 12:30:41 doesn't mean that they were excluding the services from

24 12:30:46 their list.

25 12:30:48 ¶202602160046MR H KHIRFAN: With all due respect, Mr Chairman --

01 12:30:53 PRESIDENT: It is all in the answer. He answered that they
02 12:30:55 only provided the DBE and GAM with a list of materials
03 12:31:00 because they requested only the list of materials.
04 12:31:04 MR H KHIRFAN: Correct. But the cross was trying to make
05 12:31:09 perception and mixing about goods and services and what
06 12:31:14 does it include and what includes and we objected this.
07 12:31:18 Now this question is very simple. We are coming out of
08 12:31:22 the cross about the circumstances of the letter that did
09 12:31:27 it include services or not. Because he asked about
10 12:31:29 whether it includes or not. It's just a simple
11 12:31:33 question.
12 12:31:34 MR A NAJDAWI: It's already been answered.
13 12:31:36 PRESIDENT: It is already has been answered, even during the
14 12:31:41 cross-examination. He didn't include the services,
15 12:31:45 because his understanding was that he was requested only
16 12:31:49 to provide the list of materials. His answer was clear.
17 12:31:56 MR H KHIRFAN: Okay. In your letter does goods mean
18 12:32:00 services.
19 12:32:03 MR A NAJDAWI: It's in the letter.
20 12:32:03 MR H KHIRFAN: In your letter -- (overspeaking) -- ^^.
21 12:32:05 PRESIDENT: Because you ask about this.
22 12:32:06 MR H KHIRFAN: Yes, in your letter, does goods or when you
23 12:32:09 make references to goods means services?
24 12:32:12 A. It is written.
25 12:32:13 In 2015 and 2016?

01 12:32:15 A. It is written.

02 12:32:16 Q. Yeah, but it ^^?

03 12:32:17 PRESIDENT: It is written. It is on the record, Mr Hazem.

04 12:32:22 It is on the record.

05 12:32:24 MR H KHIRFAN: Okay.

06 12:32:36 My colleague Ahmad showed you a letter from the JV

07 12:32:51 approving to import materials in the name of GAM. This

08 12:32:58 is exhibit R-54, Jude, please, if we can open it again.

09 12:33:05 Do you see the DBE letter that is referenced here in

10 12:33:11 this letter? I kindly ask the secretary as well to

11 12:33:21 present -- it's the same, next exhibit, R-53.

12 12:33:32 Reference of the DBE letter. You can see the

13 12:33:38 reference of database E letter L1858 ^^ 20 ^doc).

14 12:33:46 A. Mm-hmm.

15 12:33:47 Q. Can we show this letter, please? It's R-53. Can you

16 12:33:55 please open it, please.

17 12:34:01 Can you read it quickly, Mr Grammatas.

18 12:34:07 A. As requested by the owner email dated we hereby request

19 12:34:10 your urgent confirmation of the below mentioned issue.

20 12:34:13 Following the meetings to the owner with the staff of

21 12:34:16 the customs department to follow-up tax exemption issue

22 12:34:19 of the project. GAM was informed that materials should

23 12:34:22 be imported under the name of Greater Amman municipality

24 12:34:27 in order to consider GAM's request of obtain this

25 12:34:29 exemption. For this reason, we hereby request your

01 12:34:36 urgent confirmation and agreement to proceed in this
02 12:34:43 arrangement. As soon as we receive your letter, with
03 12:34:46 will continue with the protours and address our ..."
04 12:34:50 ^doc.
05 12:34:51 Okay.
06 12:34:51 Q. Is that the database nevertheless this letter is
07 12:34:54 requesting confirmation of your approval that materials
08 12:34:59 will be imported in the name of GAM, not also services?
09 12:35:03 MR A NAJDAWI: It's written in the letter. ^^.
10 12:35:05 MR H KHIRFAN: It's coming from the cross. You confirmed on
11 12:35:08 these thingsism the right to clarify.
12 12:35:11 MR A NAJDAWI: Two ahead.
13 12:35:12 MR H KHIRFAN: Is that the DBE is requesting confirmation of
14 12:35:15 your approval that materials will be imported in the
15 12:35:18 name of GAM not also services?
16 12:35:21 A. This is the second part of same, yes.
17 12:35:25 Q. Okay. So I would like also to show you R-51, please.
18 12:35:35 Can you please read it?
19 12:35:43 A. From ibt hall, to Zisis, reference to our visit to
20 12:35:48 customs department a to follow-up project tax exemption
21 12:35:50 issue. The person if charge clarified that in order to
22 12:35:54 consider our request to obtain this exemption materials
23 12:35:57 should be imported under the name of GAM. For this
24 12:36:01 reason we hereby request to confirm that operator agrees
25 12:36:05 and shall proceed in this arrangement, as soon as we

01 12:36:08 receive this letter we will address our request to

02 12:36:12 Ministry of Energy for ..." ^doc.

03 12:36:15 Yes.

04 12:36:16 Q. So based on these two exchanges from DBE and GAM, what

05 12:36:19 was your understanding of this request? That materials

06 12:36:23 had to be imported in the name of GAM for the purposes

07 12:36:27 of the custom department or that everything that might

08 12:36:31 be exempted including services, had to be imported in

09 12:36:34 the name of GAM?

10 12:36:35 A. I understand that at that time we read the same content

11 12:36:40 and the impression that someone understand is obvious.

12 12:36:44 Q. Which is?

13 12:36:45 A. For materials we have to make that process.

14 12:36:47 Q. Materials. Not services?

15 12:36:51 A. This is my understanding then and now.

16 12:36:53 Q. Okay. To confirm, GAM never told you that services also

17 12:36:59 have to be imported in the name of GAM; correct?

18 12:37:02 A. I don't remember anything like that.

19 12:37:07 Q. My colleague Ahmad as well asked you various questions

20 12:37:12 relating to alleged anyonitive actions required to be

21 12:37:16 taken under the 2015 bylaw. For the record, just

22 12:37:21 questions of course I object to, because they assume

23 12:37:25 what Ahmad is saying is true and of course we have no

24 12:37:27 way to verify this now, but to be clear, other than

25 12:37:33 GAM's and the DBE's request that materials had to be

01 12:37:35 imported in the name of GAM, as we just saw in these
02 12:37:38 exhibit, did GAM ever inform you that the bylaw itself
03 12:37:44 not customs department, not MEMR, by law, requires X, Y,
04 12:37:51 Z anyonitive objections?
05 12:37:52 MR A NAJDAWI: Objection, Mr Chairman. This was not my
06 12:37:53 question. My question was did you read the 2015
07 12:37:56 regulations? Were you informed of the content of this
08 12:37:59 relation by your tax advisers? It wasn't GAM. GAM
09 12:38:04 informing them of the mechanisms under the 2015
10 12:38:06 regulations is irrelevant. They've read it.
11 12:38:10 MR H KHIRFAN: You asked about administrative file, and
12 12:38:13 fintive requirements.
13 12:38:15 MR A NAJDAWI: Whether his tax advisors.
14 12:38:17 MR H KHIRFAN: No, but you ask about it. I ask about it
15 12:38:18 now. It's exactly the same content.
16 12:38:22 PRESIDENT: Okay. You asked about this. My colleague just
17 12:38:26 told me that you asked about this. I will allow the
18 12:38:30 question.
19 12:38:31 MR H KHIRFAN: Did GAM ever inform you that the bylaw
20 12:38:34 itself, not customs department, not MEMR, the bylaw,
21 12:38:38 requires X, Y and Z anyonitive actions specific actions?
22 12:38:44 A. Not.
23 12:38:45 Q. No, okay.
24 12:38:48 My colleague Ahmad asked you a question. I believe
25 12:38:52 the question was did you impose sales tax on invoices

01 12:38:59 for imported services and or whether you charge sales
02 12:39:07 tax?
03 12:39:07 MR A NAJDAWI: At a rate of 0 per cent.
04 12:39:09 MR H KHIRFAN: Yeah.
05 12:39:09 A. I remember the question, yes.
06 12:39:15 Q. Can we open the transcript on this question?
07 12:39:21 MR A NAJDAWI: For sure.
08 12:39:24 MR H KHIRFAN: Page 45. Page 45, line 19.
09 12:39:44 MR A NAJDAWI: Can you see --
10 12:39:46 PRESIDENT: Mr Dimitrios, you can go up to page -- what
11 12:39:49 page?
12 12:39:52 MR H KHIRFAN: 45, line 19 until page 46, until line 6.
13 12:40:01 A. Line 19. Yes.
14 12:40:04 PRESIDENT: And go down now to the next page,.
15 12:40:11 MR A NAJDAWI: Page 45, line 19?
16 12:40:14 PRESIDENT: 19 --
17 12:40:16 MR H KHIRFAN: (Arabic spoken).
18 12:40:18 MR A NAJDAWI: Okay.
19 12:40:18 PRESIDENT: Up to page 46, line 6.
20 12:40:24 A. May I?
21 12:40:27 PRESIDENT: Let him ask the question.
22 12:40:31 MR H KHIRFAN: Because you said in your answer, I think we
23 12:40:39 include -- I don't remember, but I think that we include
24 12:40:42 sales tax." ^doc.
25 12:40:43 This one of your. Then you said yes, my colleague

01 12:40:50 Ahmad asked 0 per cent, you said no, not 0 per cent, the
02 12:40:55 normal ^doc) ^^?
03 12:40:59 A. According to I don't have to read what I said, what is
04 12:41:00 there. I want to reply once more. We followed -- I'm
05 12:41:04 not an expert to if we should 0 or whatever, we followed
06 12:41:10 ^^ exactly the what was provided as consultation from
07 12:41:18 our tax advisers. In Athens in Greece and in Jordan.
08 12:41:22 Nothing else. I'm not the expert to know what we should
09 12:41:28 do and I'm not -- I can't have memories to remember what
10 12:41:32 we applied in our invoices about that.
11 12:41:38 Q. To be clear, were you saying that the invoices for the
12 12:41:41 imported design and services on which the tax authority
13 12:41:45 based its audit on in early 2021, you mean that you did
14 12:41:51 charge and collect sales tax on these services and
15 12:41:54 invoices?
16 12:41:56 A. Again?
17 12:41:58 Q. Were you saying that the invoices for the imported
18 12:42:02 design and services on which the tax authority or the
19 12:42:06 ISTD based its audit on in early 2021, you mean that you
20 12:42:12 did charge and collect sales tax on these services and
21 12:42:15 invoices?
22 12:42:20 A. You're confusing me. Excuse me. The question is not
23 12:42:22 clear to my ears.
24 12:42:25 MR A NAJDAWI: Mr Chairman, he already answered. He said
25 12:42:27 I'm not an expert and I don't know. We did everything

01 12:42:29 the tax advisor ^^?

02 12:42:31 A. Excuse me, I have to answer. Excuse me, I have to

03 12:42:32 answer, if you don't mind.

04 12:42:34 MR A NAJDAWI: The chairman decides.

05 12:42:36 A. I have to answer. We learned --

06 12:42:40 MR H KHIRFAN: Nor the imported design and consultant

07 12:42:42 services, ^ from 2016 onwards, did you charge and

08 12:42:52 collect sales tax on these services and invoices related

09 12:42:55 to these services?

10 12:42:57 A. As far as we knew from the tax authority, yes.

11 12:43:02 Q. Did you, not what was imposed, did you as JV, as

12 12:43:06 operator, during the process?

13 12:43:09 A. If we collect.

14 12:43:11 Q. Yeah, from the member companies, did you collect and

15 12:43:15 charge those sales tax?

16 12:43:18 A. I don't remember that. I'm not familiar with that.

17 12:43:28 We made exactly what the laws --

18 12:43:32 PRESIDENT: In Greece, in Jordan stipulated?

19 12:43:35 A. Okay ^^ . Exactly. ^^.

20 12:44:00 PRESIDENT: You have only three minutes, Mr Khirfan.

21 12:44:23 (Pause).

22 12:44:28 MR H KHIRFAN: So is it possible that the branch charged

23 12:44:32 sales tax from the member companies.

24 12:44:36 MR A NAJDAWI: Mr Chairman, I object. I never

25 12:44:41 asked -- -- (overspeaking) -- ^^ was from. I never

01 12:44:42 asked about the member companies. So don't try to push
02 12:44:45 that into your questions.
03 12:44:46 PRESIDENT: You are not asking about a fact. About
04 12:44:51 a possibility.
05 12:45:38 MR H KHIRFAN: Okay. When you answered opposing counsel
06 12:45:41 that you did impose sales tax, do you mean that you
07 12:45:46 imposed sales tax on the invoices for the design and
08 12:45:50 consultancy services that you imported from the JV
09 12:45:53 member companies during the years 2016 to 2020.
10 12:45:57 MR A NAJDAWI: Objection, Mr Chairman.
11 12:45:59 MR H KHIRFAN: No, it is.
12 12:46:00 MR A NAJDAWI: Objection, please let me say my objection.
13 12:46:02 I never asked, I never asked about who he imported the
14 12:46:06 services from. The question is pushing in the member
15 12:46:11 companies. This should have been a question in the
16 12:46:13 direct, not in the re-direct. Sorry.
17 12:46:27 PRESIDENT: Okay. You may answer the question. Please.
18 12:46:31 MR H KHIRFAN: Can I repeat it, please.
19 12:46:33 When you answered opposing counsel that you did
20 12:46:39 impose sales tax, when we read now, do you mean that you
21 12:46:47 imposed sales tax on the invoices for the design and
22 12:46:53 consultancy services that you imported from the JV
23 12:46:59 member companies during the years 2016 to 2020 or
24 12:47:06 another service?
25 12:47:07 For those services, yes. The question is for which kind

01 12:47:12 of services or? I'm confused with all this dispute,
02 12:47:16 excuse me.
03 12:47:18 MR A NAJDAWI: Mr Chairman, he asked several times already.
04 12:47:20 A. We did, we followed exactly the instruction, we followed
05 12:47:24 exactly the instructions of our tax add vie so yous in
06 12:47:29 Greece and in Jordan. And we am plead exactly what it
07 12:47:33 is legally correct. This is the answer. Excuse me,
08 12:47:36 I cannot answer otherwise.
09 12:47:40 PRESIDENT: Okay. Thank you.
10 12:47:47 MR H KHIRFAN: Nothing further.
11 12:47:49 PRESIDENT: Nothing further?
12 12:47:50 MR H KHIRFAN: Yes. (Arabic spoken).
13 12:47:58 PRESIDENT: If you have few questions regarding the engines.
14 12:48:01 MR H KHIRFAN: No, nothing further. (Arabic spoken).
15 12:48:07 PRESIDENT: Okay. We have few questions to you. We are
16 12:48:12 start with Dr Salah. Tribunal tribunal.
17 12:48:15 DR AL BASHIR: I yield.
18 12:48:26
19 12:48:26 Questions by TRIBUNAL
20 12:48:35 DR AL BASHIR: Regarding this exchange of the last questions
21 12:48:38 that were asked by my colleagues the lawyers for the
22 12:48:44 claimant or the lawyers for the respondent and the
23 12:48:47 lawyers for the claimant. Your answers came from the
24 12:48:55 JV's standpoint or you're talking about your status in
25 12:49:00 Greece? Because you said the laws in Greece and in

01 12:49:03 Jordan and that confused me a little bit.

02 12:49:06 So when you were answering the question, were you

03 12:49:09 answering about your understanding of the JV's operation

04 12:49:13 in Jordan or you're talking about the operation in

05 12:49:18 Greece?

06 12:49:19 A. I'm confidence that when our financial department in

07 12:49:23 Greece issued the invoices, they followed, in

08 12:49:28 cooperation with the financial advisers in Jordan, they

09 12:49:32 followed the law. So they followed the rules and they

10 12:49:37 issued the invoices correctly. This is what I can say

11 12:49:41 because this is what I know. All the rules to our

12 12:49:44 company and I assume the same to the company of

13 12:49:48 constance any dis, were to be precise and follow all the

14 12:49:53 regulations. That's all I can say.

15 12:50:05 PRESIDENT: I have some questions.

16 12:50:20 Can you please tell me what, if you remember, the

17 12:50:24 total value of materials and equipment which were

18 12:50:39 exempted from the sales tax and duties?

19 12:50:43 A. I don't remember now. Excuse me, but --

20 12:50:46 PRESIDENT: A figure, do you know?

21 12:50:47 A. No, I can't recall.

22 12:50:49 PRESIDENT: The value or the cost of the materials and --

23 12:50:53 A. I can't remember.

24 12:50:54 PRESIDENT: Which were excerpsted?

25 12:50:54 A. In the time I was involved I had all the list in front

01 12:50:56 of me in my computer. Now I will not say something
02 12:51:00 precise or try -- I want to avoid.
03 12:51:03 PRESIDENT: Okay. Do you remember you said that you paid
04 12:51:15 sales tax on materials equipment during the period from
05 12:51:23 2012 to 2014?
06 12:51:25 A. Mm-hmm.
07 12:51:29 PRESIDENT: Do you remember s do you know or remember the
08 12:51:36 value of such taxes paid by you for duties and sales t
09 12:51:44 tax?
10 12:51:44 A. I only can remember, I can only declare to you now that
11 12:51:49 was a very significant amount and this led to this first
12 12:51:56 part, this first contract. We suffered damages from
13 12:52:01 that part of the contract. This is what I can --
14 12:52:05 PRESIDENT: The number was significant, but you --
15 12:52:08 A. Significant, yes.
16 12:52:08 PRESIDENT: You cannot recall?
17 12:52:09 A. Yes, I cannot, but was in the value of 500,000,
18 12:52:13 something like that, but I cannot recall.
19 12:52:17 PRESIDENT: In both the services and the imported materials
20 12:52:20 or only on the imported materials and equipment?
21 12:52:26 A. What the figure I told you now, roughly was on material
22 12:52:30 materials.
23 12:52:30 PRESIDENT: Okay. And you didn't pay any sales tax on the
24 12:52:35 design and service consult services ^ of the first phas
25 12:52:42 phase?

01 12:52:42 What I remember is that because of that the
02 12:52:49 circumstances in the non exemption of sales and charges,
03 12:52:54 duties and charges, we decided the companies not to
04 12:53:01 issue the services invoices due for that phase and we
05 12:53:09 decided to avoid putting extra costs to the branch for
06 12:53:20 this period.
07 12:53:26 PRESIDENT: Do you remember -- you can give a rough
08 12:53:29 figure -- about the final price?
09 12:53:31 A. About the?
10 12:53:32 PRESIDENT: The final price of phase 1?
11 12:53:37 A. The contract, how much? Not precisely.
12 12:53:44 PRESIDENT: A rough figure? 7 million, 10 million, phase 1?
13 12:53:50 A. The level of 7 million.
14 12:53:53 PRESIDENT: 7 million JDs?
15 12:53:55 A. Yes, but was a mixture.
16 12:53:58 PRESIDENT: Of euros and --
17 12:54:00 A. Yes.
18 12:54:00 PRESIDENT: Okay. I will check if I have other questions?
19 12:54:10 A. May I make one declaration out of your questions? One
20 12:54:16 declaration, just for clarification, out of your
21 12:54:19 questions. At the time, because you are asking me
22 12:54:23 questions and normally of course from your side, if
23 12:54:26 I remember, I'm not only the witness who is out of that
24 12:54:31 for the last four years. I'm the witness who at the
25 12:54:35 time of my involvement, from beginning, from the offer,

01 12:54:41 up to beginning of 2022, I was deeply, continuously, on
02 12:54:46 a daily basis involved to all necessary from my role,
03 12:54:50 but in parallel, since I was the director of all
04 12:54:53 projects abroad of Helector, I had many other projects
05 12:54:59 to follow. So I would be -- would not be normal, if
06 12:55:03 now, in my 60s, I wouldn't have memories of such
07 12:55:09 details. So excuse me, believe me that I was doing my
08 12:55:13 duties very well, all my files to my computer, my
09 12:55:18 library were there, I could recall at any time even if
10 12:55:22 I was abroad I call my secretary and she was taking for
11 12:55:26 me the correct file. Now I prefer I avoid telling you
12 12:55:32 something which is not correct or precise.
13 12:55:35 DR TARAWNEH: Excuse me, excuse me, excuse me ^^, according
14 12:55:38 to your declaration, I have a question which arises out
15 12:55:43 of Mr Chairman question.
16 12:55:48 As you were deeply involved in the project, how and
17 12:55:54 when were you issuing your invoices to GAM? On
18 12:55:59 a monthly basis, on interim basis if your invoices or
19 12:56:04 your payment applications?
20 12:56:06 A. Yes, according to when was phase of operation, on
21 12:56:11 a monthly basis, because this was the normal procedure.
22 12:56:16 When we had the construction phases, according to
23 12:56:20 physical steps of the construction.
24 12:56:23 DR TARAWNEH: For the 2015 phase 2 project, when you started
25 12:56:34 invoicing the GAM, were you issuing your invoices

01 12:56:43 including taxes on goods and services or you did not
02 12:56:52 include them?
03 12:56:56 A. We asked for ^^ of the taxes only in this cases that
04 12:57:02 upon instruction of GAM I remember some, we paid for
05 12:57:08 this in order to finish quickly and we have asking for
06 12:57:12 reimburse biewrmted. Only to that, because the other
07 12:57:15 cases when GAM accomplished the exemption or they paid
08 12:57:21 taxes --
09 12:57:24 DR TARAWNEH: No, I mean your colleague yesterday said that
10 12:57:33 you have a registration with ISTD. This is tax
11 12:57:39 department?
12 12:57:39 A. Mm.
13 12:57:40 DR TARAWNEH: Starting from 2015, did you pay any sales tax
14 12:57:45 to the ISTD department and you asked for reimbursement?
15 12:57:52 A. About our activities you mean generally.
16 12:57:54 DR TARAWNEH: Yes.
17 12:57:58 A. Because you have to submit application every two months.
18 12:58:01 ^.
19 12:58:03 A. Our tax adviser, financial adviser in Jordan yearly gave
20 12:58:14 us all the information in order how much, what
21 12:58:18 declaration, the tack declaration would be. So they
22 12:58:21 made this ^ very --
23 12:58:24 DR TARAWNEH: So do you have any clue about this or no?
24 12:58:26 A. If I have?
25 12:58:27 DR TARAWNEH: Do you have any clue or understanding about

01 12:58:29 this procedures in 2015 or --

02 12:58:32 A. I was not following -- (overspeaking) -- ^^.

03 12:58:33 DR TARAWNEH: It's out of the scope of your work?

04 12:58:34 A. No, no, the financial department from our office was

05 12:58:37 following the financial department in Jordan.

06 12:58:41 DR TARAWNEH: Thank you.

07 12:58:41 A. Yes.

08 12:58:43 PRESIDENT: Okay. Thank you.

09 12:58:48 A. I'm dismissed.

10 12:58:49 PRESIDENT: You have finished?

11 12:58:50 A. Thank you very much.

12 12:58:50

13 12:58:50 (Witness withdrew)

14 12:59:07 (Discussion off the record)

15 12:59:33 PRESIDENT: Mr Khirfan, please may you call the next

16 12:59:46 witness. Mr Christodoulos do Ross. Can we call him,

17 12:59:52 please?

18 13:00:05 M.

19 13:00:05 MR H KHIRFAN: If we can have the lunch now.

20 13:00:07 PRESIDENT: No, we cannot change the time for lunch. No, we

21 13:00:17 cannot change the time of the lunch.

22 13:00:21 MR H KHIRFAN: Okay, but I don't want the lunch to put

23 13:00:23 pressure on us to finish, because this witness I think

24 13:00:29 we designated 70 minutes.

25 13:00:34 SECRETARY: We call him now and still the buffer we will be

01 13:00:37 five minutes late to lunch.

02 13:00:41 MS ABAZA: You can't object.

03 13:00:43 A NAJDAWI: I'm fine with taking from lunch, depending on

04 13:00:46 the progress, I'm fine with taking away from time from

05 13:00:48 lunch, but as long as it's not that much. Eventually

06 13:00:53 I just don't want this drag of until the late hours of

07 13:00:56 today.

08 13:01:00 MR H KHIRFAN: Why we can't go for lunch now and then after

09 13:01:05 it.

10 13:01:06 PRESIDENT: Because it is effort I will and Dr Salah ^ is

11 13:01:11 engaged with --

12 13:01:14 DR AL BASHIR: A call at 2.00, which I could postpone for

13 13:01:18 2.15.

14 13:01:18 MR H KHIRFAN: Okay.

15 13:01:19 PRESIDENT: So you have 70 minutes.

16 13:01:20 DR AL BASHIR: You'll have your 70 minutes.

17 13:01:23 MR H KHIRFAN: Okay.

18 13:02:05

19 13:02:07 Mr Christodoulos Hadjidimoulas

20 13:04:19 PRESIDENT: Thank you for making yourself available today.

21 13:04:21 You are kindly requested to provide us with your ID.

22 13:04:25 ^^ A driving licence. Okay, it is okay.

23 13:04:37 WITNESS: If it is necessary, I have my passport. It's just

24 13:04:41 in the room.

25 13:04:42 PRESIDENT: No, it's not necessary. (Handed).

01 13:04:52 PRESIDENT: After the verification of the witness ID, a copy
02 13:04:58 of his driving licence was added to the file.
03 13:05:16 Mr Khirfan, you can proceed with the examination of
04 13:05:19 the -- before that, oath.
05 13:05:22 You have the holy book in front of you. You have an
06 13:05:29 oath. Please read it. Put your right hand on the holy
07 13:05:35 book.
08 13:05:36 WITNESS: Okay.
09 13:05:36 PRESIDENT: And read the oath ring please.
10 13:05:38 WITNESS: I swear by almighty God to tell the truth, the
11 13:05:41 whole truth and nothing but the truth.
12 13:05:46 PRESIDENT: You may proceed now, Mr Khirfan.
13 13:05:48
14 13:05:48 Examination-in-chief by Mr H Khirfan
15 13:05:52 MR H KHIRFAN: Is it fine we call you Mr Christodoulos?
16 13:05:55 A. It's fine, you can call me Christodoulos, yes. ^.
17 13:05:58 Q. Okay. Can you please for the record state your full
18 13:06:02 name and current position?
19 13:06:04 A. My full name is Christodoulos Hadjidimoulas house and my
20 13:06:14 current position? Now I'm working for a company in
21 13:06:18 Greece named all coitem ^name).
22 13:06:22 Q. So what's your professional background and
23 13:06:25 qualifications?
24 13:06:26 A. I am a mechanical engineer. I graduated from the
25 13:06:30 national technical university of Athens.

01 13:06:35 Q. When did you first become involved with Ghabawi Landfill
02 13:06:40 project?
03 13:06:41 A. From the beginning of the project.
04 13:06:46 Q. Which year, just for the record?
05 13:06:49 It was in the year 2013, I think.
06 13:06:55 Q. What was your role and involvement in the project?
07 13:06:59 A. I was a project manager of the project.
08 13:07:05 Q. As a project manager, who were your day-to-day
09 13:07:08 responsibilities?
10 13:07:09 A. I was responsible for all the activities on the project.
11 13:07:17 Q. Were you physically present on site at Ghabawi Landfill
12 13:07:21 during the --
13 13:07:21 A. Yes, I was.
14 13:07:29 Q. This from the beginning of the project as well you were
15 13:07:32 on site?
16 13:07:33 A. Correct.
17 13:07:38 Q. I will ask -- those were just introductory questions for
18 13:07:44 the witness.
19 13:07:47 On the operational acceptance, my question is did
20 13:07:49 the DBE or GAM or any of their personnel attend any test
21 13:07:53 conducted in respect of the phases of the project?
22 13:07:57 A. Yes, they did.
23 13:08:01 Q. After operational acceptance of each phase, were you
24 13:08:04 ever called upon while the defect liability period was
25 13:08:07 ongoing for that phase to carry out remedial works for

01 13:08:10 any defects?

02 13:08:12 A. No.

03 13:08:22 Q. With respect to the Covid and the change of law and the

04 13:08:26 Covid mainly restriction, did the operator have key

05 13:08:30 personnel who were outside Jordan when restrictions

06 13:08:36 began?

07 13:08:37 A. Yes.

08 13:08:37 Q. Who were they?

09 13:08:41 A. It was myself, I was a project manager of the power

10 13:08:48 plant and also of the construction of cell 4. It was

11 13:08:54 Mr You an initial Koletsas, the foreman for the

12 13:08:58 construction of cell 4 and it was Mr Spin von Davanos,

13 13:09:03 he was the drilling operator for cell 4.

14 13:09:09 Q. How did the restrictions imposed at the time affect you

15 13:09:12 and other key personnel ability to come back to Jordan?

16 13:09:16 A. It was not possible to return because there were no

17 13:09:19 flights to come to Jordan.

18 13:09:25 Q. What earths you made to bring these personnel back to

19 13:09:28 Jordan ^?

20 13:09:33 A. We did a lot of things. First in the beginning, there

21 13:09:41 were always announcements by their line companies ^ and

22 13:09:45 specifically royal Jordanian, that they will start again

23 13:09:48 the flight and they will start again (airline ^. So we

24 13:09:52 were booking tickets again and again, but finally the

25 13:09:55 flights were cancelled.

01 13:10:00 We asked GAM if it was possible to ^ some
02 13:10:10 repatriation flights that there were some special
03 13:10:13 flights flying from several countries to Jordan in order
04 13:10:16 to bring back Jordanian personnel, Jordanian citizens.
05 13:10:24 This was one of these flights with one of these flights
06 13:10:27 I returned to Jordan.
07 13:10:32 Also, because the instruction, the announcements
08 13:10:36 from the government and from the airlines were every day
09 13:10:39 we had different. There was an announcement by Jordan
10 13:10:47 that if somebody remained in the country that was
11 13:10:54 coloured as green, that as I understand meant that it
12 13:10:56 didn't have a lot of Covid cases, and he remained in
13 13:10:59 that country 14 days, after that, he would be able to
14 13:11:03 fly to Jordan.
15 13:11:06 So we did this with Mr Call advertise and
16 13:11:10 Mr Davanos. They went to Cyprus because Cyprus was
17 13:11:15 a green country those days. But unfortunately, after
18 13:11:19 they remained 14 days in that country, this rule has
19 13:11:25 changed. So they were not able to return to the countr
20 13:11:30 country.
21 13:11:30 So also we tried with GAM, for these also two
22 13:11:35 people, Mr Call advertise and Mr Davanos, also to take
23 13:11:39 a repatriation flight and return to Jordan. And as
24 13:11:45 finally happened.
25 13:11:49 Q. Did you attempt to find substitute local personnel?

01 13:11:59 A. This was not something that was very easy. First of
02 13:12:03 all, I think you remember those days. We didn't know,
03 13:12:07 we had no idea when the restrictions, the government
04 13:12:10 restrictions will be released or not -- when they will
05 13:12:15 be released. We have no idea. We were expecting maybe
06 13:12:18 next week, maybe in two week, maybe in three weeks, so
07 13:12:21 we were not able to plan something.
08 13:12:26 Also, these projects are very specialised projects.
09 13:12:31 Landfill facility rehabilitation of landfills, they are
10 13:12:37 expert project and need expertise personnel. I will
11 13:12:41 tell you as an example, we cannot find in the local
12 13:12:44 market a drilling operator that he knows how to drill in
13 13:12:49 waste. It's different thing to drill in waste and
14 13:12:52 a different thing to drill in the soil for water. This
15 13:12:56 is not possible.
16 13:12:58 Also to find an experienced foreman like Mr Call
17 13:13:03 advertise we had, that he has worked in landfills more
18 13:13:08 than 15 years. It was not easy.
19 13:13:12 So it was not possible to find any personnel in the
20 13:13:17 country to replace our key personnel.
21 13:13:26 Q. What was the condition of the engines up to handover?
22 13:13:31 A. The condition of the engines was very good.
23 13:13:39 MR A NAJDAWI: Sorry, what was the question? Up to
24 13:13:44 handover?
25 13:13:44 MR H KHIRFAN: Yes, indeed.

01 13:13:47 MR A NAJDAWI: Okay.

02 13:13:51 MR H KHIRFAN: On engine 2 incident, Mr Chris, when engine 2

03 13:14:00 short block broke, what specific difficulties arose with

04 13:14:06 Iltekno, the engine supplier?

05 13:14:11 The problem is that Iltekno personnel were not able to

06 13:14:18 come to that country due to the law restrictions, the

07 13:14:25 government restrictions, that nobody was able to come

08 13:14:27 into Jordan.

09 13:14:31 Q. Can you further explain the difficulties that you faced

10 13:14:35 on this with Iltekno?

11 13:14:37 A. Yes. There were no flights coming to Jordan. The

12 13:14:46 borders were closed. So the personnel, the technicians

13 13:14:50 of Iltekno were not able to travel.

14 13:14:57 Q. Why didn't you undertake these works yourselves?

15 13:15:03 A. This is not possible, because the engines were under

16 13:15:06 guarantee and during the period that the engines are

17 13:15:09 under guarantee, every maintenance needs to be computed

18 13:15:15 by the authorised personnel, the manufacturer's

19 13:15:19 authorised personnel, that was Iltekno personnel.

20 13:15:23 Q. Was the issue resolved, remedied at the end?

21 13:15:27 A. Yes, at the end the issue was resolved.

22 13:15:33 Q. After the issue was resolved, as you just said,

23 13:15:37 Mr Chris, how was engines 2 performance ^?

24 13:15:40 A. Was good.

25 13:15:45 Q. During this did you keep GAM informed of the

01 13:15:48 circumstances and measures affecting your works?

02 13:15:51 A. Yes, we did.

03 13:15:58 Q. We'll turn now to some of the H2S, your favourite

04 13:16:04 subject, Mr Tha'er.

05 13:16:07 A NAJDAWI: Mr Ahmad.

06 13:16:10 MR H KHIRFAN: H2S, we have our theories, please ^^.

07 13:16:17 During phase 3, did you install a dedicated H2S

08 13:16:23 treatment facility for the engines?

09 13:16:25 A. No, we didn't.

10 13:16:26 Q. Why you didn't?

11 13:16:29 A. Because such facility was necessary if the composition

12 13:16:34 of H2S in the landfill gas was above the limits that the

13 13:16:43 manufacturer MWM have set. We didn't measurements of

14 13:16:49 the composition of H2S into the landfill gas and was

15 13:16:54 below the limits. So installation of H2S treatment

16 13:16:58 plant was not necessary.

17 13:17:08 Q. Okay. What did those measurements show?

18 13:17:16 A. The measurements show as I told you, that H2S

19 13:17:20 composition was below the limit that was set by MWM and

20 13:17:30 it was written in MWM requirements for landfill gas.

21 13:17:34 Q. Did the DBE agree with the determination with the

22 13:17:40 determination ^ not to install a dedicated H2S treatment

23 13:17:44 facility?

24 13:17:47 A. Yes, agreed.

25 13:17:49 Q. They agreed or the DBE agreed, okay.

01 13:17:52 Did the DBE ever verify the H2S readings from cells
02 13:17:57 1 to 3 himself?
03 13:18:00 A. Yes, the representative of DBE, the DBE Mr Ahill Ian
04 13:18:07 guess ^^ during hiss haves to the site, several times,
05 13:18:12 he took the portable instrument we had and he went to
06 13:18:16 the site to measure the composition of the landfill gas.
07 13:18:21 That means me thayne, ukes again, cosh dock side and H2S
08 13:18:26 and also other gases.
09 13:18:29 Q. Okay. What equipment did you rely on for H2S monitorin
10 13:18:36 monitoring?
11 13:18:36 A. We had a portable analysers.
12 13:18:38 Q. Portable analysers.
13 13:18:45 May I ask the tribunal, the secretary to present the
14 13:18:51 witness exhibit R-229, specifically page 30. The
15 13:18:58 question is is this the hand analysers you mentioned?
16 13:19:03 Just for the --. R229, page 30.
17 13:19:12 A. I have to return there?
18 13:19:14 Q. Yes. 229, page 30. 30 digital.
19 13:19:29 MR A NAJDAWI: Can you please say what this is?
20 13:19:32 PRESIDENT: He's asking the witness. He's can be the
21 13:19:36 witness about this.
22 13:19:37 MR H KHIRFAN: Is this the hand analysers you mentioned?
23 13:19:40 A. This is one of the hand analysers we had, yes.
24 13:19:44 MR A NAJDAWI: Could you please mention what this exhibit i
25 13:19:47 is.

01 13:19:47 MR H KHIRFAN: He said R-229, page 30.

02 13:19:49 MR A NAJDAWI: What is it? The monthly progress report?

03 13:19:54 MS ABAZA: Unpaginated, unsigned --

04 13:19:59 PRESIDENT: Preliminary report about site inspections." ^do

05 13:20:16 ^doc.

06 13:20:16 MR H KHIRFAN: I refer to the mounted facility analyser

07 13:20:22 which produced reads, on the ska da system ^. Did you

08 13:20:26 rely on this mounted gas analysers to monitor H2S?

09 13:20:31 A. No.

10 13:20:31 Q. Why didn't you relook on the mountsd gas analyse errs

11 13:20:35 to monitor H2S readings?

12 13:20:37 A. First of all, you cannot monitor the H2S from the

13 13:20:44 mountsd gas analyser because the mountsd gas analyser

14 13:20:47 show only the H2S that entered the engines not the H2S

15 13:20:52 at each manifold or each well. But the in any case, the

16 13:20:56 mountsd gag analyser, the sensor for the H2S, the rate

17 13:21:01 was from 0 to 200PPM. H2S although it was lower than

18 13:21:08 the limit, it was higher than 200PPM. So this mountsd

19 13:21:13 analyser was not able to measure the H2S composition.

20 13:21:18 Q. Was the database engineer aware that hand ^^ were the

21 13:21:23 primary measurement method of H2S?

22 13:21:28 A. Yes.

23 13:21:31 Q. Did you continue to monitor H2S in cells 1, 2 and 3

24 13:21:35 after commissioning of the power plant?

25 13:21:37 A. Yes, we did.

01 13:21:42 Q. Before connecting cell 4, were the H2S levels for those
02 13:21:47 cells 1 to 3 within the acceptable limits?
03 13:21:52 A. Yes.
04 13:21:52 Q. How did you know this?
05 13:21:54 Because we did measurements with our portable
06 13:21:58 instruments.
07 13:21:59 Q. When did elevated H2S become an issue?
08 13:22:04 A. After the connection of the gas wells of cell 4 to the
09 13:22:10 gas network.
10 13:22:16 Q. I would like to present exhibits C-6, why have hoovment
11 13:22:23 464 and C-465. ^.
12 13:23:17 This email from yourself to ahill ^doc name).
13 13:23:29 Just to give you context, Mr Chris, that these
14 13:23:33 emails state that the issue is to be discussed between
15 13:23:36 you and ahill ^. The question what was discussed and
16 13:23:39 decided with the DBE regarding the elevated H2S in
17 13:23:44 cell 4? And you can wait until you see C-465. (AGGEL,
18 13:24:00 LUENGOS ^. (ANGEL ^. (Pause).
19 13:24:37 Do you want me to repeat the question?
20 13:24:38 A. Yes, please.
21 13:24:40 Q. These emails state that the issue is to be discussed
22 13:24:44 between you and angel. What was discussed and decided
23 13:24:48 with the DBE regarding the elevated H2S in cell 4?
24 13:24:56 A. We discussed that we need to adjustment the flow from
25 13:25:03 the wells of cell 4, meaning that the wells that show

01 13:25:09 that H2S is too high, that we found with our
02 13:25:14 measurements, with portable analyser, we will decrease
03 13:25:18 the flow and if the composition of H2S is very high, we
04 13:25:23 can also isolate these wells.
05 13:25:27 So the schedule, the plan was to measure H2S from
06 13:25:33 each well and decrease the flows of the wells that had
07 13:25:38 high H2S, increase the flow of the wells that have low
08 13:25:43 H2S, and isolate the wells that have very high H2S. In
09 13:25:51 cell 4.
10 13:25:54 Q. Are there other measures that operator took to address
11 13:25:57 elevated H2S?
12 13:25:59 A. Yes. We also took measures regarding the engines, that
13 13:26:05 means that we change the type of oil. We did -- we took
14 13:26:13 more oil samples sent to the laboratory for checking and
15 13:26:18 also we proceed with monitoring the oil more often, the
16 13:26:26 oil of the engines.
17 13:26:29 Q. Did you report these measures to the DBE engineer?
18 13:26:34 A. Yes, we did.
19 13:26:36 Q. Did the database engineer or GAM ever requested
20 13:26:39 additional measures?
21 13:26:45 A. No.
22 13:26:51 Q. So after the 4S ^^ this cell 4, did the DBE or GAM ever
23 13:26:54 ask you to install a dedicated H2S treatment facility?
24 13:27:00 A. No.
25 13:27:03 Q. How did you ascertain whether these measures were

01 13:27:06 successful in managing H2S?

02 13:27:10 A. First of all, by the composition of H2S, before entering

03 13:27:16 the engines. If the composition was decreased, that

04 13:27:22 means that the measurements were good. Secondly,

05 13:27:27 regarding the engines, of the results of the oil

06 13:27:31 analysis, samples that were sent to the laboratory. If

07 13:27:35 those samples, the results at the laboratory were good,

08 13:27:39 means that the measurement we took were effective.

09 13:27:44 Q. Did you observe anything different about cell 4 that

10 13:27:48 might explain this spike in H2S?

11 13:27:55 A. The difference that we had with H2S was the quantity of

12 13:28:01 the leachate that was huge at cell number 4 and also we

13 13:28:12 observe that there was a lot of cement inside the waste,

14 13:28:18 especially cement pulls poles ^.

15 13:28:42 Q. We'll now move to the leachate?

16 13:28:45 MR A NAJDAWI: Mr Chairman, if I may. On the previous

17 13:28:49 question, this was not one of the witness's testimonial

18 13:28:55 purposes. Mind you, that the witness is answering on

19 13:29:00 matters relating to the counterclaim. Therefore, this

20 13:29:02 was a witness that was submitted alongside the defence.

21 13:29:07 In its testimonial purpose, it is nowhere stated

22 13:29:11 that what the composition of the waste or what he

23 13:29:14 witness in terms of the composition of the waste in

24 13:29:17 cell 4 was, nowhere, not even close.

25 13:29:20 This matter was stated in an expert report submitted

01 13:29:24 by the claimant.

02 13:29:30 PRESIDENT: I will review the objectives of the --

03 13:29:35 MR H KHIRFAN: The question already answered, but what --

04 13:29:40 PRESIDENT: Okay -- (overspeaking) -- ^^.

05 13:29:41 PRESIDENT: Okay, it is answered now. It is on record. But

06 13:29:44 he is now ^^ that if you may proceed with questions with

07 13:29:56 which are out of the objectives, we will not allow them.

08 13:30:02 MR H KHIRFAN: It's fine, but just to also mention, because

09 13:30:06 it's important, because he mentioned the expert report.

10 13:30:09 The expert report is an expert witness. He's basing his

11 13:30:15 opinion on whatsoever he saw, he ^^ his education, his

12 13:30:22 knowledge, but here is a fact witness that was on the

13 13:30:27 site and he saw the cement in the cells or around the

14 13:30:32 cells ^^.

15 13:30:33 PRESIDENT: You are already stated.

16 13:30:37 MR H KHIRFAN: Yes, and it is included in the list.

17 13:30:41 PRESIDENT: It is included.

18 13:30:42 DR TARAWNEH: Yes.

19 13:30:43 PRESIDENT: The composition of the waste?

20 13:30:48 MR A NAJDAWI: No, sir, it is not included. My issue is

21 13:30:51 precisely with the fact that the testimonial purposes in

22 13:30:54 the list of evidence never mentioned this as a relevant

23 13:30:57 fact.

24 13:30:59 DR TARAWNEH: It's to as measurements throughout the project

25 13:31:04 period.

01 13:31:05 MR A NAJDAWI: Yes, this only became relevant after they
02 13:31:07 submitted an expert report.
03 13:31:09 DR TARAWNEH: Operational practices.
04 13:31:09 MR A NAJDAWI: I will get to that with the witness.
05 13:31:12 PRESIDENT: It is not within the purposes.
06 13:31:22 202602160076MS ABAZA: (Arabic spoken) waste management is the
07 13:31:27 responsibility of the owner.
08 13:31:28 PRESIDENT: Speak in Arabic, please.
09 13:31:31 MS ABAZA: Okay. (Arabic spoken).
10 13:31:50 (discussion in Arabic)
11 13:34:03
12 13:34:52 MR H KHIRFAN: On the leachate, did you have to install
13 13:34:57 a leachate collection and extraction system as part of
14 13:35:02 your scope?
15 13:35:02 A. No, this was not part of our scope.
16 13:35:05 Q. Were the measures assigned to the operator under the
17 13:35:08 contract and the subsequent agreement sufficient to
18 13:35:11 manage leachate levels within the waste body?
19 13:35:15 A. No.
20 13:35:16 Q. Why?
21 13:35:19 A. Because --
22 13:35:20 MR A NAJDAWI: This is an opinion. This is a matter of
23 13:35:21 opinion.
24 13:35:24 PRESIDENT: It was answered. Why. Please don't answer this
25 13:35:28 question.

01 13:35:53 Excuse me, Mr Najdawi.

02 13:36:03 (Tribunal confers)

03 13:36:09 PRESIDENT: We will allow the question. So?

04 13:36:13 A. May I answer?

05 13:36:14 PRESIDENT: Yes, please.

06 13:36:16 A. Can you please repeat the question?

07 13:36:17 H KHIRFAN: Yes. The question was were the measures

08 13:36:22 assigned to the operator under the contract and the

09 13:36:25 subsequent agreement sufficient to manage the leak at it --

10 13:36:28 PRESIDENT: He answered this one.

11 13:36:29 MR H KHIRFAN: Exactly, and the question was why.

12 13:36:32 PRESIDENT: Why were not sufficient?

13 13:36:36 A. Because in order to manage the level of leachate, it is

14 13:36:42 necessary to operate pumps leachate pumps at the bottom

15 13:36:46 of the cells. During the construction of the cells, it

16 13:36:52 is necessary to install pumps at the bottom and those

17 13:36:56 pumps we are able to pump the leachate at the bottom of

18 13:37:00 the cell. So this decreases the level of the leachate

19 13:37:06 inside the waste body. This unfortunately in our case,

20 13:37:15 those pumps were not operating, if they were installed

21 13:37:20 they were not operating.

22 13:37:27 MR H KHIRFAN: Did GAM operate this pump station at the

23 13:37:30 bottom of the cells?

24 13:37:35 A. No.

25 13:37:44 Q. Did the JV have to undertake operation of these pump

01 13:37:47 stations?

02 13:37:48 A. No, this was not our responsibility.

03 13:37:53 Q. What was the effect of non operation of the existing

04 13:37:56 facilities for leachate collection and extraction by GA

05 13:38:01 GAM?

06 13:38:01 The level of the leachate inside the cell boy ^ was

07 13:38:07 increased.

08 13:38:13 Q. Did this cause any problems to your operations or have

09 13:38:16 any effect on you?

10 13:38:20 A. The increase of the level of the leachate, it was

11 13:38:24 causing problems to the gas extraction. We have drilled

12 13:38:32 some leachate wells near the gas wells in order in that

13 13:38:39 area around the gas well to pump the leachate, so we

14 13:38:45 could decrease the level of the leachate inside the gas

15 13:38:48 well and after that, we were able to extracts the gas

16 13:38:51 from the gas well.

17 13:38:54 Q. So how frequently did you have to pump leachate from the

18 13:38:57 wells?

19 13:39:00 A. We were doing this as I remember almost every day.

20 13:39:14 Q. Given that the existing extraction facility was not

21 13:39:16 being operated by GAM, what would happen if you stopped

22 13:39:20 pumping every day?

23 13:39:25 A. For sure first of all the gas wells would be full of

24 13:39:30 leachate, so we will not be able to extract gas. But

25 13:39:36 also the leachate will overflow from the cell.

01 13:39:42 Q. Did you inform GAM's personnel or personnel from the
02 13:39:49 subsequent operator how frequently you needed to pump to
03 13:39:52 ensure no issue arose?
04 13:39:54 A. Yes.
05 13:39:56 Q. When did you inform them? Do you remember or how?
06 13:40:00 For sure we informed them during the training and at the
07 13:40:05 handover.
08 13:40:09 Q. Given you mentioned the training, I have couple of
09 13:40:12 questions on the training.
10 13:40:15 What types of training did you offer to give
11 13:40:17 personnel from GAM and the subsequent operator?
12 13:40:22 A. The training had three parts. The first part was the
13 13:40:28 theoretical, the second part was a practical and then
14 13:40:32 the last month was the third part, that we asked the GAM
15 13:40:38 personnel, that will be the operators, to follow our
16 13:40:43 daily activities, be with us all day and follow anything
17 13:40:47 we do on site, measurements, repairs, maintenance,
18 13:40:50 everything, everything.
19 13:40:53 Q. Did the personnel receive all aspects of this training?
20 13:40:59 A. No, they didn't.
21 13:41:01 Q. No, they didn't. Why not?
22 13:41:07 A. Specially the last month, they didn't want to follow us
23 13:41:14 with the daily activities. But also in the previews
24 13:41:22 training, they did not participant very often, or at
25 13:41:29 least all of it. ^^ -- all of them, not all of it, all

01 13:41:38 of the personnel.

02 13:41:39 Q. Okay. Can we open exhibit C-493, please, Mr Chairman.

03 13:42:03 When you read it, after arrange el asked you to

04 13:42:07 reconstruct the training in June 2021, did you reconduct

05 13:42:11 the training as requested?

06 13:42:14 Yes, Mr Luen got because he knew that GAM personnel did

07 13:42:20 not attend many subjects of the training, and especially

08 13:42:25 the last month, he asked me to do something extra before

09 13:42:30 the handover and that's what we did.

10 13:42:39 Q. On the record and handover, were there any pass codes

11 13:42:43 that were within your possession that you did not

12 13:42:45 provide to GAM or the subsequent operator?

13 13:42:48 PRESIDENT: Don't answer, please.

14 13:42:51 Is it within the purpose?

15 13:42:56 MR A NAJDAWI: (Arabic spoken).

16 13:42:58 PRESIDENT: Is it?

17 13:42:59 MR H KHIRFAN: Why this question was addressed to the

18 13:43:01 respondent while I asked the condition?

19 13:43:03 PRESIDENT: Okay. Okay. Sorry for that. Okay.

20 13:43:07 MR A NAJDAWI: You are supposed to do that yourself, Hazem.

21 13:43:10 You are supposed to --

22 13:43:11 PRESIDENT: Okay. I should have asked the other counsel.

23 13:43:14 MR H KHIRFAN: Yes, yes.

24 13:43:15 MR A NAJDAWI: It's not within the testimonial purposes.

25 13:43:18 MR H KHIRFAN: We believe it is the first hand, handover

01 13:43:20 process 2021.

02 13:43:24 PRESIDENT: What was the --

03 13:43:26 MR H KHIRFAN: The first objective of our --

04 13:43:28 PRESIDENT: Okay, what was the --

05 13:43:30 MR H KHIRFAN: Yes --

06 13:43:31 What was the question.

07 13:43:32 MR H KHIRFAN: The question, were there any pass codes that

08 13:43:34 were within your possession that you did not provide to

09 13:43:37 GAM or the subsequent operator.

10 13:43:39 MR A NAJDAWI: How is that a fact under handover process?

11 13:43:44 It is a testimonial purposes they give you two words,

12 13:43:46 handover process and you're supposed to know all the

13 13:43:48 facts that may might come up with. (Arabic spoken).

14 13:44:04 MR H KHIRFAN: With all due respect --

15 13:44:13 PRESIDENT: -- (overspeaking) -- ^^.

16 13:44:14 (discussion in Arabic).

17 13:44:17 PRESIDENT: In Arabic, please.

18 13:44:22 (discussion in Arabic)

19 13:50:00

20 13:50:16 PRESIDENT: I will rephrase the question.

21 13:50:20 You are kindly requested to answer and describe the

22 13:50:30 handover process and what did it include specifically

23 13:50:38 and specifying how did you do it, the handover.

24 13:50:47 A. Okay. During the handover, we walked the site together

25 13:51:02 with DBE, Mr Angell Ian gous, and GAM's representatives,

01 13:51:12 for sure it was MrRa minute carria and many others,
02 13:51:17 I don't remember now exactly who was present ^name), and
03 13:51:20 we checked all the installations on site.
04 13:51:27 We also before that, we operated the engines for an
05 13:51:35 hour, if I remember correctly. The two of the three
06 13:51:39 engines. Also, we gave to GAM's personnel, all the
07 13:51:55 necessary passwords they needed, in order to take the
08 13:52:00 data from the system.
09 13:52:09 PRESIDENT: And this is it?
10 13:52:12 A. Yes, this is the handover procedure.
11 13:52:15 Sorry, and also I forgot something. We also went to
12 13:52:19 the storage rooms and we checked all the spare parts and
13 13:52:26 all the equipment and we wrote lists what is inside the
14 13:52:31 storage room, and all these were given to GAM.
15 13:52:37 PRESIDENT: Can I ask you a question. How long did this
16 13:52:43 process last?
17 13:52:48 A. I don't remember exactly, but the walk on the site was
18 13:52:57 one day. The storage room it took us three days maybe,
19 13:53:01 two days, I don't remember exactly. But it took us
20 13:53:05 a few days. And the engines we operate them for one
21 13:53:09 hour, as I told you. So it wasn't one day.
22 13:53:12 PRESIDENT: Thank you.
23 13:53:14 MR H KHIRFAN: Okay. Thank you, Mr Chairman. On the
24 13:53:17 Vennlation and dry cooler, do the dry cooler and the
25 13:53:21 ventilation system require any type of maintenance?

01 13:53:26 A. Okay, first of all, the dry cooler and the ventilation
02 13:53:29 are two different systems. Both of them they don't have
03 13:53:34 any schedule maintenance. But they need some
04 13:53:40 maintenance and specifically they need cleaning. That
05 13:53:44 depends on the environment, how often you need to do the
06 13:53:46 cleaning.
07 13:53:50 What happens if you don't clean the ventilation system
08 13:53:52 regularly?
09 13:53:54 A. The ventilation system is the system that its needed to
10 13:54:02 cool the container, but inside the container is the
11 13:54:07 engine. This system has filters. If you don't clean
12 13:54:11 the filters very off, then the temperature of the
13 13:54:16 container arises, goes high.
14 13:54:22 Q. On the confidentiality subject, do you know anyone by
15 13:54:27 the name of Zaid Al husbands ban ^.
16 13:54:39 (discussion in Arabic).
17 13:54:43 A. Something must not be written correctly.
18 13:54:47 Q. Zaid Al hues ban. ^. ALHUSBAN ^.
19 13:54:54 A. No, first time in my life that I hear this name.
20 13:54:56 Q. First time in your life. Thank you. As you know, your
21 13:55:01 son, Mr Constantinidis Hadjidimoulas, published a study
22 13:55:08 with certain findings, facts, observed during his intern
23 13:55:15 ship on the Ghabawi site. (con stin tin ^ and this was
24 13:55:18 submitted in this arbitration as exhibit R-241, I think.
25 13:55:23 Did you inform GAM and/or the DBE engineer that these

01 13:55:29 findings will be included in the published Tsuty?

02 13:55:33 A. Yes, first of all the name is not correct, con stain

03 13:55:38 stin Hadjidimoulas now less, secondly, ^^ those days the

04 13:55:47 owner representative was a project manager from GAM's

05 13:55:50 side with Mr Save dune ensure ^. When my son came it

06 13:55:57 was in 2017, 2016, I don't remember exactly. He

07 13:56:02 received the permission of Mr Save dune ensure ^ to do,

08 13:56:09 to make this study, to make the study, and Mr Save dune

09 13:56:19 game the permission and also he congratulate my son for

10 13:56:24 the very good study he did, that he thought it was

11 13:56:27 a very good study for the project, and for Jordan in

12 13:56:30 general.

13 13:56:32 And I have this, Mr Save dune sent me an email

14 13:56:37 regarding this issue.

15 13:56:38 Q. What did he say in the email?

16 13:56:40 A. He said first of all, that he wants to congratulate

17 13:56:43 Mr Can stin din Hadjidimoulas for the study he did and

18 13:56:48 that he was very satisfied of the study. And he gave

19 13:56:52 the permission to do such study.

20 13:56:55 Q. Okay. Does the DBE know of this email?

21 13:56:59 A. Yes, the DBE knows.

22 13:57:04 Q. Last three questions.

23 13:57:10 When did GAM order DBE inform you that you will no

24 13:57:13 longer be continuing your operation services?

25 13:57:20 A. I don't remember exactly the date.

01 13:57:24 MR A NAJDAWI: I object on one issue which I would like to
02 13:57:28 also tell Hazem about. The questions are continuous
03 13:57:33 I will rephrased as GAM or DBE. When he answers, he
04 13:57:36 doesn't really clarify whether it's GAM or DBE. So
05 13:57:42 either pick one or ask him to clarify before.
06 13:57:45 PRESIDENT: Okay.
07 13:57:47 H KHIRFAN: With this question you're absolutely correct.
08 13:57:49 PRESIDENT: Yes. You are kindly requested to clarify
09 13:57:52 whether it was DBE or GAM or both of them.
10 13:58:02 A. Now what is the question?
11 13:58:04 MR H KHIRFAN: The question was when or I'll rephrase it
12 13:58:10 just to make sure.
13 13:58:17 When was the first time you were informed that you
14 13:58:21 will no longer be continuing your operation in the site?
15 13:58:28 A. I don't remember exactly. It was, if I remember
16 13:58:32 correctly, I think it was around June 2021, but not
17 13:58:37 100 per cent sure if it was June or little bit later or
18 13:58:42 earlier, but it was around that period.
19 13:58:44 Q. So June 2021 you said. Who informed you of this?
20 13:58:49 A. For sure I received an email by the DBE. I do believe
21 13:58:56 that ^^ not I don't ^^ I don't believe if GAM informed
22 13:59:02 me verbally or any other way.
23 13:59:04 Q. Did GAM restrict the operator's access to the site after
24 13:59:08 1 August 2021?
25 13:59:09 A. Yes.

01 13:59:17 PRESIDENT: He answered the question.

02 13:59:19 MR A NAJDAWI: (Arabic spoken).

03 13:59:23 MR H KHIRFAN: I would like to present exhibit R-200.

04 13:59:58 To you want to read? The questions -- Ameen in his

05 14:00:05 email says that GAM did not prevent your team from

06 14:00:08 accessing to RT MS project. The question is is the RT

07 14:00:13 MS project related to Ghabawi Landfill project

08 14:00:17 undertaken by the JV?

09 14:00:17 A. No, the RT MS project is a different project and the

10 14:00:22 joint venture was not the contractor of this project.

11 14:00:29 Q. Okay. Nothing further?

12 14:00:35 PRESIDENT: Okay. We will take a lunch break now.

13 14:00:46 Mr Chris, you are not allowed to discuss your

14 14:00:52 testimony with anybody. Okay?

15 14:00:56 MR A NAJDAWI: You're still under oath.

16 14:00:58 PRESIDENT: And you've still under oath until we come back

17 14:01:00 after lunch.

18 14:01:02 A. Okay ma he can have lunch?

19 14:01:05 PRESIDENT: Of course. You can have lunch, but not to

20 14:01:09 discuss anything. Regarding your testimony, you cannot

21 14:01:23 discuss anything or other testimonies given.

22 14:01:28 WITNESS: Well noted.

23 14:01:29 PRESIDENT: In anybody of your team of the other team or

24 14:01:32 other witnesses. Witness thank you.

25 14:01:37 SECRETARY: Before going to lunch, for him just to write the

01 14:01:40 names he mentioned.

02 14:01:44 (2.01 pm (

03 14:02:00 (2.01 pm ((

04 14:02:04 (Lunch break)

05 14:02:31 (3-point test test test

06 15:04:10 (3.04 pm) m we will reconvene. Mr Christodoulos, you are

07 15:04:31 still under the oath. You will be cross-examined by

08 15:04:39 Mr Najdawi.

09 15:04:49 DR TARAWNEH: You can start.

10 15:04:51 We will wait for Hazem.

11 15:05:04 (discussion in Arabic)

12 15:05:38 PRESIDENT: Okay, your start, Mr Najdawi.

13 15:05:42

14 15:05:42 Cross-examination by Mr A Najdawi

15 15:05:48 MR A NAJDAWI: Hello, Mr Chris?

16 15:05:50 A. Hello.

17 15:05:54 Q. I want to start by asking you whether you were informed

18 15:06:02 directly or indirectly, of what occurred during

19 15:06:10 yesterday's hearing or during the first segment of

20 15:06:16 today's hearing prior to your arrival?

21 15:06:24 A. No, I was not informed.

22 15:06:28 Q. So the first question I want to ask you, Mr -- the

23 15:06:33 second question I want to ask you, Mr Chris is you've

24 15:06:36 stated earlier in your testimony that there is no H2S

25 15:06:44 treatment plant or unit at the power plant; is that

01 15:06:46 correct?

02 15:06:50 A. I told you that we did not install an H2S treatment

03 15:06:58 plant. Of course the facilities that are installed,

04 15:07:03 they can -- the chillers and the

05 15:07:08 filters -- (overspeaking) -- ^^.

06 15:07:08 Q. This wasn't my question. This wasn't my question.

07 15:07:12 My machine was was there ^, ununtil the last day of

08 15:07:17 your presence on the site, an H2S treatment unit?

09 15:07:22 A. And I repeat, if you call H2 treatment unit a separate

10 15:07:30 treatment unit, no, it was not installed.

11 15:07:41 Mr Chris, does H2S generally speaking, the levels of H2S

12 15:07:51 that are emitted from a cell, do they increase with Tim

13 15:07:56 naturally?

14 15:07:59 A. Depends.

15 15:08:00 Q. On? On what?

16 15:08:05 A. I will tell you. Because I work for many years with

17 15:08:11 landfills. I have seen landfills that H2S has increased

18 15:08:16 and I have seen landfills that H2S has decreased after

19 15:08:20 years have passed.

20 15:08:21 Q. So what does it depends on?

21 15:08:25 MR H KHIRFAN: (Arabic spoken).

22 15:08:36 (discussion in Arabic)

23 15:08:54 MR A NAJDAWI: Mr Chris.

24 15:09:01 PRESIDENT: Okay you may proceed.

25 15:09:02 A. Okay. Depends as I told you on many parameters. Two

01 15:09:11 very important parameters is the specific quantities of
02 15:09:16 leachate at the cell and also the kind of the waste
03 15:09:25 inside the cell.
04 15:09:28 MR A NAJDAWI: Thank you. Did the H2S levels in cells 1 to
05 15:09:53 3 increase with time?
06 15:10:00 A. We have noticed that H2S levels in cells 1 and 2,
07 15:10:08 I don't think, and cell 3, were increased the last two
08 15:10:13 months, I think, of the operation.
09 15:10:20 Q. Why was that the case?
10 15:10:26 A. You're asking my opinion?
11 15:10:30 Q. I'm asking for your role in the project and your role as
12 15:10:34 a project manager and your role being aware of
13 15:10:37 everything that took place in the project. Obviously,
14 15:10:39 part of your duties is to assess why certain issues are
15 15:10:46 arising and then address them accordingly. So why did
16 15:10:50 the H2S levels in cells 1 and 2 increase in the last two
17 15:10:55 months and how much was that increase?
18 15:10:58 A. I told you again, my opinion is that the reason for the
19 15:11:03 increase, it was the leachate at cell 5 that cell 5 was
20 15:11:08 the active cell that moment and was receiving new waste
21 15:11:14 and it had a lot of leachate that was around the area,
22 15:11:19 because of cell number 5. And cell number 5 was in
23 15:11:24 contact with cell number 1 and cell number 2.
24 15:11:30 Q. And --
25 15:11:31 A. And how much ^^ another question.

01 15:11:33 Q. Yes.

02 15:11:34 A. Sorry, then I just notice now.

03 15:11:37 If I remember correctly, at cell number 1 and 2, it

04 15:11:43 was an increase and on cell number 3 was not. Cell

05 15:11:48 number 1 and 2 it was, I don't remember how much was the

06 15:11:50 increase, but it was some increase.

07 15:11:56 Q. Roughly speaking, how much was the H2S levels coming out

08 15:12:01 of cells 1 and 2, roughly speaking? Were they beyond

09 15:12:05 the limit or below the limit that you spoke of earlier

10 15:12:07 in your testimony?

11 15:12:11 A. When to you mean?

12 15:12:12 Q. In the last two months or in the period where you've

13 15:12:15 stated that the H2S levels rose.

14 15:12:19 A. If again I remember correctly, of course I have the

15 15:12:22 operational report in front of me, I can tell you

16 15:12:24 better, because I cannot remember all these numbers.

17 15:12:29 But if I remember correctly, in June I think it was

18 15:12:33 around the limit and in July I think it was more than,

19 15:12:36 it was above the limit.

20 15:12:41 Q. Thank you. You stated that you were in the project from

21 15:12:46 the very beginning; correct? From 2013?

22 15:12:50 A. Correct.

23 15:12:52 Q. I want to ask you, Mr Chris, did you ever test or

24 15:13:11 investigate the waste composition of each cell prior to

25 15:13:17 your entry and the commencement of construction in that

01 15:13:20 cell or the capping, prior to the design sorry ^?

02 15:13:28 A. I told you that I was involved with a project since

03 15:13:35 2013, when we started the construction. When we gave

04 15:13:38 our offer, when we did the design, I was not involved at

05 15:13:42 that time.

06 15:13:43 Q. That wasn't in --

07 15:13:45 A. At the end of the construction works.

08 15:13:47 Q. Okay. What about the other cells, cells 2 and 3, you

09 15:13:51 were there from the/beginning?

10 15:13:54 A. Correct.

11 15:13:55 Q. So please answer my question. Did you investigate or

12 15:14:05 take whatever other measures to ascertain the waste

13 15:14:12 composition in those cells prior to design?

14 15:14:21 A. No.

15 15:14:25 Q. And this applies in respect of cell 4 as well?

16 15:14:33 A. Yes.

17 15:14:35 Q. Are you aware of the contractual duties that are placed

18 15:14:39 on the operator, Mr Chris? When it comes to design?

19 15:14:50 A. I believe yes.

20 15:14:52 Q. Do you know whether part of those contractual duties

21 15:15:00 refers to the need to design based on the waste

22 15:15:05 composition of the cell?

23 15:15:13 (discussion in Arabic)

24 15:15:31 PRESIDENT: Okay, you can answer the question.

25 15:15:33 A. I can answer. The composition was given to us by GAM,

01 15:15:39 as I remember, and if I remember correctly from --

02 15:15:44 MR A NAJDAWI: Please, Mr Chris, answer my question. Are

03 15:15:47 you aware whether the contractual duties that are on the

04 15:15:51 operator place on it an obligation to design based on

05 15:15:56 the waste composition of the cell? "Yes" or "no"?

06 15:16:03 A. I told you the design is based on the waste composition

07 15:16:06 that we received by GAM.

08 15:16:09 Q. So you did not investigate that waste composition, that

09 15:16:13 was provide by GAM?

10 15:16:20 A. No, we didn't before the design.

11 15:16:23 Q. What about the gas quality that is coming out from the

12 15:16:28 cell or the composition of the gases that are being

13 15:16:32 emitted from the cell? Is this also part of the

14 15:16:34 contractual scope that is placed upon the operator under

15 15:16:38 the contract, ie to design based on the gas composition

16 15:16:41 of each cell?

17 15:17:01 A. We do the design based on the gas composition.

18 15:17:03 Q. Did you investigate the gas composition of each cell

19 15:17:08 prior to its design, prior to commencing designing

20 15:17:12 activities or throughout the designing activities?

21 15:17:15 A. Is not possible to check the gas composition before

22 15:17:21 connecting to a flair or to a pump something. So this

23 15:17:25 was not possible before the design.

24 15:17:35 Q. You mentioned that you found cement poles in cell 4?

25 15:17:42 A. Poles, yes.

01 15:17:43 Q. In the waste of cell 4; correct? Inside the cell?

02 15:17:47 A. Yes, we did, because we had a damage on our drilling

03 15:17:51 machine when drilling, found the cell pole. I don't

04 15:17:56 remember how deep it was.

05 15:17:58 Q. Cell pole or ^^?

06 15:18:00 A. A lot of poles PELE.

07 15:18:04 Q. Compared to the quantity of the waste in the cell,

08 15:18:11 what's the size? What's the extent of these cell poles?

09 15:18:16 A. I don't know this.

10 15:18:17 Q. You don't know?

11 15:18:21 MR H KHIRFAN: Pole.

12 15:18:22 MR A NAJDAWI: Poles.

13 15:18:29 Like the ones you put the lights on the streets.

14 15:18:33 (discussion in Arabic)

15 15:18:38 MR A NAJDAWI: Do you know, Mr Chris, do you know what

16 15:18:45 municipal waste is?

17 15:18:48 A. Of course.

18 15:18:49 Q. Is this project a project or is the landfill subject

19 15:18:53 matter of this project a landfill for municipal waste?

20 15:18:58 Is this the categorisation of it?

21 15:19:02 A. Yes.

22 15:19:07 Q. Where does municipal waste come from?

23 15:19:14 A. Municipal waste comes, it's the waste from the the

24 15:19:19 houses, the waste from other places, from the cities, it

25 15:19:24 comes the waste from the cities.

01 15:19:26 Q. Please explain to us where municipal waste comes from,
02 15:19:29 ie where is it normally collected from? You've said
03 15:19:36 household bins?
04 15:19:38 A. It's collected from the bins usually.
05 15:19:41 Q. Which are in front of house holds and medical facilitie
06 15:19:46 facilities?
07 15:19:46 A. Municipal waste usually medical facilities it should not
08 15:19:50 be in the municipal waste.
09 15:19:59 (discussion in Arabic)
10 15:21:05 A. Do you want many to explain what is municipal waste?
11 15:21:08 MR A NAJDAWI: No, no, it's okay.
12 15:21:14 DR AL BASHIR: The tribunal and lawyers speaking in Arabic,
13 15:21:16 just to not obscure your testimony. So we're sorry that
14 15:21:19 we're speaking no Arabic.
15 15:21:21 A. No, no problem.
16 15:21:26 MR A NAJDAWI: Mr Chris, did you investigate the cells and
17 15:21:38 the state and the condition of the cells generally
18 15:21:40 speaking, each before commencing designing activities or
19 15:21:47 throughout designing activities? I'm say generally.
20 15:21:54 A. Yes, we investigated the cells and the condition of the
21 15:21:58 cells before the design and we found that there were
22 15:22:04 a lot of problems specifically with the slopes.
23 15:22:07 Q. I didn't ask you -- (overspeaking) -- ^^ please limit
24 15:22:09 yourself to my question?
25 15:22:10 A. You told me the question of the cells. I'm asking crop

01 15:22:14 crops.

02 15:22:14 Q. You answered yes, let me ask?

03 15:22:16 A. You ask me about the condition of the cells ^^.

04 15:22:19 Q. Yes, I didn't -- (overspeaking) -- ^^?

05 15:22:21 A. Condition ^^.

06 15:22:22 Q. Did you investigate the state and condition in which the

07 15:22:24 cells were in prior to designing or throughout designing

08 15:22:28 activities if you said yes?

09 15:22:29 A. Yes.

10 15:22:29 Q. Let me ask the following question.

11 15:22:31 Were you aware of the level of leachate in these

12 15:22:34 cells prior to design and throughout design and

13 15:22:38 throughout capping?

14 15:22:44 A. Yes.

15 15:22:46 Q. Were you aware of the level of leachate in these cells

16 15:22:55 throughout the entirety of operation services?

17 15:23:02 A. Yes.

18 15:23:06 Q. So you could, in fact, both before design, before

19 15:23:10 construction, during construction, after construction,

20 15:23:14 you could know and you could ascertain the level of

21 15:23:19 leachate in these cells; correct?

22 15:23:25 A. We knew, we were given reports of the levels of the

23 15:23:28 leachate with every monthly report.

24 15:23:37 Q. You were given reports or you gave reports?

25 15:23:42 A. During the construction and the -- during the operation

01 15:23:46 period, we were providing reports in which ^^ we were
02 15:23:50 measuring the level of the leachate inside the gas well
03 15:23:55 wells.
04 15:23:55 Q. Inside the gas wells. I'm talking about inside the
05 15:23:58 cells, not inside the gas wells. My question is very
06 15:24:01 clear, Mr Chris.
07 15:24:02 A. Yes.
08 15:24:02 Q. Before design, before construction, during construction,
09 15:24:06 and during operations, were you able to know the level
10 15:24:10 of leachate within the cell?
11 15:24:14 A. Before the design we were not able to know the level
12 15:24:18 inside the cell. During the operation, by measuring the
13 15:24:24 leachate level inside the gas wells, we had a good idea
14 15:24:29 about the level of the leachate in the cell.
15 15:24:33 Q. Why weren't you able prior to design to ascertain the
16 15:24:36 level of leachate within the cell?
17 15:24:39 A. Because to do this you need to drill to see where is the
18 15:24:43 level of leachate. The only thing we knew about the
19 15:24:47 design was that was an overflow of the leachate around
20 15:24:52 the cells.
21 15:24:56 Q. Is drilling within the cell, is it prohibited?
22 15:25:05 A. We drilled a lot inside the cell. We drilled gas wells,
23 15:25:09 we drill leachate wells we drill a lot of things during
24 15:25:12 the construction works.
25 15:25:18 Q. And as a matter of fact, were you ever concerned about

01 15:25:25 the leachate levels and did you inform GAM of the
02 15:25:30 leachate levels at the early stages of each activity you
03 15:25:39 took on each cell?
04 15:25:41 A. What do you mean of each activity we took on each cell.
05 15:25:45 Q. Let's take cell 1 as an example.
06 15:25:47 A. Yeah, what do you -- (overspeaking) -- ^^.
07 15:25:49 Q. Do you recall before entering, before commencing the
08 15:25:52 works and the design activities, do you recall the JV
09 15:25:59 saying that the condition of the cell is not proper
10 15:26:04 because of the levels of leachate?
11 15:26:10 A. I remember that we had a change proposal here and we did
12 15:26:15 some extra works.
13 15:26:17 "yes" or "no"?
14 15:26:17 A. Because of the slopes.
15 15:26:18 Q. "yes" or "no"?
16 15:26:19 A. And yes, we did.
17 15:26:34 Q. Mr Chris, regarding cells 2 and 3 and 4, is that
18 15:26:41 similarly the case?
19 15:26:48 A. The first cell we did the rehabilitation is not cell 1.
20 15:26:53 It was cell 2.
21 15:26:54 Q. Okay.
22 15:26:55 A. Is I think your question means regarding cells 3 and 4.
23 15:27:00 Q. Yes.
24 15:27:00 A. Am I correct?
25 15:27:02 Q. Yes.

01 15:27:03 A. It was the same situation, with cell number 2. So we
02 15:27:07 did the same works before starting the contract works.
03 15:27:12 Q. And 4?
04 15:27:15 A. 4 it was in a much better condition, but still it had
05 15:27:18 things to do, yeah, it had some works like this to do.
06 15:27:26 Q. Is leachate alone as a factor taken alone, can it be
07 15:27:35 scientifically linked or as you've stated earlier, there
08 15:27:39 are very important parameters to justify why H2S levels
09 15:27:48 can rise. You've stated leachate and you've stated the
10 15:27:51 waste composition. Correct?
11 15:27:54 A. I said two parameters, yes.
12 15:27:58 Q. Can one of these parameters alone, ie leachate alone
13 15:28:03 with a proper waste composition, can it cause high H2S
14 15:28:08 levels of the sort you found in this landfill alone?
15 15:28:17 A. Yes, it can.
16 15:28:30 Q. Mr Chris, you said that at the time of designing cells 2
17 15:28:38 and 3, you said that you determined, I think my
18 15:28:43 colleague phrased it as determined or determination --
19 15:28:48 but in fact you recommended during the design phase, not
20 15:28:52 to have an H2S treatment unit. Correct?
21 15:28:57 A. This happened at the design of phase 3.
22 15:29:05 Q. Phase 3, correct.
23 15:29:06 A. Not cells 2 and 3.
24 15:29:08 Q. Not phase 2?
25 15:29:10 A. Cells 2 and 3, not cells 2 and 3 ^^, phase 3.

01 15:29:14 Q. So it's phase 3, the power plant?

02 15:29:16 A. Yes.

03 15:29:18 Q. You stated that these were based on portable -- on

04 15:29:23 readings from portable analysers that you had, handheld?

05 15:29:29 A. Correct.

06 15:29:32 Q. Why are there no logs whatsoever of any portable

07 15:29:37 handheld analyser prior to the connection of cell 4 in

08 15:29:45 the end of 2020?

09 15:29:50 A. I think there are some measurements but in any case it

10 15:29:55 was not required for that measure the H2S during the

11 15:30:02 operation of the cells before the power plant. But

12 15:30:06 after the power plant we have measurements of H2S.

13 15:30:10 Q. You have measurement, you have monthly measurements?

14 15:30:13 A. Monthly measurements, to.

15 15:30:15 Q. Logs of monthly measurements prior to the connection of

16 15:30:17 cell 4?

17 15:30:19 A. Monthly measurements we don't have because it was not

18 15:30:22 required. You want me to explain this more to you?

19 15:30:26 Q. You said some. I want to know what some are you

20 15:30:30 referring to?

21 15:30:32 A. The important for the operation of the power plant is

22 15:30:37 the percentage of methane and oxygen

23 15:30:42 and -- -- (overspeaking) -- ^^.

24 15:30:42 Q. I don't want you to explain,

25 15:30:45 Mr Chris -- (overspeaking) -- ^^?

01 15:30:45 A. I want to tell you something --

02 15:30:46 Q. I want to understand, you said we have some records of

03 15:30:50 handheld portable analyser readings of H2S after we

04 15:30:56 commissioned the power plant which I believe was in

05 15:31:02 mid-2019 and before the connection of cell 4 towards the

06 15:31:06 end of 2020. Correct?

07 15:31:10 A. We have also before the design of the power plant. The

08 15:31:16 reason that we chose not to install an

09 15:31:22 H2S -- (overspeaking) -- ^^.

10 15:31:22 Q. You're not answering my question. This is not my

11 15:31:24 question?

12 15:31:24 A. No, because you don't say it -- (overspeaking) -- ^^.

13 15:31:27 I have to correct, this is what I'm doing. This is what

14 15:31:29 I'm doing. Because here you say we made measurements

15 15:31:34 before the design of phase 3 and based on that

16 15:31:39 measurements, we understood that was no need to install

17 15:31:44 a gas H2S treatment plant.

18 15:31:47 Q. I finished that question a long time ago and I asked you -- (overspeaking)

19 15:31:51 -- ^^?

20 15:31:51 A. You said after ^^.

21 15:31:51 Q. No, Mr Chairman?

22 15:31:53 A. H2S --

23 15:31:55 PRESIDENT: Please can you answer directly the question.

24 15:31:57 MR A NAJDAWI: Let me ^^ repeat the question.

25 15:32:02 When I asked you whether there were logs of portable

26 15:32:10 handheld analyser readings of H2S prior to the

01 15:32:16 connection of cell 4 to the power plant, the end of
02 15:32:20 2020, you said no, because we're not required to, but
03 15:32:23 there were some measurements, correct?
04 15:32:26 A. I said yes, there were some measurements, yes.
05 15:32:29 Q. What are those --
06 15:32:30 A. No monthly, some measurements.
07 15:32:32 Q. What are those some? When were they? Like how frequent
08 15:32:35 were they? Were they every is exmonths, every year?
09 15:32:39 A. As I told you it was not required for the ^^ the only
10 15:32:43 thing we care if it was above or below the limit. So
11 15:32:46 for that reason, we did not have like the other
12 15:32:50 measurements daily or monthly measurements.
13 15:32:53 Q. And you said the DBE agreed to your recommendation,
14 15:32:58 which my colleague phrased as a determination. You said
15 15:33:01 the DBE agreed to your recommendation not to having an
16 15:33:06 H2S treatment unit at the time of designing the power
17 15:33:09 plant.
18 15:33:11 A. Correct.
19 15:33:12 Q. Is the DBE -- does the DBE assist you or make any
20 15:33:20 recommendations to you during your design of the power
21 15:33:26 plant or of any other aspect? Is he involved in the
22 15:33:30 design in a manner which makes him recommendation things
23 15:33:34 to you and is he involved in these phases?
24 15:33:39 A. Yes, he is.
25 15:33:40 Q. And he prepares the design with you?

01 15:33:42 A. No, he doesn't prepare. He approves or he makes
02 15:33:47 comments and recommendations.
03 15:33:49 Q. He makes recommendations?
04 15:33:50 A. Comments, recommendations, and he approves or
05 15:33:54 disapproves.
06 15:33:58 Q. When we talk about or when you addressed the issue of
07 15:34:03 the H2S measurements on the SKADA system, correct, the
08 15:34:07 analyser on the SKADA system for H2S, you said that its
09 15:34:11 limited to 200PPM; correct?
10 15:34:17 A. Correct.
11 15:34:18 Q. And were the monthly records prior to the connection of
12 15:34:24 cell 4 in your monthly progress reports limited to the
13 15:34:29 reads, of that analyser when it came to H2S?
14 15:34:38 A. No.
15 15:34:38 Q. Were there other readings in your monthly progress
16 15:34:41 reports prior to the connection of cell 4?
17 15:34:43 A. Prior to the connection of cell 4, the readings of H2S
18 15:34:46 were more than 200PPM, but less than the limit.
19 15:34:50 Q. My question isn't that. My question is in terms of the
20 15:34:53 reads, of H2S that you disclosed to GAM in your monthly
21 15:34:56 progress reports prior to the connection of cell 4, were
22 15:35:01 those H2S measurements taken from the analyser that is
23 15:35:07 connected to the SKADA system, which is limited to
24 15:35:11 200PPM?
25 15:35:12 A. No.

01 15:35:14 Q. What were the readings that appeared in your monthly
02 15:35:17 progress reports before the connection of cell 4?
03 15:35:27 A. I don't remember exactly, but as I remember it was
04 15:35:29 around 400, 350, 450PPM, something like this ^ if
05 15:35:34 I remember correctly.
06 15:35:35 Q. So you're saying you were disclosing to GAM the actual
07 15:35:40 H2S readings in your monthly progress reports during the
08 15:35:44 operation of the power plant and prior to the connection
09 15:35:48 of cell 4?
10 15:35:53 A. I told you that in the monthly progress reports, during
11 15:35:57 the operation of the power plant, prior to the
12 15:36:00 correction of cell 4, we did not report always the H2S.
13 15:36:05 I don't remember exactly when we did some measurements,
14 15:36:10 but I don't remember being reporting, we will report
15 15:36:14 maybe in a few operation reports, not in all operation
16 15:36:17 reports.
17 15:36:18 Q. I can refresh your memory with the monthly progress
18 15:36:20 reports, but let me tell you, there are no measurements
19 15:36:25 except those coming from the SKADA system. What I want
20 15:36:29 to ask you about is what were the readings coming out of
21 15:36:33 the SKADA system consistently during the operation of
22 15:36:36 the power plant, throughout the entire time. What was
23 15:36:41 the reading that came out?
24 15:36:42 A. For the H2S you mean.
25 15:36:44 Q. Yes.

01 15:36:45 A. The H2S was set to one reading under 200PPM ^ I think it
02 15:36:53 was 150PPM if I remember correctly split was always
03 15:36:58 150PPM as reported by SKADA; correct?
04 15:37:01 A. This was set, but it was known that this was not a real
05 15:37:09 measurement because it could not be a real measurement
06 15:37:10 and be stable 150PPM of course.
07 15:37:19 Q. I want to ask you a very important question. You looked
08 15:37:22 at exhibit R-229. That I believe is in the middle, Jud
09 15:37:41 Jude.
10 15:37:41 No, not this. R-51, Jude. R-53, the one before it.
11 15:37:55 R-51. Can we go below. The lab samples. I want
12 15:38:01 the lab samples. C-464.
13 15:38:08 Look at this, Mr Chris. You've looked at this
14 15:38:11 during your direct examination. Tell us what this is
15 15:38:20 and the dates of it, not the date of the letter, but the
16 15:38:23 date of the results that are mentioned here.
17 15:38:33 A. I see that's 26 November 2022. Is before the connection
18 15:38:37 of cell 4.
19 15:38:39 Q. Was cell 4 capped by then?
20 15:38:48 A. The works for the capping I think it were completed
21 15:38:51 in December 2020. So maybe were not 100 per cent
22 15:38:56 completed in November.
23 15:38:58 Q. But there were gas wells; correct?
24 15:39:00 A. Yes.
25 15:39:01 Q. In cell 4?

01 15:39:03 A. Yes.

02 15:39:04 Q. So if you look at these, I want you to look through

03 15:39:07 these documents. And I want you to tell me what they

04 15:39:13 represent, inters of which cells do they pertain to?

05 15:39:16 A. That date, there were gas wells drilled at cell number

06 15:39:20 4, but these gas were not connected to the power plant.

07 15:39:23 Q. No, no, no?

08 15:39:24 A. So these results are coming from cells 1, 2 and 3.

09 15:39:29 Q. For cells 2, 1 and 3?

10 15:39:30 A. 1, 2 and 3.

11 15:39:32 Q. Not cell 4?

12 15:39:33 Cell 4 in November it was not -- the gas wells of cell 4

13 15:39:36 were not connected to the main pipeline that takes the

14 15:39:40 gas to the engines.

15 15:39:42 Q. When did you send these results to GAM? You've stated

16 15:39:48 the date preceded by I think a month the connection of

17 15:39:52 cell 4; correct?

18 15:39:55 A. I don't remember when we sent them, I remember that we

19 15:39:57 sent them.

20 15:39:59 Q. Go to the covering letter?

21 15:40:01 A. But you can remind when we send it. I don't remember

22 15:40:04 exactly.

23 15:40:04 Q. This is your email.

24 15:40:06 A. So I guess it says 14 February.

25 15:40:09 Q. Yes. 17 February which year ^^?

01 15:40:14 A. 2021.

02 15:40:15 Q. So what's the period between the results of these tests

03 15:40:19 and the period you reported it to GAM?

04 15:40:23 A. Three months, I think.

05 15:40:23 Q. What's the period between those results and the

06 15:40:27 connection of cell 4 to the power plant?

07 15:40:30 A. The connection of cell 4 to the power plant I think it

08 15:40:33 was the end of December 2021 or the beginning

09 15:40:37 of January, I think the end of December 2020, sorry.

10 15:40:43 Q. And you did not provide GAM prior to the connection of

11 15:40:47 cell 4, any readings of H2S emitted from cell 4, "yes"

12 15:40:54 or "no"?

13 15:40:55 A. We cannot provide any readings -- (overspeaking) -- ^^.

14 15:40:57 Q. I asked you a question. "Yes" or "no"?

15 15:40:58 A. Before the connection of the gas wells of cell 4.

16 15:41:02 Q. Before the connection of cell 4 to the power

17 15:41:05 plant -- (overspeaking) -- ^^?

18 15:41:06 A. We didn't provide, we cannot do this.

19 15:41:08 Q. You cannot test the gas being emitted through the gas

20 15:41:11 wells?

21 15:41:11 A. No, in it's not connected to the pump, results are not

22 15:41:17 accurate.

23 15:41:32 Q. So the reading that you are talking about when it comes

24 15:41:35 to cells 1 to 3 are readings from the main collection

25 15:41:37 pipe you have stated, that is feeding the power plant;

01 15:41:41 correct?

02 15:41:42 A. The readings before from the laboratory you mean that

03 15:41:44 you show me here.

04 15:41:45 Q. Yes, yes?

05 15:41:46 A. Yes okay.

06 15:41:48 Q. There were other readings that you provided later on for

07 15:41:51 cell 4 after its connection, readings of H2S at the

08 15:41:57 manifolds; correct?

09 15:42:00 A. At the manifolds from which cell?

10 15:42:02 Q. For cell 4?

11 15:42:03 A. Yes, I think so, yes.

12 15:42:06 How did you determine which gas well to turn off? If

13 15:42:12 you're telling me you cannot measure the H2S that is

14 15:42:15 coming out from a specific gas well, how did you

15 15:42:19 determine which gas well to turn off so that no more H2S

16 15:42:23 comes into the plant?

17 15:42:24 A. I didn't tell you that we cannot measure when the gas

18 15:42:27 wells and the manifolds are not connected to the power

19 15:42:30 plant. When we are connected ^, we can measure exactly

20 15:42:34 from each well how much is H2S.

21 15:42:37 Q. And the manifolds, please tell me, the manifolds, where

22 15:42:41 are those manifolds located? Are they located before

23 15:42:44 the main collection pipe or after the main collection

24 15:42:47 pipe?

25 15:42:48 A. The manifolds are located before the main connection

01 15:42:51 pipe.

02 15:42:52 Q. So closer to the cell?

03 15:42:54 A. They are on the cell.

04 15:42:56 Q. On the cell. I just want to go back to the issue of

05 15:43:14 leachate and ask one more question on it.

06 15:43:19 Have you ever, ever, in writing, prior to January or

07 15:43:28 priority 2021, informed GAM of any need to operate the

08 15:43:36 existing leachate drainage system?

09 15:43:45 A. We informed in writing prior to January 2021 GAM of the

10 15:43:51 necessity GAM to pump leachate.

11 15:43:54 Q. Mr Chris --, and to operate --

12 15:43:58 Look, look, I'm asking you a very simple question.

13 15:44:00 I said -- and it's very specific. I said have you ever

14 15:44:06 priority 2021, with that GAM operate the existing

15 15:44:12 leachate drainage system specifically?

16 15:44:20 A. There is no drain at it extraction system ^^.

17 15:44:24 Q. Continue ^^ I'm talking about the leachate drainage

18 15:44:26 system that my colleague asked you about that is the

19 15:44:28 existing facility you have stated. Have you requested

20 15:44:32 prior to 2021, that GAM operate whatever existing

21 15:44:39 facility there was in the cell, with regards to leachat

22 15:44:45 leachate?

23 15:44:45 A. We have letter, yes, that we inform that they need to

24 15:44:47 pump leachate from the existing facilities.

25 15:44:50 Q. Prior to 202 1-6R7B8GS prior to 2021, yes.

01 15:44:53 Q. Your answer to my colleague was that it was in January
02 15:44:56 or February --
03 15:44:58 MR H KHIRFAN: Let's see the record, please.
04 15:45:01 MR A NAJDAWI: Can we go to that question, please, on the
05 15:45:03 record?
06 15:45:44 (discussion in Arabic)
07 15:46:18 MR A NAJDAWI: I'll ask another question on what you've just
08 15:46:20 stated.
09 15:46:21 How many times did you tell GAM that in writing?
10 15:46:24 A. I don't remember.
11 15:46:25 Q. Were there a lot of times?
12 15:46:29 I really don't remember if it was a lot. It was some
13 15:46:32 times, in writing. Because verbally we were always on
14 15:46:36 site asking them to do it, but in writing I remember
15 15:46:39 some times, but I cannot tell you how many.
16 15:46:41 Q. But you said the system was inoperative, right?
17 15:46:45 A. This is why I tell you before, it has a lot of systems,
18 15:46:48 that's why I wanted to specify specifically which system
19 15:46:51 you're talking about. If we are talking about the
20 15:46:55 leachate extraction system they underground pipes at the
21 15:47:00 bottom of the cells at cell 1, the and 3, these were not
22 15:47:02 working. But if we are talking about porching from the
23 15:47:06 shafteds around the cells, yes, we are asking GAM to
24 15:47:11 send the leachate truck and pump the leachate.
25 15:47:13 Q. Thank you very much. For the systems that underground,

01 15:47:18 have you ever asked GAM, and this is what my colleague
02 15:47:22 asked you about. Have you ever asked GAM, requested GAM
03 15:47:26 to pump through that systems that underground? "Yes" or
04 15:47:29 "no"?
05 15:47:30 A. For cells 1, 2 and 3? Or for 4 also?
06 15:47:33 Q. Generally speaking throughout the entire project
07 15:47:37 lifetime, prior to 2021.
08 15:47:42 A. If I remember correctly, for cells 1, 2 and 3, we never
09 15:47:46 asked because we knew that those were not working. For
10 15:47:50 cell number 4, because there was a pump station, I think
11 15:47:55 we asked them operated ^^ (asked them to operate it ^.
12 15:47:59 Mr Chris, are you 100 per cent sure, 100 per cent sure
13 15:48:04 that they were inof raltive, that system was inoperative
14 15:48:08 in cells 1 to 3 or are you saying that they were
15 15:48:12 inactive, there was no one operating them i?
16 15:48:19 A. I didn't check the systems, but as far as I know, this
17 15:48:25 system will not possible to operate.
18 15:48:27 Q. Was not possible?
19 15:48:27 A. As far as I know.
20 15:48:29 Q. Was not possible to operate?
21 15:48:30 A. Yeah, because they were not operating, they were not --
22 15:48:34 GAM was not, they were not your damage ^^ exactly was
23 15:48:39 going on with the system, but they were not able to
24 15:48:41 operate this systems at cells 1, 2 and 3.
25 15:48:44 Q. The question is they did not operate it or they were not

01 15:48:49 able to operate it because of damage, because of any
02 15:48:53 other thing?
03 15:48:54 A. This is something this I was not responsible for the
04 15:48:56 operation of this, but as far as I know, they were not
05 15:48:59 able to operate it, as far as I know. Because you asked
06 15:49:04 me if I'm 100 per cent sure. I told you as far as
07 15:49:07 I know.
08 15:49:16 Q. How did you come to know of this? You said as far as
09 15:49:21 I know.
10 15:49:22 A. Because when we were on site, we had a communication
11 15:49:26 with the people of the landfill, daily communication, we
12 15:49:30 were talking daily about the works that we were doing,
13 15:49:32 about the work they were doing, we were in touch with
14 15:49:34 the people of GAM, on site, the landfill.
15 15:49:37 Q. There were people of GAM on the landfill?
16 15:49:40 A. Yes.
17 15:49:40 Q. And those people knew about the existing underground
18 15:49:46 system?
19 15:49:47 A. They knew, yes, that was it some time existing
20 15:49:51 underground system.
21 15:50:25 Q. One answer that you gave previously, Mr Chris. You said
22 15:50:31 that the only measures you did to address the issue of
23 15:50:37 H2S is by isolating the gas wells or reducing the gas
24 15:50:42 being emitted from them plus changing the oil in the
25 15:50:46 engines; correct?

01 15:50:49 A. And also I told you that we did more oil testing at the
02 15:50:55 laboratory. We were taking more often samples from oil
03 15:51:00 and send them to the laboratory for testing.
04 15:51:03 Q. These were the only measures that were required to
05 15:51:06 address the issue of H2S at the time? You belief that
06 15:51:10 by taking these measures only the operator has addressed
07 15:51:14 the issue of H2S during operations?
08 15:51:20 A. We wrote, specially we wrote in our offer for the
09 15:51:23 extension of the operation, that -- (overspeaking) -- ^^
10 15:51:26 we will take.
11 15:51:27 Q. I didn't ask you about the offer?
12 15:51:29 -- (overspeaking) -- ^^ about it ^^.
13 15:51:30 Q. I asked you about the measures that you took. My
14 15:51:33 colleague asked you these measures. You said what we
15 15:51:36 did was we isolated the gas wells and we changed the oil
16 15:51:41 and we increased the frequency of the oil sampling and
17 15:51:45 the oil testing. Correct?
18 15:51:46 A. Mm-hmm.
19 15:51:48 Q. Were these two measures enough for the operator to
20 15:51:51 address the issue of H2S in the power plant? "Yes" or
21 15:51:56 "no"?
22 15:51:57 A. You cannot say "yes" or "no". Depends of the results?
23 15:52:01 A. We also addressed other measures that we needed to take
24 15:52:04 in the future. So was not only this.
25 15:52:09 Q. Look, Mr Chris, I'm talking about during your operation

01 15:52:12 of the power plant. During your operation. I'm not
02 15:52:14 saying about what you told GAM, about future operations.
03 15:52:18 I'm saying during your operation of the power plant, as
04 15:52:21 a JV, you addressed, you said that we addressed the
05 15:52:25 issue of H2S by taking only two measures. Those were
06 15:52:30 the isolation of gas wells and the changing of the oil
07 15:52:33 coupled with the more frequent sampling and testing of
08 15:52:37 the oil?
09 15:52:37 A. Yes, these were the measures we agreed with DB to take
10 15:52:40 at that moment.
11 15:52:42 Q. Everything was agreed with the DBE.
12 15:52:45 Did this measure result in addressing the issue of
13 15:52:51 H2S is solving, resolving the issue of H2S in the power
14 15:52:55 plant? It's a "yes" or "no"?
15 15:52:57 A. It is a yes.
16 15:52:59 Q. It's solved?
17 15:53:00 A. Yes.
18 15:53:01 Q. Then why did you inform GAM as part of your offer for
19 15:53:04 the next renewal of operations, that you needed to do
20 15:53:08 more maintenance, that you needed to do more spare
21 15:53:13 parts, that you needed to service and clean the engines
22 15:53:16 more often, that you needed more personnel, and that you
23 15:53:19 needed to change the oil?
24 15:53:24 A. Because this depends on the operation hours. That means
25 15:53:28 when we started taking these measures, the engine had

01 15:53:32 operation hours let's say 2,000 ^^ we needed to do this,
02 15:53:34 but later, after we exceed these hour hours and the
03 15:53:39 engines were operating for more time, we needed to take
04 15:53:42 more measures and in our offer, we described in details
05 15:53:47 what measures we are planning to to.
06 15:53:49 Q. That's very correct, and those measures that you
07 15:53:51 described in your offer justified an exponential price
08 15:53:57 increase to your future operational fees; correct?
09 15:54:02 A. Yes.
10 15:54:51 I just want to say that my transcript is paused.
11 15:55:08 I don't see it ^^ Page 127.
12 15:55:13 Thank you.
13 15:55:36 Q. Mr Chris, after leaving the project, so th
14 15:55:49 post-31 July, were you still able to have access to the
15 15:55:53 H2S readings of the power plant?
16 15:56:00 A. No, after we left, I was not connected.
17 15:56:05 Q. I'm saying --
18 15:56:06 A. I was not able to go to the power plant, to take my
19 15:56:11 handheld equipment and go and measure. I was not able
20 15:56:16 to do that.
21 15:56:18 Q. This is --
22 15:56:18 A. For the joint venture project, this was noble possible.
23 15:56:22 The joint venture was not possible to have such
24 15:56:25 information.
25 15:56:25 Q. This wasn't -- are you saying have such information

01 15:56:29 generally or only through portable handheld devices?

02 15:56:32 A. I think we said before that H2S we only measured by

03 15:56:36 portable devices. I think we're clear for that. So

04 15:56:40 this was the only way to measure it ^^ on this project,

05 15:56:45 in this project, joint venture project.

06 15:56:48 Q. Jude, can we please present exhibit C-506.

07 15:57:04 Please look at this letter, Mr Chris. And read it

08 15:57:08 very carefully, noting that its date is 17 August 2021?

09 15:57:15 A. Yes.

10 15:57:21 Q. It says:

11 15:57:22 "Following the delivery of the operation and

12 15:57:24 maintenance services to the owner and withouts have

13 15:57:25 granted any access to the power station data

14 15:57:28 ^reading...) that since the 8th of August since ^ck

15 15:57:31 reading...) put into operation the H2S concentration of

16 15:57:33 the landfill is very high. Specifically, the H2S

17 15:57:37 concentration in the landfill ga varies from 1,400PPM to

18 15:57:42 2,600PPM." ^doc.

19 15:57:44 Correct?

20 15:57:45 A. Mm-hmm.

21 15:57:46 Q. How did the JV know about this?

22 15:57:51 A. This, in addition to this project, it was another

23 15:57:55 project that we discuss I think earlier, the RTMS, the

24 15:58:00 realtime monitoring system. That was a project that the

25 15:58:03 contractor was not the joint venture. The contractor

01 15:58:07 was lek tra. Because I was the project manager for this
02 15:58:10 project, I had this information and I saw this ratings
03 15:58:18 and I was scared what will happen with the engines and
04 15:58:20 I told the joint venture that we need to inform GAM
05 15:58:23 immediately about this.
06 15:58:24 Q. When you said earlier in your earlier testimony that the
07 15:58:29 JV had no role in this RTMS project, you failed to
08 15:58:34 mention, however, that the main member company in that
09 15:58:39 JV hell co, was in fact the contractor of that RTMS
10 15:58:43 project; is that correct?
11 15:58:43 A. Yes, but was another project, another contract, another
12 15:58:46 tender, everything was different the.
13 15:58:47 Q. And a totally different entity?
14 15:58:50 A. Yes, it is a different entity.
15 15:58:52 Q. Totally different Helector from the JV?
16 15:58:58 A. It was another, a different entity, with a different VAT
17 15:59:02 number, let's say.
18 15:59:11 Q. When you told my colleague in your answer to my
19 15:59:15 colleague, you said that we were restricted from access
20 15:59:17 to the site from 1 August onwards?
21 15:59:22 A. Sorry, which is your colleague, you mean --
22 15:59:24 Q. My colleague?
23 15:59:25 A. Sorry, yeah. Can you please repeat?
24 15:59:29 Q. He asked, my colleague he asked you earlier during the
25 15:59:32 direct examination, whether GAM restricted your access

01 15:59:36 to the site from 1 August onwards?

02 15:59:41 A. Yes.

03 15:59:44 Q. And you answered yes?

04 15:59:45 A. Yes.

05 15:59:46 Q. Why did you want to access the site?

06 15:59:49 A. I send an email I think it was 1 August, if I am

07 15:59:55 correct, maybe it was the 2nd, but I think it was the

08 15:59:58 1st, because the day that we did the handover, we had

09 16:00:01 a lot of work to do. I was not able to take pictures

10 16:00:03 or something. And I asked for permission to go and take

11 16:00:07 pictures and the answer I received that we are not

12 16:00:09 permitted any more to visit the site.

13 16:00:11 Q. Why did you want to take pictures?

14 16:00:13 A. I wanted to to have the situation from the moment we

15 16:00:17 left, because I was afraid that may be the situation

16 16:00:20 would be worse in the future and I wanted to have photos

17 16:00:23 from the situation the time we left.

18 16:00:25 Q. You were ^^?

19 16:00:26 A. Exact ^^.

20 16:00:27 Q. You were afraid or you knew that the situation will be

21 16:00:29 worse when you leave?

22 16:00:30 A. I didn't know. I was I didn't know how they will

23 16:00:33 operate it.

24 16:00:37 Q. Okay. You have mentioned earlier the allowable limit in

25 16:00:45 the manufacturer's technical bulletin. I don't know if

01 16:00:49 you've mentioned it's 750PPM?

02 16:00:55 A. No.

03 16:00:59 Q. 750PPM?

04 16:01:01 A. No, this is not the limit is 1,500PPM based on call risk

05 16:01:10 value of 10 kill VAT. That means for methane

06 16:01:14 100 per cent. If the methane percentage varies, this

07 16:01:18 also varies. So it's 750 for methane, 50 per cent, that

08 16:01:23 is an average per cent for landfill gas. That's why you

09 16:01:27 can ^^ if methane is 55 per cent, then it's around 800

10 16:01:31 something. If it's 40 per cent, it's --

11 16:01:33 Q. What's the methane percentage in the power plant, in our

12 16:01:37 landfill?

13 16:01:37 A. Depends.

14 16:01:38 Q. At the time you were there?

15 16:01:41 A. Also this changes very much. The time I was there

16 16:01:44 I remember having from 48 to 58.

17 16:01:49 Q. So it ranged between 48 to 58?

18 16:01:52 A. Approximately, maybe.

19 16:01:54 Q. The 1,500PPM that you just stated which is for -- what

20 16:01:58 did you say, call risk?

21 16:02:00 A. For call risk value 10 kill VAT.

22 16:02:03 Q. Yes. Is this for -- I'll come back to this question in

23 16:02:25 a bit. You mentioned, Mr Chris,, you talked about the

24 16:02:47 personnel, the key personnel leaving before or during

25 16:02:52 Covid, when Covid --

01 16:02:54 A. I mentioned the key personnel that when the Covid
02 16:02:58 restrictioning started they were out of the country.
03 16:03:00 Q. Yes. So they were out of the country, they did not
04 16:03:06 leave. Because whenever I asked when they left, you
05 16:03:09 said that they left. You and other fellow witnesses
06 16:03:13 have said they were out of the country. It happened
07 16:03:16 that they were out of the country when the restrictions
08 16:03:18 took place.
09 16:03:20 A. You want me to tell you what happened?
10 16:03:22 Q. I want you to tell me when you left the country, you.
11 16:03:25 A. Okay. Me personally. I was outside the country and
12 16:03:29 I had a rush ticket, if I remember ceacts I are, for dc
13 16:03:32 dch.
14 16:03:32 Q. When did you leave the country, that was my question?
15 16:03:34 A. I don't remember exactly when I left, but I this it was
16 16:03:37 around 10 March. I had -- (overspeaking) -- ^^.
17 16:03:43 Q. That wasn't my question. That was your annual leave?
18 16:03:46 A. Yes.
19 16:03:47 Q. What about the drilling operator and the foreman?
20 16:03:50 A. The drilling operator and the foreman, they left I think
21 16:03:58 15 March or 16 or 15 or 14, something like this.
22 16:04:01 Q. Also on annual leave?
23 16:04:04 A. These people they left when we knew that the airport of
24 16:04:10 Amman was going to be closed and all flights will be
25 16:04:14 suspended. So they wanted, they were afraid to stay in

01 16:04:19 Jordan and they wanted to return back to Greece and
02 16:04:23 return to Jordan when the things will be better, because
03 16:04:25 at that time nobody knew how long this will last.
04 16:04:31 Q. Do you know, Mr Chris, are you aware of the level of
05 16:04:37 damages, losses or costs that the JV is claiming from
06 16:04:42 GAM as a result of delays caused allegedly by the travel
07 16:04:48 ban?
08 16:04:50 A. Yes.
09 16:04:50 Q. Do you know how much they are?
10 16:04:53 A. I don't remember now exactly, but I know about it.
11 16:04:55 Q. Roughly speaking?
12 16:05:00 I think it was a little bit less than a million, am
13 16:05:04 I correct? I don't know.
14 16:05:07 Q. Mr Chris, have you assisted in preparing the statement
15 16:05:12 of claim?
16 16:05:16 A. For the claim for the --
17 16:05:18 Q. For this arbitration?
18 16:05:19 A. No.
19 16:05:22 Q. What was the number when you were still in the project,
20 16:05:28 the number that was claimed when you were still in the
21 16:05:34 project?
22 16:05:35 A. I don't understand your question.
23 16:05:37 PRESIDENT: Is number is what?
24 16:05:38 MR A NAJDAWI: The number of the claim for the damages and
25 16:05:40 the losses, the value of the damages and the losses that

01 16:05:44 the JV claimed from GAM?

02 16:05:47 A. You mean the claim that we submitted in June 2021.

03 16:05:51 Q. Yes.

04 16:05:52 A. I don't remember now.

05 16:05:53 Q. Is it a little less than a million roughly speaking?

06 16:05:56 A. I don't remember. I think, but I don't remember.

07 16:06:00 Q. Before I get to this question, why did you let the

08 16:06:08 drilling operator and the foreman leave at that time?

09 16:06:15 A. The time they left because they knew that the airport

10 16:06:17 will close and they were -- that 250EU78 everybody was

11 16:06:20 afraid of Covid and they were afraid to remain in

12 16:06:24 a foreign country and they wanted to go back to their

13 16:06:26 houses and return back, back to their home and return

14 16:06:31 when this situation was over. At that moment nobody

15 16:06:33 knew when the situation will be over.

16 16:06:37 Q. Do you believe when we are talking about 1 million in

17 16:06:43 damages and losses, do you believe it's fair for GAM to

18 16:06:47 shoulder these costs because your employees were afraid

19 16:06:50 and wanted to go back home?

20 16:06:52 A. This has nothing to do.

21 16:06:55 MR H KHIRFAN: Mr Chairman, please.

22 16:06:58 MR A NAJDAWI: I'm going to --

23 16:06:59 PRESIDENT: Next question.

24 16:07:00 MR A NAJDAWI: I'll going to go to the next question.

25 16:07:02 PRESIDENT: Please?

01 16:07:03 A. So do I answer or not?

02 16:07:04 PRESIDENT: No, no.

03 16:07:50 MR A NAJDAWI: Mr Chris, is the gas that is concerned in the

04 16:07:54 cells of this landfill, is it cat devised as landfill

05 16:08:00 gas or as Biogas?

06 16:08:05 A. This gas comes from a landfill, it's categorised as

07 16:08:09 landfill gas. Although you will see many times

08 16:08:12 referring Biogas, but it's landfill gas.

09 16:08:16 Q. It's landfill gas for sure?

10 16:08:17 A. Yes.

11 16:08:17 Q. Can be we please show Mr Chris exhibit C-302.

12 16:08:42 ¶202602160122 If we can go to page 6 digital, Jude.

13 16:08:54 Can you please -- Jude, sorry. If we can go to the

14 16:08:59 first page, to the cover page. This is an exhibit from

15 16:09:01 the claimant. This is not our exhibit. What it says

16 16:09:06 this is a technical bulletin from -- this is the one

17 16:09:11 they delivered for the engines.

18 16:09:19 If we go to page 6 digital, Jude. What does the

19 16:09:26 maximum level of H2S, what is it? What is the maximum

20 16:09:30 level of H2S for landfill grass, Mr Chris?

21 16:09:35 A. This here is not the limit. If you can read the limits

22 16:09:37 are below, you have to go on the technical bullet --

23 16:09:42 Q. What is the maximum?

24 16:09:44 A. The ^^ gas from, this is usually the typical on a gas

25 16:09:49 field --

01 16:09:50 Q. That is a minimum a typical at a manageness the maximum
02 16:09:52 and the minimum. Usually when you have landfill gas, in
03 16:09:56 all the landfills the typical is and 300. Sometimes we
04 16:10:00 have landfill gases that H2S is around or ^^ some
05 16:10:06 landfills have up to 1,000 even more if it's maximum.
06 16:10:08 But usually the maximum is 1,000, the typical is 300.
07 16:10:12 And 0 is the perfect of course you cannot find.
08 16:10:16 Q. And the maximum here is based, it's said H2S in ppm
09 16:10:20 based on klo risk value ^^ per hour?
10 16:10:25 A. Yes 10 kilowatt hours as I told you.
11 16:10:27 Q. What's the call risk value in our project, 5 you said?
12 16:10:31 If it's 50 per cent, it's 5.
13 16:10:33 Q. Okay. And you said it ranged between the 48 per cent to
14 16:10:41 58 per cent during your time?
15 16:10:42 A. Yeah, usually more than 50, yes.
16 16:10:43 Q. So let's say 5 call risk value of 5 kilowatts per hour.
17 16:10:49 What then would be the maximum?
18 16:10:51 A. This is not the limit. If you go, please, you have the
19 16:10:56 whole exhibit. Go further down. You will see the
20 16:10:59 limits.
21 16:10:59 Q. We'll go to it?
22 16:11:01 A. This is not the limits. You will go it shows, this one.
23 16:11:09 Q. This is the Biogas, it's 1,500. Before we go down,
24 16:11:14 Mr Chris, are landfill gases and Biogases ^ low quality
25 16:11:20 gases?

01 16:11:21 A. Yes.

02 16:11:23 Q. So low quality gases is the general term; correct?

03 16:11:27 A. Look, low quality gases we call them because we have

04 16:11:30 methane percentage that's around 50 per cent. Let's say

05 16:11:33 million gas has 99 per cent May thayne, so it's high.

06 16:11:37 But then depends how low in the landfill, it depends.

07 16:11:42 Q. My question is much more specific?

08 16:11:44 A. Lowe is Biogas and ^^.

09 16:11:46 Q. And are there other types?

10 16:11:48 A. Yeah, there are other types also.

11 16:11:49 Q. So it's -- (overspeaking) -- ^^?

12 16:11:52 It's the more general term?

13 16:11:53 A. Yes, yes.

14 16:11:54 Q. So if we go below to the limits, Jude, way below. If we

15 16:12:07 go below to page 12, Mr Chris, digital, Jude.

16 16:12:17 We see here, this is if we can go up, Jude, a bit.

17 16:12:24 A. Yes.

18 16:12:25 Q. So this is for low quality gas?

19 16:12:28 A. Yes.

20 16:12:31 Q. So in terms of gas quality, when it's low, then the

21 16:12:36 limit, when it's a low gas quality gas the limit of H2S

22 16:12:41 is 1,500 ppm?

23 16:12:44 A. Yes. ^^ hours.

24 16:12:47 Q. If it's five, then it's 750?

25 16:12:50 A. Yes.

01 16:12:51 Q. Which is what the benchmark that you have done for this
02 16:12:54 project (10 kilowatt hours?? ^.
03 16:12:56 Q. This is for low gas quality generally, this is for gases
04 16:12:59 of low quality generally?
05 16:13:00 A. Mm-hmm.
06 16:13:01 Q. Be when we go to landfill got above which is the more
07 16:13:06 specific division of low gas quality, we see a maximum
08 16:13:08 of 1,000?
09 16:13:09 A. But this is --
10 16:13:09 Q. For 10 kill waiteds per hour if it was 5 then it would
11 16:13:12 be 500?
12 16:13:13 You have your confused a ill will bit here. It's
13 16:13:15 another thing the limits for the gas the engines you can
14 16:13:19 see it here and it's another thing if you go up you will
15 16:13:23 see how much is the H is 2 on the gases when it's low
16 16:13:28 medium or -- please, go a little bit.
17 16:13:34 Q. Up a bit?
18 16:13:35 A. I don't remember which page. Okay. You can see here
19 16:13:38 this is not talking about the limit. The limits are on
20 16:13:43 the other. This is how we do all the design, we have if
21 16:13:48 you can find, you can all the documentation, you are see
22 16:13:52 also by ^^ we have a letter confirming this, by
23 16:13:54 everybodiment this is a way the landfill gag works
24 16:13:57 believe me this has nothing to go with the limits of
25 16:14:00 landfill ^ and it's not written there that's limits.

01 16:14:27 Q. I just remembered.

02 16:14:54 DR TARAWNEH: You have six minutes left.

03 16:14:56 MR A NAJDAWI: Yes, sir.

04 16:15:02 The ventilation. You stated that earlier in your

05 16:15:08 testimony, that you would have to clean the filters of

06 16:15:14 the ventilation system very often in order to ensure

07 16:15:18 that no high temperature arises, basically?

08 16:15:22 A. Correct.

09 16:15:26 Q. And how very often are we speaking?

10 16:15:29 A. This depends on the environments. If the environment is

11 16:15:32 very dusty and also depends on the weather conditions.

12 16:15:35 Let's say if you have a sandstorm, you have to clean it

13 16:15:39 immediately. If it's summer time and does not rain, may

14 16:15:42 have ^^ two, three days if it's after rain maybe you can

15 16:15:45 leave it one week. It depends. You can now sat. Its

16 16:15:48 depends on the environment.

17 16:15:49 Q. In summer time it's every two, three days?

18 16:15:52 A. Depends also if the wind is on the opposite direction

19 16:15:55 maybe you can keep it four, five days. If the wind is

20 16:15:57 on that direction, maybe you have to keep it two or

21 16:15:59 three. Depends.

22 16:16:00 Q. You never had in the power plant any issues with high

23 16:16:04 temperature? Where is vent raise system. It's in the

24 16:16:08 engine rooms?

25 16:16:09 A. The ventilation system is in the container at the side

01 16:16:13 of the container is a big fan and has the filters.

02 16:16:18 Q. What is the job of this ventilation system?

03 16:16:21 A. I told is to cool up the container room ^^.

04 16:16:23 Q. And the ^^?

05 16:16:25 A. The engine is inside.

06 16:16:26 Q. So it's a ventilation system for the engine rooms;

07 16:16:28 correct?

08 16:16:29 A. Yes.

09 16:16:30 Q. You've never experienced in your entire tenure operating

10 16:16:35 the power plant, high temperature beyond limits in the

11 16:16:39 engine room?

12 16:16:40 I didn't say that we never experienced.

13 16:16:43 Q. Did you experience temperatures beyond the limit --

14 16:16:47 A. We experienced, of course -- (overspeaking) -- ^^.

15 16:16:49 Q. This was a question?

16 16:16:50 A. Sorry, I didn't understand. Yes, we experienced.

17 16:16:52 Q. Beyond the limits?

18 16:16:56 A. Sometimes you look what happens. If the temperature,

19 16:16:58 you see that rises, also you understand that you need to

20 16:17:01 clean the filters if the outside temperature is very,

21 16:17:03 very high, maybe you have some, but this is something

22 16:17:06 that happens. That's why you are there to operate and

23 16:17:09 do the necessary mantesnance.

24 16:17:11 Q. So you wait until the temperature raises beyond the

25 16:17:13 acceptable limit and then you clean the filter?

01 16:17:15 A. No, you don't wait, but sometimes maybe if some if one
02 16:17:21 night you have a lot of sand in the when you come in the
03 16:17:24 morning you see that the temperature rises, then you
04 16:17:28 clean the filter immediately.
05 16:17:30 Q. But you experienced --
06 16:17:31 A. Or it can be a problem with the sensor, we have
07 16:17:33 experienced also problems with the ser are sensor.
08 16:17:36 Q. You ^^ beyond the limit; correct?
09 16:17:38 A. If I remember correctly, yes, it's something that
10 16:17:40 happens in all the projects this counselled of projects
11 16:17:44 it's not possible, it happens sometimes, but the thing
12 16:17:46 is to fix it.
13 16:17:48 Q. Thank you. I'm done, Mr Chairman.
14 16:17:50 PRESIDENT: Thank you.
15 16:18:11 There's any re-direct examination?
16 16:18:39 (Discussion off the record)
17 16:18:52 (discussion in Arabic)
18 16:19:30 PRESIDENT: We will take the break now. 15 minutes.
19 16:20:04 (4.20 pm)
20 16:20:06 (Short break)
21 16:20:08 (4.39 punch list)
22 16:39:45 PRESIDENT: We will resume. Mr Khirfan, it is your turn to
23 16:39:49 re-direct examination.
24 16:39:52 MR H KHIRFAN: Thank you.
25 16:39:53

01 16:39:53 Re-examination by Mr H Khirfan

02 16:39:58 MR H KHIRFAN: Can we tul up exhibit C-196, please.

03 16:40:42 Can you please, when you read it, confirm what you

04 16:40:47 said about leachate migration from cell 5, subject that

05 16:40:51 was discussed.

06 16:41:01 MS ABAZA: Go down, please. This one.

07 16:41:04 MR H KHIRFAN: This one.

08 16:41:06 MR A NAJDAWI: Before re-read it, Hazem, which question does

09 16:41:08 this relate no.

10 16:41:09 MR H KHIRFAN: You ask about leachate migration from cell 5.

11 16:41:14 MR A NAJDAWI: Didn't ask --

12 16:41:15 MR H KHIRFAN: He mentioned it. He was in his answer, he

13 16:41:19 mentioned about the active cell and the migration from

14 16:41:23 the cells, so just to clarify.

15 16:41:29 Can you please confirm what you said about leachate

16 16:41:30 migration from cell 5?

17 16:41:33 A. I said that cell 5 was the active cell --

18 16:41:37 Q. Can you just for the tribunal, give context, what is

19 16:41:41 this?

20 16:41:43 A. This is the landfill. Cell you can see cell 1, 2, 3 and

21 16:41:47 4, these three cells are the cells that we completed the

22 16:41:51 capping work and we were extracting the landfill gas

23 16:41:55 from these four cells. Number 5 cell was the active

24 16:41:59 cell at that time. The cell that was receiving the

25 16:42:02 waste. So we didn't have to do anything with cell

01 16:42:05 number 5.

02 16:42:07 Cell number 5 was receiving the waste and had a huge

03 16:42:11 quantities of leachate. This is what I said. I don't

04 16:42:15 I know if anything else your question.

05 16:42:17 Q. Migration, leachate migration?

06 16:42:19 A. So Yuk see that it's on the borders with 1 and 2.

07 16:42:22 Q. Okay. Are you able to verify the waste composition in

08 16:42:28 a cell after the cell has been filled?

09 16:42:34 A. To verify the waste composition.

10 16:42:37 Q. In a cell after the cell has been filled?

11 16:42:41 A. The waste composition is something that's very

12 16:42:44 difficult, because in a cell you don't have in every

13 16:42:47 place of the cell, the same waste. Depends what cell

14 16:42:50 go, what waste goes where. So you can only confirm the

15 16:42:55 waste on one specific area where you're going to make

16 16:42:57 the drilling.

17 16:43:02 Q. If you were to take a sample of ^^ composition of the

18 16:43:08 entire cell?

19 16:43:08 A. No, you can only take a sample from one specific area.

20 16:43:15 Q. Back to landfill gas composition. You mentioned that

21 16:43:18 it's not possible to verify the landfill facility

22 16:43:20 composition before construction is completed. You mean

23 16:43:24 that it's not possible to do so before the capping and

24 16:43:28 construction works for the cells are completed?

25 16:43:30 A. No, I said you cannot do this before it's correct

01 16:43:33 connected with the pump. A flare or a power station.

02 16:43:37 Because in order to measure the landfill gas comp su yod

03 16:43:40 of that a flow. If the ^^ you don't have a three.

04 16:43:49 Q. When you were designing the power plant in phase 3, you

05 16:43:52 did verify landfill gas reading from cell 1 to 3;

06 16:43:56 correct?

07 16:43:57 A. When can you repeat, please?

08 16:43:59 Q. When you were designing the power plant in phase 3, you

09 16:44:03 did verify landfill gas reading from cell 1 to 3?

10 16:44:15 A. Yes, we did.

11 16:44:23 Q. Who controls the waste management in the Ghabawi

12 16:44:26 Landfill?

13 16:44:28 GAM.

14 16:44:32 Q. When you undertook the works for cell 4, was the

15 16:44:35 leachate situation in cell 4 worse or better than cells

16 16:44:39 1 and 3 because you were discussing?

17 16:44:41 MR A NAJDAWI: You know the answer, he said better.

18 16:44:42 A. No, I didn't say better, I say it was better the slopes

19 16:44:46 of the landfill. That's why we didn't need to do any

20 16:44:50 other work. It was leachate also there, but it was

21 16:44:53 better than the situation when we started the project

22 16:44:56 with cell 2.

23 16:44:58 Q. Okay.

24 16:44:58 MR A NAJDAWI: In terms of the slopes. I want to say

25 16:45:10 something here only to add and it's ^ this happened

01 16:45:13 because cell 2 when we started it was there for how many
02 16:45:17 years. Krill 4 it was just filled up with waste at this
03 16:45:21 moment.
04 16:45:21 MR H KHIRFAN: You stated that the H2S reading from the
05 16:45:34 mounted gas analyser was fixed to 150. Who fixed this
06 16:45:41 to 150 ppm?
07 16:45:44 A. The manufacturer of the gas treatment plant and the
08 16:45:49 analyser that was the Italian company con ve co. They
09 16:45:53 authorised technicians from con ve co that they were
10 16:45:56 inside during that period.
11 16:45:58 Q. So did the DBE know that the reading was fixed to
12 16:46:02 150 ppm?
13 16:46:02 Yes, he knew.
14 16:46:10 Q. One last question. Ahmad asked, my colleague, asked you
15 16:46:18 various questions about claims. The proposals sent by
16 16:46:22 the JV, et cetera. Are you involved in commercial
17 16:46:27 decisions and issues for the JV or are you?
18 16:46:32 A. You mean regarding this claim?
19 16:46:34 Q. ? General, yes, he asked you general questions about
20 16:46:37 claims, numbers, amounts, proposals and by the JV. The
21 16:46:41 question, are you involved in commercial decisions and
22 16:46:44 issues for the JV or were you more technical and
23 16:46:47 operational?
24 16:46:48 A. I am more technical, but sometimes I am involved also.
25 16:46:54 Q. About thank you.

01 16:47:01

02 16:47:01 Questions by TRIBUNAL

03 16:47:01 PRESIDENT: I have some question only to understand the two

04 16:47:08 issues about the leachate and the H2S.

05 16:47:23 You described the situation in cells 2, 1 and 3

06 16:47:28 regarding the leachate and high levels of the leachate,

07 16:47:40 what could have GAM done to handle the high levels of

08 16:47:45 the leachate?

09 16:47:49 A. The most important was to operate the purposes that were

10 16:47:55 installed at the bottom of the cellr br to operate them?

11 16:48:01 A. To operate them, push the leachate from the bottom of

12 16:48:04 the cells.

13 16:48:06 PRESIDENT: But I remember that you stated that they are not

14 16:48:11 operatable?

15 16:48:12 A. They were not. This is what we knew on site, that they

16 16:48:16 were not able to operate it. But they didn't do

17 16:48:21 anything, I guess, to fix it or see if it was possible

18 16:48:24 to fix this case.

19 16:48:26 PRESIDENT: Let me understand you correctly. I asked about

20 16:48:31 what GAM could have done if they are not operatable, how

21 16:48:39 could they have operated them, the pumps?

22 16:48:41 A. It is a system, you can take out the pumps from the

23 16:48:46 bottom and maintain them and fix the problem. I don't

24 16:48:51 know exactly the case if this was possible. I don't

25 16:48:54 know. But it is the way you can do it.

01 16:48:58 PRESIDENT: Did you notify GAM that they should have done
02 16:49:02 something to operate the pumps?
03 16:49:07 A. This is something that I'm sure we have discussed it
04 16:49:09 many times. But if in writing I'm not sure that we ever
05 16:49:15 said something regarding 1, 2, 3. Regarding for cell 4
06 16:49:19 we did for sure, I though this.
07 16:49:21 PRESIDENT: Okay.
08 16:49:27 A. Also there were other things that GAM should do, like
09 16:49:29 pumping the leachate from some ^^.
10 16:49:31 PRESIDENT: You stated this?
11 16:49:32 A. Okay.
12 16:49:33 PRESIDENT: You stated this.
13 16:49:35 What did you mean by the overflow from the cell ^^?
14 16:49:46 I mean that around the cells it was land, the area. And
15 16:49:54 also the road that we go around the cells. When the
16 16:49:59 cell, you knowings to make a cell you need to excavate
17 16:50:01 the soil and then you fill this with waste. The waste
18 16:50:05 goes above this and you make a mountain. When the
19 16:50:09 leachate overflows from the bottom, it starts goes
20 16:50:13 outside at the end. So it starts going to the roads and
21 16:50:18 everything becomes we have a lot of leachate around the
22 16:50:22 cells. This was the biggest issue, one of the biggest
23 16:50:25 issues when we first arrived to the site, that was
24 16:50:29 leachate every place from the cell.
25 16:50:31 PRESIDENT: Dug your presence on the site, have you been

01 16:50:38 pumping leachate, you as an operator?

02 16:50:43 A. We were pumping the leachate from leachate wells that we

03 16:50:50 have drilled and also from the gas wells because

04 16:50:55 although they are gas wells, you have, you can put

05 16:50:59 inside a push and push also the leachate. So we were

06 16:51:03 pumping leachate from the leachate wells that we have

07 16:51:08 drilled and from some of the gas wells.

08 16:51:11 PRESIDENT: Where do you pump leachate?

09 16:51:16 A. They're in Ghabawi, there were ^ five, six, I don't know

10 16:51:22 remember how many leachate lagoons. So we were transfer

11 16:51:25 the leachate to these lagoons.

12 16:51:28 PRESIDENT: Okay.

13 16:51:30 A. Lagoons are not made by us, by --

14 16:51:32 I know.

15 16:51:42 And you also drilled leachate wells?

16 16:51:48 A. Yes.

17 16:51:49 PRESIDENT: To handle this issue or --

18 16:51:52 A. We drilled the leachate wells the main reason is we

19 16:51:56 drilled them around the gas wells, so because sometimes

20 16:52:00 leachate is not always at the same level, so we wanted

21 16:52:05 to take the leachate out around the gas wells so we can

22 16:52:10 take more gas from the gas wells.

23 16:52:12 PRESIDENT: Was this part of your scope?

24 16:52:15 A. Part of our scope was to pump the leachate in order to

25 16:52:18 extract better gas.

01 16:52:20 PRESIDENT: Was this the only solution for this problem or
02 16:52:26 were there available any other solutions?
03 16:52:29 A. From the moment that the underground pumps the bottom
04 16:52:32 they were not operating, we had to do it like this for
05 16:52:36 the landfill gas, if the land ^^.
06 16:52:39 PRESIDENT: This is the only solution?
07 16:52:41 A. As far as I know the solution that we use for pumping
08 16:52:43 the leachate is that. We did also a leachate trench
09 16:52:49 around the cells for the leachate that overflows to not
10 16:52:53 over flow to the roads but go to the trenches and then
11 16:52:56 it was necessary to porch the leachate from those shafts
12 16:53:00 at the trenches and the cells.
13 16:53:03 PRESIDENT: But does this resolve the problem of high level
14 16:53:05 leachate or it only deals with the symptom?
15 16:53:11 A. No, if to show the problem of leachate permanently is
16 16:53:16 necessary to operate ^ the pumps at the bottom of the
17 16:53:19 cells.
18 16:53:21 PRESIDENT: Which you don't remember if you had notified GAM
19 16:53:26 about this solution in writing?
20 16:53:29 A. I remember that we have discussed this many times with
21 16:53:32 DBE, but I don't remember if we had any letters about
22 16:53:38 this.
23 16:53:40 MR A NAJDAWI: Except for cell 4 you said?
24 16:53:42 A. Except for cell 4 in.
25 16:53:47 MR A NAJDAWI: That's 2021.

01 16:53:50 PRESIDENT: When the counsel asked you about the cleaning of
02 16:53:53 the ventilation system and thele coulding system, that
03 16:54:00 the temperature will decrease. You stated what the
04 16:54:07 routine maintenance or cleaning required. During your
05 16:54:15 presence, have you been implementing the same? I mean
06 16:54:19 cleaning the filters every two to three days?
07 16:54:25 A. Yes. This was about the temperature of the container
08 16:54:30 inside.
09 16:54:30 PRESIDENT: Yes, yes?
10 16:54:31 A. Yes. We were cleaning the filters. Sometimes every two
11 16:54:36 to three days, sometimes may be every day, sometimes
12 16:54:40 every four to five days, but in general, for this
13 16:54:43 project, we cleaned them very, very often, due to the
14 16:54:47 environment.
15 16:54:57 PRESIDENT: I want to ask you about the H2S. Is the amount
16 16:55:08 gas analyser requested under the contract to be mounted
17 16:55:11 there ^^?
18 16:55:11 A. No it was not requested to measure H2S. It was
19 16:55:15 requested to measure other parameters of the gas, of the
20 16:55:19 components ^^.
21 16:55:21 PRESIDENT: During your presence, you kept reporting GAM
22 16:55:30 about the true levels which in your opinion, were not
23 16:55:36 correct or were not accurate because they were fixed?
24 16:55:39 A. Yes, we were not -- I want to tell you here the reason
25 16:55:43 we fix this it was because the rate of the sensor was

01 16:55:48 from 0 to 200. Because the H2S composition was above
02 16:55:54 200, in we did not do something like this, it will give
03 16:55:57 us an alarm. So we will not able to operate the power
04 16:56:01 station. In order to operate the power station, we
05 16:56:04 needed to put the fixed rate there, so the engine see
06 16:56:07 that we don't have a problem with H2S. It's not -- the
07 16:56:12 engine -- censor was only up to 200. This was the
08 16:56:15 reason.

09 16:56:17 PRESIDENT: My question is different. Why you kept
10 16:56:20 reporting these readings within the monthly reports,
11 16:56:26 while they are not actual reading?

12 16:56:28 A. We didn't report the H2S. Only the SKADA that we were
13 16:56:31 printing from the computer plume had ^^ was not possible
14 16:56:35 to threatened it.

15 16:56:38 PRESIDENT: You stated this you it's lated cell number 4 ^
16 16:56:43 when you noticed that the spike of H2S. Did the level
17 16:56:53 of H2S or the readings of H2S decrease after you
18 16:57:00 isolated cell number 4?

19 16:57:01 A. We department ilate the whole number 46789. ^^ number 4
20 16:57:06 that had very high H2S we isolated them. Some that H2
21 16:57:10 rap up not too high we deacrossed the flow and some that
22 16:57:14 had very low heys we increase the flow. In general,
23 16:57:18 yes, the heys compensation at the engines it was
24 16:57:23 decreased.

25 16:57:25 PRESIDENT: Significantly?

01 16:57:26 A. Yes, according to my opinion, significantly is what we
02 16:57:30 mean when we sig ^^ but it was, yes.
03 16:57:33 PRESIDENT: Okay. Ask your question. I have only one more
04 16:57:39 question.
05 16:57:42 DR AL BASHIR: You said that you became aware about the
06 16:57:44 leachate when you were on location. Prior or after the
07 16:57:52 signature of the agreement? I mean when you answered
08 16:57:57 that you became aware when you got that the pumps were
09 16:58:03 not operating?
10 16:58:05 A. After signing the contract.
11 16:58:09 DR AL BASHIR: Why you didn't cover that in your inspection
12 16:58:14 of the site and why was that not obvious to you?
13 16:58:17 A. I was not involved at that time with the project.
14 16:58:19 I don't know.
15 16:58:20 DR AL BASHIR: Okay. When you fixed the second engine was
16 16:58:30 it done under warranty? I mean when you said it was
17 16:58:34 ultimately fixed, was it done under warranty?
18 16:58:39 A. The engine, we had a fight this with MWM if it will be
19 16:58:45 under guarantee or it should not be under guarantee.
20 16:58:50 DR AL BASHIR: Yes.
21 16:58:50 A. Finally, this engine was repaired and as I remember we
22 16:58:55 did something like another ^^ solution. It was not
23 16:59:03 covered 100 per cent by guarantee.
24 16:59:05 DR AL BASHIR: Okay, but can you explain that to me. It was
25 16:59:08 partially covered, not covered?

01 16:59:10 A. I remember that we paid for the new short block, but
02 16:59:20 some works that they done it was they did a big discount
03 16:59:25 on some works something like this. Willing they agreed
04 16:59:28 to come to Jordan ^^ with all this repattediation
05 16:59:32 flights and installing in the engine. It's usually it's
06 16:59:36 very difficult to when something is under guarantee.
07 16:59:40 It's a big issue to prove if it's should be fixed under
08 16:59:44 guarantee or not.
09 16:59:47 DR AL BASHIR: And my third question relates to maintenance
10 16:59:52 prior to your departure. Was there a delay in the
11 16:59:59 maintenance from May to July and if there was why did
12 17:00:04 that happen?
13 17:00:06 A. You mean from May to July 2021.
14 17:00:09 AL BASHIR: Yes.
15 17:00:10 A. During that period, we had also the maintenance of the
16 17:00:16 turbo chargers.
17 17:00:17 DR AL BASHIR: Can you raise your voice, please?
18 17:00:18 A. Sorry, yes. During that period, we need also we need we
19 17:00:23 had the maintenance of the turbo chargers, turbo
20 17:00:26 chargers is one equipment of the engine. So we were
21 17:00:29 sends doing turbo chargers to Turkey for the maintenance
22 17:00:32 and then were coming back. So during that period, the
23 17:00:38 schedule was a little bit changed, but everything we did
24 17:00:41 was according to MWM they are sending. Maybe it was we
25 17:00:46 had some few differences on the exact time, but was not

01 17:00:49 a big deal.

02 17:00:51 DR AL BASHIR: So you stay within the parameters but there

03 17:00:54 was this delay from --

04 17:00:56 A. Maybe some small delays a few hours it was not a big

05 17:00:58 deal, it was not a problem, it happens with that. It's

06 17:01:01 not something very specialty.

07 17:01:04 DR AL BASHIR: Following from Mr That is' question, ^

08 17:01:13 clearly you were trying to solve the (mr That is are

09 17:01:18 you's ^ and leach it's elements by the operation, by

10 17:01:21 pumping or reducing or increasing. Was there

11 17:01:25 a possibility that this could be done by design?

12 17:01:30 A. You mean.

13 17:01:31 DR AL BASHIR: Design or construction, I mean?

14 17:01:33 By the design of the construction of the cell or by our

15 17:01:36 design for the rehabilitation of the cells.

16 17:01:38 DR AL BASHIR: Both.

17 17:01:39 A. From the design of the construction of the cells, from

18 17:01:45 the design of the calibration of the cells, no ^^, from

19 17:01:49 our design.

20 17:01:49 DR AL BASHIR: Can you explain a little bit more?

21 17:01:51 A. Because I told you that the most important then for the

22 17:01:54 leachate was the operation of the pumps at the bottom of

23 17:01:58 the cells.

24 17:02:00 DR AL BASHIR: Yes. This is part of the construction of the

25 17:02:02 cell ^.

01 17:02:03 DR AL BASHIR: Yes. Now, I don't know how this pumps were
02 17:02:07 according to the design, because it many ways you be
03 17:02:11 resolve these pumps, so I don't know this. But the
04 17:02:14 solution for this ^ck) correct way from installing the
05 17:02:18 pumps and after that, during the operation to operate
06 17:02:21 these pushes.
07 17:02:23 DR AL BASHIR: Why you say no from your stand find.
08 17:02:27 A. Because when we did the design of the rehabilitation,
09 17:02:30 the capping at cell, we didn't have anything to do of
10 17:02:33 course with the bottom of the cell, we didn't know, so
11 17:02:35 anything we did was on the top and the main issue for
12 17:02:39 our design was the extraction of the landfill gas and
13 17:02:42 even the pumping of the leachate we did it was in other
14 17:02:45 words to extract more lands fill gas.
15 17:02:49 DR AL BASHIR: Thank you very much.
16 17:02:56 PRESIDENT: You stated that you have recommended some
17 17:03:01 measures to be taken to handle the heys readings the like
18 17:03:15 changing the oil, testing the oil, and so on.
19 17:03:21 Is there any other measure surgical one, should have
20 17:03:27 been taken to resolve genuinely the problem, meaning to
21 17:03:35 reduce the H2S, not dealing with the high-level H2S?
22 17:03:40 A. Of course one solution is to install H2S treatment plan.
23 17:03:46 Of course this treatment plants ^ is not sewage ^^ it's
24 17:03:51 very difficult. It needs the operation cost is too high
25 17:03:58 and needs a lot of -- we have specifically you have two

01 17:04:02 kinds of H2S treatment plants. One is ^^ water that
02 17:04:05 needs a lot of more, more more that you can find and the
03 17:04:09 other is ^^ filters that also has a very high operation
04 17:04:13 cost so when you do something, not for this landfill, in
05 17:04:15 general for the landfills that have H2S you have to put
06 17:04:18 down and see what is more, what's better to install
07 17:04:23 a leachate treatment plan and you will have this
08 17:04:25 operation costs or to do so system ^^ maintenance and we
09 17:04:28 have this cost. And then you decide what to do.
10 17:04:37 PRESIDENT: Did you notify GAM about such measures you just
11 17:04:43 mentioned to give them the opportunity to decide whether
12 17:04:51 to take these measures or instead ^^ take the measures?
13 17:04:56 A. Because you told me to be very clear if I inform GAM or
14 17:05:00 DBE. All these discussions I did it was with DBE, not
15 17:05:05 with GAM. The majority of the discussions. We
16 17:05:09 discussed with DBE many times these issues and also the
17 17:05:14 leachate if we needed to put H2S treatment plant if it
18 17:05:19 was possible later to somebody to install and we discuss
19 17:05:24 this many times with ^^.
20 17:05:33 PRESIDENT: According to your answer, the isolation total
21 17:05:37 isolation of cell number 4 was doable or not? What
22 17:05:46 impact does it have on the power plant and the
23 17:05:48 generation of gas and electricity?
24 17:05:51 A. It was no need to do it total isolation of cell number
25 17:05:56 4. The way we designed our network was it was possible

01 17:06:02 to dig ^^ isolate other wells it is lace the control

02 17:06:05 bhoap only you had you can do anything you wish. There

03 17:06:08 were many wells at cell 4 that had very low H2S we

04 17:06:12 didn't want to isolate those. The problem was that

05 17:06:16 isolating some wells that had high H2S may be those

06 17:06:22 wells had also high ^^ methane is something that we want

07 17:06:26 for the engines. But in general, for the engines that

08 17:06:30 were installed the five megawatt it was possible to

09 17:06:34 isolate some wells and decrease the flow in other wells

10 17:06:40 it was possible.

11 17:06:41 PRESIDENT: Okay. Two questions. Have you investigated the

12 17:06:47 reasons blind the high readings of H2S other than

13 17:06:53 guessing that the cement poles or ^^ waste?

14 17:07:01 Usually for these reasons there are two main factors,

15 17:07:05 the composition of the waste and the leachate. Now, if

16 17:07:11 you have, I have checked with some other landfills that

17 17:07:13 we have, like say in Greece, in Greece we have very low

18 17:07:17 H2S in the landfills. The reason for that is of course

19 17:07:20 that you have a lot of recycling before that and that

20 17:07:24 construction waste that's not municipal waste the

21 17:07:28 construction waste cement poles, cement, gypsum boards

22 17:07:32 and that they are not municipal waste. This municipal

23 17:07:34 waste it doesn't go to the landfill.

24 17:07:37 So I think the number one is this. The composition

25 17:07:40 of the waste. And after that, number 2 are the high

01 17:07:44 quantities of leachate. Usually these are the main
02 17:07:47 reasons for the increased H2S. And it can also be maybe
03 17:07:51 the other temperature ^^ sometimes if they are very
04 17:07:54 high, but this is something that we cannot change.
05 17:07:58 PRESIDENT: You mentioned Mr Angel many times during your
06 17:08:04 testimony. Why Mr Angel the DBE ^ present on the site
07 17:08:13 all the time or he was visiting only the site
08 17:08:19 occasionally?
09 17:08:21 A. Mr An gel was visiting the site, if I remember
10 17:08:23 correctly, he was coming one week per month
11 17:08:26 approximately. But we had a continuous communication
12 17:08:32 with him also Mr Lan gous he was connecting to the
13 17:08:37 system for remotely and he was checking everything as
14 17:08:40 the things were working.
15 17:08:42 PRESIDENT: Okay. I have no further questions. Thank you
16 17:08:44 so much. We are finished. Thank you for coming and
17 17:08:58 making yourself available again. We will reconvene
18 17:09:03 tomorrow. At the .30. We will start with your
19 17:09:07 witnesses, Mr Najdawi. We will start with Mr Sha was ba
20 17:09:14 at 9.30.
21 17:09:16
22 17:09:16 (Witness withdrew)
23 17:09:25 (The hearing adjourned until 9.30 am on the following day)
24 17:09:25 I N D E X
25 17:13:26 Test test?

01 17:51:48 A. I remember that we left the meeting calm that we will
02 17:52:09 have result, which finally was not the case.
03 17:52:17 Q. And what was the result at the end of these
04 17:52:19 communications?
05 17:52:20 A. Please again.
06 17:52:21 Q. What was the result of these communications?
07 17:52:24 A. The reason?
08 17:52:24 Q. Yes. The result, exactly.
09 17:52:28 A. Of that didn't happen.
10 17:52:31 Q. You met, you discussed, you exchanged, they gave
11 17:52:33 assurances, you left, and what was the result of the the
12 17:52:36 end of these communications?
13 17:52:37 A. That it was finely unsuccessful, this is what you mean.
14 17:52:40 Q. Unsuccessful you said?
15 17:52:43 COURT REPORTER: Sorry,.
16 17:52:48 PRESIDENT: I ?
17 17:52:48 A. That we.
18 17:52:52 COURT REPORTER: Sorry, I have a problem.
19 17:52:55 A. We will have a positive result ^.
20 17:53:00 COURT REPORTER: Just a second.
21 17:54:04 (break for technical issue)
22 17:55:26 PRESIDENT: Repeat your question.
23 18:12:55
24 18:12:55 ☐extra 160002
25 18:12:56

01 18:12:56

02 18:12:57

03 18:12:57

04 18:12:57

05 18:12:58

06 18:13:01

07 18:13:08 35.40 ^

08 18:14:11 PRESIDENT: No, he said he went to Jordan measures were too

09 18:15:13 strict, but he never answered the question of

10 18:15:18 Mr Khirfan.

11 18:15:18 PRESIDENT: No, said that he went to Germany under measures

12 18:15:22 but he was able to do it. (Mr T above I think. Creek.

13 18:15:28 COURT REPORTER: Sorry, I have another problem, just

14 18:15:30 a minute.

15 18:15:32 PRESIDENT: Just a minute.

16 18:15:57 (short break for technical issues)

17 18:16:05 (discussions in Arabic) this is the thirds incident he's

18 18:16:14 evading answering question in a direct way. (Arabic spoken)

19 18:16:33 PRESIDENT: We will instruct the witness to directly?

20 18:16:35 A. Excuses me, I'm in the a lawyer, so of course you have

21 18:16:37 your way of answering, but --

22 18:16:43 MR H KHIRFAN: It's okay?

23 18:16:43 A. I'm not disagreeing with you, but simply I gave my full

24 18:16:47 reply. This is not.

25 18:16:52 PRESIDENT: Did this affect your ability to bring back the

01 18:16:54 key personnel to Jordan where the measures applied
02 18:16:59 abroad affecting you or just the measures in Jordan?
03 18:17:05 You as the joint venture, not him.
04 18:17:12 Are we okay or not yet?
05 18:17:15 COURT REPORTER: Sorry, just a minute.
06 18:17:19 DR AL BASHIR: I felt the question came that there are
07 18:17:22 measures in other countries. So the question is about
08 18:17:26 the other countries, where there is no JV.
09 18:17:36 PRESIDENT: The question is where the measures applied
10 18:17:39 abroad affecting you.
11 18:17:42 DR AL BASHIR: You mentioned that the issue with the flights
12 18:17:43 restriction will also happening abroad.
13 18:17:50 PRESIDENT: Did this affect your ability to bring back your
14 18:17:52 key personnel.
15 18:17:54 SECRETARY: We can continue. It's recording.
16 18:17:56 PRESIDENT: Please can you answer the question about
17 18:17:59 bringing back the key personnel. Does the restriction
18 18:18:09 abroad affect your ability to bring back your personnel,
19 18:18:14 key personnel to Jordan or did it affect the joint
20 18:18:22 venture in general, restrictions abroad.
21 18:18:27 MR H KHIRFAN: The restrictions in Jordan compared.
22 18:18:29 PRESIDENT: Were the measures applied abroad affecting you
23 18:18:34 as a joint venture or just the measures in Jordan? Did
24 18:18:41 the measures abroad affect the joint venture?
25 18:18:46 A. The answer in the way --

01 18:18:50 PRESIDENT: No, answer --

02 18:18:51 A. No, no. The measures abroad didn't affect the personnel

03 18:18:58 to travel. The measures abroad.

04 18:19:02 PRESIDENT: Yeah. Travel where? Travel back?

05 18:19:06 A. To travel the measures abroad were not the issue. The

06 18:19:11 measures? Jordan were the problem.

07 18:19:18 MR H KHIRFAN: Okay. Engine 2 issue.